GOVERNMENT RULES · CASE-STUDY BOOK · v1.0 · NON-OBSOLETE CONTENT

CCS (CCA) Rules, 1965
Case Studies at Three Levels

L1 concept checks · L2 standard cases · L3 integrated exam cases
In-force text as on **01.11.2026** · pitched at the Assistant Audit / Accounts Officer (AAO) level, with CAG / IA&AD annotations

60	44	21	25	35
L1 concept checks	L2 standard cases	L3 integrated cases	model answers	rules and provisions anchored

Coverage	CCS (Classification, Control and Appeal) Rules, 1965, Parts I–IX (rules 1–35) as amended up to 01.11.2026 — the 2009 amendment substituting rule 11(vi), the 2014 Second Amendment (31.10.2014) recasting rule 15 and removing the second show-cause on the proposed penalty, the 2014 Third Amendment (19.11.2014) on complaints-committee compensation, and the 2017 statutory timelines (G.S.R. 548(E), 02.06.2017). Operative instructions are cited with number and date.
Format	Facts → record worksheet → questions; solutions in Issue → Rule → Conditions → Application → Calculation → Conclusion, with marks per step, a decision path, common wrong answers and — for L3 — a model answer in exam register.
Non-obsolete filter	Every provision was classified **IN**, **IN (concept only)**, **OUT (omitted)**, **OUT (transitional)**, **OUT (no case value)** or **OUT (superseded)** before drafting. Superseded provisions are **not taught**: they appear in the obsolete register and, where a reader is likely to meet them, as a wrong answer marked ⊘ with the amending instrument named.
Checks	Every deadline, period, suspension review date, mark total and rupee figure is recomputed by script from the facts (`scripts/cca-1965/verify.py`); every proposition is traced to the current text in the citation table. The build refuses to write on a failed audit.
Beyond the rules	Two subjects sit beside the text and are examined here because they decide real files: common proceedings under r.18, and the sealed cover, which is **not in the CCA Rules at all** but in DoPT OM No. 22011/4/91-Estt.(A) dated 14.09.1992, read with **Jankiraman**. The OM is executive instruction: it binds the executive, it does not override the rules, and every case that uses it says so. Its three categories, its six-monthly review and its two-year point are treated as clocks, with the OM paragraph cited each time.
Flags	⚑ a rate or order still awaited · ⚠ a genuinely unsettled point · ⊘ a superseded provision, shown only to be distinguished. No flag is decorative: each names what would settle it.

Disclaimer. Exam-study aid, not legal advice. Rely on the Gazette text and the current DoPT/CVC/CAG instructions for official work. Facts, names, offices and figures are constructed for teaching; pay computations use 7th CPC matrix values and illustrative DA/DR flagged ⚑ where the formal order was awaited on the law date.

How to use this book

Concept checks
One-line recall with the trap. Cover the answer column and test yourself in 2 minutes.

Standard cases
3–5 issues each, worked step by step with marks. Attempt on paper, then open the solution.

Integrated exam cases
Full file → competence → procedure → penalty → money → appeal → model answer.

The six-step method

1. **Issue** — Which stage of the disciplinary process, and what is being decided — competence, procedure, penalty, money or appeal?
2. **Rule** — Quote the sub-rule and its test. “Rule 14” is not a citation for a fifteen-day limit.
3. **Conditions** — Check each limb of the sub-rule: who, on what ground, within what time, with what record.

4. **Application** — Apply the facts, one limb per line. Name the date or the signature that decides it.
5. **Calculation** — Dates, working days, periods, pay and money — formula first, then the figure.
6. **Conclusion** — One line: what survives, what falls, what must be redone, and the trap.

Numbers to keep ready

- **Penalties.** Minor: censure · withholding of promotion · recovery · one-stage reduction ≤ 3 years (non-cumulative, pension-neutral) · withholding of increments. Major: reduction to a lower stage · reduction to a lower time-scale · compulsory retirement · removal · dismissal.
- **Major-penalty clocks (r.14).** Defence 15 days, extensions of 15 days at a time, **cap 45 days** · appearance within **10 working days** (+10) · adjournment ≤ 30 days · inspection 5 days (+5) · documents 1 month · witness statements 3 days before examination · inquiry report **6 months** (+6 months at a time).
- **Report and advice.** Representation on the inquiry report **15 days** · representation on the Commission's advice **15 days** · no second show-cause on the proposed penalty for a major penalty.
- **Suspension.** Review before **90 days** · extension ≤ **180 days** at a time · no validity beyond 90 days without extension · deemed suspension for detention or imprisonment exceeding **48 hours**.
- **Subsistence.** FR 53: **50%** of pay + DA for the first 90 days, **75%** thereafter, less deductions ordered.
- **Appeal and revision.** Appeal **45 days** from delivery · revision by the appellate authority within **6 months** · revision by the President / CAG / Head of Department at any time · review by the President only, on new material.

Flags

- ⚑ a rate or order still awaited — state the date of the last order you have.
- ⚠ a genuinely unsettled point — state both readings.
- ⊘ a superseded provision — shown only to be distinguished, never taught as current.
- **Marks.** The marks in a case header are the sum of the marks in its step table. A step without a rule reference is not a marking point.

Reading the layout

- **Part 1** L1 checks: use the row button to reveal the answer and the rule together.
- **Part 2** L2 cases: attempt on paper, then open the solution.
- **Part 3** L3 cases: full file, every computation, model answer in exam register.
- **Toolbar** filter by level, search every case, expand or collapse all solutions, or send the book to the printer.
- **Indices** rule, clock and case law — each links back to the item that tests it.
- **Printing** opens every solution automatically and breaks before each part.

Front matter

- How to use this book
- Scope register — what is in, what is out, and why
- Obsolete register — what is no longer the law
- Competence matrix

Part 1 — L1 concept checks

- Set 1 — Coverage, classification and competence (1–12)
- Set 2 — Suspension (13–24)
- Set 3 — Penalties (25–36)
- Set 4 — Procedure and timelines (37–48)
- Set 5 — Appeals, revision and review (49–60)

Part 2 — L2 standard cases

- L2-01 — The defence that arrived on day 54 8 marks
- L2-02 — Ex parte after a single default 8 marks
- L2-03 — A lawyer at the inquiry table 8 marks
- L2-04 — Nineteen documents and a non-availability certificate 9 marks
- L2-05 — Three clear days — and a witness nobody listed 8 marks
- L2-06 — The inquiry that ran into its second year 9 marks
- L2-07 — The plea that was never recorded 9 marks
- L2-08 — The report, the disagreement and the missing note 9 marks
- L2-09 — The show-cause that no longer exists 9 marks
- L2-10 — The advice nobody showed him 10 marks
- L2-11 — Four years of withheld increments 10 marks
- L2-12 — Censure recorded in the confidential roll 8 marks
- L2-13 — Two officials, one transaction 9 marks
- L2-14 — Reasons written a month after the order 10 marks
- L2-15 — The removal signed by the Head of Office 10 marks
- L2-16 — A minor penalty that the Head of Office could impose 9 marks
- L2-17 — Institution by one authority, imposition by another 10 marks
- L2-18 — One stage down for two years 12 marks

- L2-19 — Reduction to a lower time-scale 10 marks
- L2-20 — Recovery of more than was put to him 10 marks
- L2-21 — Compulsory retirement: a penalty or a power? 10 marks
- L2-22 — Dismissal or removal — the difference that outlives the job 10 marks
- L2-23 — Forty hours in custody 10 marks
- L2-24 — Convicted on Friday, dismissed on Friday 10 marks
- L2-25 — The review that was never held 10 marks
- L2-26 — Custody, release and the ninety-day clock 10 marks
- L2-27 — What suspension costs 11 marks
- L2-28 — Five months, no charge sheet 11 marks
- L2-29 — Three extensions and an objection 11 marks
- L2-30 — The envelope that stayed sealed 10 marks
- L2-31 — Termination during probation 11 marks
- L2-32 — Termination of a temporary hand under TS Rule 5(1) 9 marks
- L2-33 — Sympathy as an exceptional case 11 marks
- L2-34 — The Committee, the compensation and the promotion 10 marks
- L2-35 — Day fifty-eight from the order, day forty-four from delivery 9 marks
- L2-36 — The appeal that went to the wrong desk 9 marks
- L2-37 — What an appellate authority can do with a suspension 10 marks
- L2-38 — A pension refused, and the appeal nobody expected 10 marks
- L2-39 — Censure turned into two increments lost 12 marks
- L2-40 — Remand, and what it may not become 12 marks
- L2-41 — Revision by the Comptroller and Auditor-General 12 marks
- L2-42 — Eight months later, the same authority 11 marks
- L2-43 — Revision or review — the label the applicant chose 10 marks
- L2-44 — Served at the old address 11 marks

Part 3 — L3 integrated cases

- L3-01 — From charge sheet to compulsory retirement — a file audit 22 marks
- L3-02 — Suspension, acquittal and the arithmetic of reinstatement 20 marks
- L3-03 — Three years one stage down — pay, increments and pension 19 marks
- L3-04 — Ex parte inquiry, an illness letter, and an enhanced penalty 22 marks
- L3-05 — Conviction, dismissal and two levels of challenge 20 marks
- L3-06 — Recovery, appeal and revision — a small file with three stages 20 marks
- L3-07 — A sealed cover opened twenty-six months later 18 marks
- L3-08 — One transaction, two officers, and an incompetent common proceeding 22 marks
- L3-09 — Detention, deemed suspension, acquittal — and a file that forgot the review 22 marks
- L3-10 — A probationer, a shortage and a termination letter 20 marks
- L3-11 — Five increments, cumulative, and no inquiry at all 20 marks
- L3-12 — Revision, the subordinate test, and an enhancement that cannot be made 18 marks
- L3-13 — A charge sheet from 2019 and an inquiry that began in 2026 18 marks
- L3-14 — Eighty-nine days' absence and the ultimate penalty 19 marks
- L3-15 — Two penalties for one act 17 marks
- L3-16 — Appeal, revision, review — a map with three clocks 21 marks
- L3-17 — One proceeding, two officers, one incompetent signature 22 marks
- L3-18 — A joint disagreement note and findings that are not charge-wise 22 marks
- L3-19 — A sealed cover that had no business existing 22 marks
- L3-20 — The cover that said “unfit” — and who may read it 20 marks
- L3-21 — Retirement, a sealed cover and a pension that is short 21 marks

Indices

- Rule-to-case index
- Clock-to-case index
- Case-law index
- Sources and notes

Scope register — what is in, what is out, and why

Fixed before drafting. **IN** — full treatment. **IN (concept only)** — cited, not expanded. **OUT (omitted)** — struck out of the rule book. **OUT (transitional)** — spent on its own terms. **OUT (no case value)** — live but never examinable. Exclusion from this book is not a finding of obsolescence; only the first two OUT classes are law that has gone. Nothing in the book relies on a provision marked OUT.

Rule / instrument	Subject	Status	Why
1	Short title and commencement	IN (concept only)	date of coming into force only

2	Interpretation	IN	definitions drive coverage and authority — note the dead organisational references
3	Application	IN	coverage and the five exclusions; a standing trap
4	Classification of Services	IN (concept only)	text retains class-based language; Group A/B/C governs in practice
5	Constitution of Central Civil Services	OUT (no case value)	live but purely machinery — see r.4 and r.6 instead
6	Classification of Posts	IN (concept only)	feeds the Group test in r.12
7	General Central Service	IN (concept only)	identifies the service for r.12(2)(b)
8	Appointments to Group A services and posts	IN (concept only)	President as appointing authority
9	Appointments to other services and posts	IN (concept only)	appointing authority for other groups
10	Suspension	IN	core — grounds, deemed suspension, review, subsistence
11	Penalties	IN	core — taxonomy, provisos, Explanation
12	Disciplinary authorities	IN	core — competence defects are the commonest ground of challenge
13	Authority to institute proceedings	IN	institution is not imposition
14	Procedure for imposing major penalties	IN	core — the sequence and the clocks
15	Action on inquiry report	IN	post-2014 shape only; the second show-cause is gone
16	Procedure for imposing minor penalties	IN	includes the mandatory-inquiry triggers
17	Communication of orders	IN (concept only)	one-liner; affects the limitation date
18	Common proceedings	IN	one case minimum
19	Special procedure in certain cases	IN	Article 311(2) second proviso interface
20	Officers lent to State Governments	IN (concept only)	machinery
21	Officers borrowed from State Governments	IN (concept only)	machinery; lending authority’s role
22	Orders against which no appeal lies	IN	three exclusions, one of them subject to an exception
23	Orders against which appeal lies	IN	core — the appealable list is wider than penalties
24	Appellate authority	IN	Schedule first, then the rule’s fallback
25	Period of limitation of appeals	IN	45 days from delivery; condonation
26	Form and contents of appeal	IN	formal defects and their cure
27	Consideration of appeal	IN	powers, enhancement and its precondition
28	Implementation of orders in appeal	IN	who implements
29	Revision	IN	CAG power for IA&AD; six months for the appellate authority

29-A	Review	IN	President only, new material only
30	Service of orders and notices	IN (concept only)	service mode feeds limitation
31	Power to relax time-limit and condone delay	IN (concept only)	who may condone what
32	Supply of copy of Commission’s advice	OUT (omitted)	omitted by the 2014 Second Amendment; the duty now sits in r.15(3)(b) and r.16(1)(d)
33	Transitory provisions	OUT (transitional)	transitional only
34	Repeal and saving	OUT (transitional)	transitional only
35	Removal of doubts	OUT (transitional)	transitional only
Schedule	Authorities for services, groups and posts	IN (concept only)	cited, not reproduced — read with general or special orders
Art. 311	Constitutional safeguards	IN	the rules are read subject to it; Rule 19 maps to the second proviso
FR 53	Subsistence allowance	IN	the money during suspension
FR 54	Pay on reinstatement	IN	the money after suspension

Obsolete register — what is no longer the law

Every entry below is still taught somewhere. None of it is taught here as current. Where a case meets one, it does so as a wrong answer marked ⊘, with the amending instrument named.

Taught as current	Current position	Authority for the change
“A second show-cause on the penalty proposed must precede a major penalty.”	Deleted. The disciplinary authority acts on the inquiry report and the representation on it; no further opportunity on the proposed penalty is required.	CCA (Second Amendment) Rules, 31.10.2014 (G.S.R. 769(E)), substituting r.15
“Posts are Class I, II, III and IV.”	Group A/B/C governs competence and appeal. The rule text retains older class language in places; read it as Group.	DoPT instructions on classification of posts, 08.12.2017 (11012/10/2016-Estt.A-III)
“Inquiry must be completed in 90 days / the charge sheet must issue in 3 months.”	Those were administrative instructions. The statutory limits now sit in r.14: 45-day defence cap, 10 working days appearance, 6-month inquiry with recorded extensions.	G.S.R. 548(E), 02.06.2017; DoPT FAQ, 08.12.2017 (11012/09/2016-Estt.A-III)
“Any appellate authority may review its order.”	Review belongs to the President alone, on new material that changes the nature of the case. Other authorities exercise revision.	r.29 and r.29-A
“The Commission’s advice is not supplied to the employee.”	A copy is supplied and the employee is heard on it (15 days).	CCA (Second Amendment) Rules, 31.10.2014; r.15(3)(b), r.16(1)(d) — and r.32, which had required the supply, was omitted
“Rule 19 lets the department skip the inquiry whenever it is convenient.”	Three gates only, each with a condition and an authorising level; reasons must be recorded and are reviewable.	r.19 read with Art. 311(2), second proviso
“A temporary hand’s termination under the Temporary Service Rules is a penalty.”	It is excluded from the definition of penalty by Explanation (viii)(b). The route is narrow: it applies only while the servant is genuinely temporary, and never where the foundation is misconduct.	r.11, Explanation (viii)(b); CCS (TS) Rules, 1965, r.5(1)
“The Planning Commission, Postal Services Board and Telecom Board are live authorities.”	Dead organisational references in the text. Read as the successor office; do not build a competence answer on them.	r.2(l)(vi), r.29(1)(iii)

Competence matrix

Read the rule first, then the Schedule, then any general or special order. The last column is the error that most often reaches the Tribunal.

Order to be made	Competent authority	Test	Common error
Any penalty on any Government servant	President	r.12(1)	process under r.14/r.16 still required
Major penalty	Disciplinary authority competent under r.12; never an authority subordinate to the appointing authority	r.12(2), r.12(4)(a)	Head of Office imposing removal
Minor penalty, Group C (not CSCS) / Group D	Secretary of the Ministry/Department, or the Head of Office if not lower in rank than the r.12(2) authority	r.12(3)	Head of Office lower in rank
Probationer at LBSNAA	Director of the Academy — censure and recovery only, after r.16	r.12(4)(c)	any major penalty
Institution of proceedings	President or an empowered authority; a disciplinary authority may itself institute	r.13	confusing institution with imposition
Appeal	Schedule / general or special order; fallback in r.24	r.24	appeal to “the next senior officer”
Revision	President; CAG for IA&AD; Head of Department; appellate authority within six months	r.29(1)	treating revision as a second appeal
Review	President only	r.29-A	any other authority reviewing
Condonation of delay	The authority before whom the delayed proceeding is filed, within r.31 / the proviso to r.25	r.25, r.31	condonation by an authority not seized of the matter

Part 1 — L1 concept checks (60)

Use Show to reveal the answer and rule together. Aim for two minutes a set.

Set 1 — Coverage, classification and competence (1–12)

#	Question	Answer	Rule · Trap
1	Which Government servants are outside the CCA Rules?	Show**Railway servants, members of the All India Services, casual labour, persons dischargeable on less than a month's notice, and those covered by a special regime**	`3(1)` · Read 3(1)(e) first: it saves any special provision in force
2	Do the Rules reach a civilian employee of the Defence Services?	Show**Yes — they expressly apply to every civilian Government servant in the Defence Services**	`3(1)` · Only persons subject to the Army, Navy or Air Force Acts are outside
3	Is an officer on deputation or foreign service a “Government servant”?	Show**Yes — service placed at the disposal of a State Government or a local authority is included**	`2(h)(i)` · So is a State servant lent to the Centre — 2(h)(ii)
4	Promoted on probation to a higher Group — which Group fixes the disciplinary authority?	Show**The higher Group, for the purposes of the Rules**	`Explanation II to r.12` · The substantive post does not decide competence
5	Who appoints to a Group ‘A’ service or post?	Show**The President**	8 · A general or special order may delegate — check it before answering
6	An order describes the post as “Class III”. Is it void?	Show**No — read it as Group ‘C’**	`4; DoPT 08.12.2017` · Textual lag in the rule is not a jurisdictional defect

7	What does “disciplinary authority” mean?	Show**The authority competent under the Rules to impose on that servant any penalty in rule 11**	`2(g)` · Competence is penalty-specific, not a rank or a status
8	May a Head of Office impose removal on a Group ‘C’ employee?	Show**No**	`12(4)(a)` · No authority subordinate to the appointing authority may impose a major penalty
9	Who may institute disciplinary proceedings?	Show**The President, or an authority empowered by general or special order; and a disciplinary authority competent for a minor penalty may institute proceedings for a major one**	`13(1), 13(2)` · Institution is not imposition — the two competences can differ
10	May a Secretary impose a minor penalty on a Group ‘C’ employee of another Department?	Show**No — only on employees serving in that Ministry or Department**	`12(3)(a)` · A Head of Office must also satisfy the rank condition in 12(3)(b)
11	Can the Director of the LBSNAA dismiss a probationer undergoing training there?	Show**No — censure or recovery only, after the rule 16 procedure**	`12(4)(c)` · Any major penalty needs the authority competent under 12(2)
12	Does the Schedule matter to a competence question?	Show**Yes — it supplies the authority where rule 12 itself does not**	`12(2), 24` · Order of reading: Schedule → general or special order → the rule's fallback

Set 2 — Suspension (13–24)

#	Question	Answer	Rule · Trap
13	What are the three grounds for suspension?	Show**A proceeding contemplated or pending; activity prejudicial to the security of the State; a criminal case under investigation, inquiry or trial**	`10(1)(a), (aa), (b)` · Security of the State is a free-standing ground, not a kind of misconduct
14	Detention for how long makes suspension deemed?	Show**More than 48 hours**	`10(2)(a)` · 40 hours in custody attracts nothing
15	Convicted and sentenced to 30 days, but dismissed the same day — deemed suspension?	Show**No — 10(2)(b) applies only if no dismissal, removal or compulsory retirement follows**	`10(2)(b)` · Intermittent imprisonment counts from commencement of the imprisonment
16	When must a suspension first be reviewed?	Show**Before 90 days from the effective date, on the Review Committee's recommendation**	`10(6)` · The order may extend or revoke; a file note is neither
17	Maximum extension of suspension at a time?	Show**180 days**	`10(6)` · Each further review must precede the expiry of the running extension
18	Suspension is not extended after 90 days. What happens?	Show**The order ceases to be valid**	`10(7)` · “Under process” is not an extension
19	Deemed suspension in custody — when does the 90 days begin?	Show**From release from detention, or from intimation of release to the appointing authority, whichever is later**	`proviso to 10(7)` · Not from the date of detention
20	A penalty is set aside in appeal and the case remitted. What happens to the suspension?	Show**It is deemed to continue from the original order date until further orders**	`10(3)` · Applies to dismissal, removal and compulsory retirement

21	A court sets the dismissal aside on a technical ground and the department decides to re-inquire. From when is he under suspension?	Show**From the date of the original order of dismissal, as a deemed suspension**	`10(4)` · The proviso confines this to orders passed on technical grounds
22	Who may revoke a suspension?	Show**The authority that made it, or any authority to which that authority is subordinate**	`10(5)(c)` · Revocation is always available; extension never is
23	Subsistence allowance for the first 90 days?	Show**50% of pay plus DA, less the deductions directed in the suspension order**	`FR 53` · Neither full pay nor a flat sum
24	And after 90 days?	Show**75% of pay plus DA**	`FR 53` · The higher rate begins on the 91st day

Set 3 — Penalties (25–36)

#	Question	Answer	Rule · Trap
25	Name the minor penalties.	Show**Censure; withholding of promotion; recovery of pecuniary loss; one-stage reduction for up to three years; withholding of increments**	`11(i)–(iv)` · The one-stage reduction is minor only if non-cumulative and pension-neutral
26	Name the major penalties.	Show**Reduction to a lower stage; reduction to a lower time-scale, grade, post or service; compulsory retirement; removal; dismissal**	`11(v)–(ix)` · A major penalty without an inquiry is void unless rule 19 is validly invoked
27	Reduction under 11(v) or 11(vi) — what is the difference?	Show**11(v) is a lower stage within the same time-scale; 11(vi) is a lower time-scale, grade, post or service**	`11(v), 11(vi)` · Directions on increments and future effect are part of the penalty
28	When is an inquiry mandatory even though withholding of increments is a minor penalty?	Show**Where it exceeds three years, is cumulative, or is likely to affect pension adversely**	`16(1-A)` · Minor penalty, major procedure
29	What must be established before recovery under 11(iii)?	Show**A pecuniary loss to Government caused by negligence or breach of orders, and its quantum**	`11(iii)` · Recovery is compensation, not a fine
30	Dismissal or removal — the practical difference?	Show**Dismissal ordinarily disqualifies from future Government employment; removal does not**	`11(viii), (ix)` · Both may carry pension consequences, but under the pension rules, not rule 11
31	Does compulsory retirement bar future Government employment?	Show**No**	`11(vii)` · It is nonetheless a major penalty requiring an inquiry
32	Disproportionate assets or gratification is proved. What penalty must follow?	Show**Removal or dismissal; any other penalty only in an exceptional case, with special reasons recorded**	`provisos to 11` · The discretion is narrow and must be visible on the order
33	Stoppage at the efficiency bar — is it a penalty?	Show**No — it is an administrative consequence of unfitness to cross the bar**	`Explanation (ii)` · Distinguish it from withholding of increments
34	Non-promotion after consideration — a penalty?	Show**No**	`Explanation (iii)` · Withholding of promotion under 11(ii) is a different animal
35	Termination of a temporary servant under rule 5(1) of the Temporary Service Rules — a penalty?	Show**No — expressly excluded**	`Explanation (viii)(b) to r.11` · Only while the servant is genuinely temporary — never a cure for a punitive motive

36	Compensation recommended by a Complaints Committee in a harassment case — a penalty?	Show**No**	`Explanation (ix)` · Inserted by the Third Amendment of 19.11.2014

Set 4 — Procedure and timelines (37–48)

#	Question	Answer	Rule · Trap
37	What must accompany the articles of charge?	Show**A statement of imputations with the relevant facts, a list of documents and a list of witnesses**	`14(3)` · A vague imputation is a defect of substance, not of form
38	Time allowed for the written statement of defence?	Show**15 days**	`14(4)` · Extendable 15 days at a time, on recorded reasons
39	Overall cap on the defence?	Show**45 days from receipt of the charge sheet**	`14(4)` · Three extensions of 15 days cannot together exceed 45 days
40	Within what time must the employee appear before the inquiry authority?	Show**10 working days from its receipt of the charge sheet, extendable by 10 days**	`14(7)` · Working days — the calendar count is irrelevant
41	May the employee be represented by a lawyer?	Show**Only where the Presenting Officer is a legal practitioner, or the disciplinary authority permits**	`14(8)` · A retired Government servant may assist, subject to the conditions in 14(8)(b)
42	Adjournment at the Presenting Officer's request?	Show**Three clear days**	`14(15)` · Clear days exclude the day of adjournment and the day fixed
43	Time to inspect the documents listed with the charge sheet?	Show**Five days, extendable by five**	`14(11)(i)` · Sits inside the 30-day adjournment in 14(11)
44	Time to produce other documents in the Government's possession?	Show**One month from requisition, or a certificate of non-availability**	`14(13)` · The employee must show relevance
45	By when must copies of witness statements be supplied?	Show**Not later than three days before that witness is examined**	`Note to 14(11)` · Late supply is curable only if no prejudice follows
46	Time to complete the inquiry and submit the report?	Show**Six months from receipt of its order of appointment, extendable six months at a time for recorded reasons**	`14(24)` · The 18-month overall figure is an administrative target, not the rule
47	Time to represent against the inquiry report?	Show**15 days**	`15(2)` · Whether or not the report is favourable
48	Is there a second show-cause on the penalty proposed?	Show**No — deleted for major penalties**	`⊘ pre-2014 r.15; Second Amendment 31.10.2014` · The opportunity now attaches to the report and to the Commission's advice

Set 5 — Appeals, revision and review (49–60)

#	Question	Answer	Rule · Trap
49	Must a copy of the Commission's advice be given to the employee?	Show**Yes, with 15 days to represent against it**	`15(3)(b), 16(1)(d)` · r.32, which had required the supply, was omitted in 2014 — the duty now sits in r.15(3)(b)

50	What is the procedure for imposing a minor penalty?	Show**Notice of the proposal and imputations; representation; inquiry if the authority considers it necessary; consultation where required; finding on each imputation**	`16(1)(a)–(e)` · An inquiry becomes compulsory under 16(1-A) in three situations
51	Which orders cannot be appealed?	Show**An order of the President; an interlocutory or step-in-aid order other than suspension; an order of the inquiry authority in the inquiry**	`22` · Suspension is expressly carved out of the interlocutory exclusion
52	Does an appeal lie against an order of suspension?	Show**Yes**	`23(i)` · The appeal is distinct from a request to revoke under 10(5)(c)
53	Does an appeal lie against an order refusing a pensionary benefit?	Show**Yes — an order denying or varying pay, allowances, pension or conditions of service to disadvantage is appealable**	`23(iv)` · So is an order interpreting a rule to the employee's disadvantage
54	Limitation for an appeal?	Show**45 days from the date the order is delivered to the appellant**	`25` · From delivery — not from the date the order bears
55	Can an appeal filed late be entertained?	Show**Yes, if the appellate authority is satisfied that there was sufficient cause**	`proviso to 25` · The satisfaction must appear on the order
56	Form and contents of an appeal?	Show**Separate, in the appellant's own name, complete in itself, no disrespectful language, a copy to the authority that made the order**	`26` · That authority must forward the records without avoidable delay
57	Powers of the appellate authority on a penalty appeal?	Show**Confirm, reduce, enhance or set aside, with reasons**	`27(2)` · On an appeal against suspension it may only confirm or revoke
58	What must precede enhancement in appeal?	Show**A reasonable opportunity to represent against the proposed enhancement**	`27(2)(iv)` · Enhancement without that opportunity is void
59	Who may revise an order in the Indian Audit and Accounts Department?	Show**The Comptroller and Auditor-General, at any time**	`29(1)(ii)` · That is revision — it is not an appellate power
60	Who may review, and on what ground?	Show**The President only, on new material or evidence that was not available and changes the nature of the case**	`29-A` · An appellate authority cannot review; it can revise within six months

Part 2 — L2 standard cases (44)

L2-01 · The defence that arrived on day 54
8 marks

Facts. Shri A, an Assistant Accounts Officer, was served with articles of charge on 12.03.2026. He asked for time on 26.03.2026, which the disciplinary authority allowed to 11.04.2026. On 10.04.2026 he asked again, and was allowed time to 26.04.2026. On 05.05.2026 he filed a 42-page written statement of defence with 19 annexures. The disciplinary authority rejected it as time-barred and appointed an inquiry authority the same day, recording that the employee had defaulted.

Record / key dates

Item	Date / period	Note
Charge sheet delivered	12.03.2026	runs the 15-day clock
First extension	to 11.04.2026	15 days, allowed
Second extension	to 26.04.2026	within the overall cap
Defence filed	05.05.2026	9 days after the cap expired
Inquiry authority appointed	05.05.2026	same day as rejection

Questions

1. What is the last date on which a written statement of defence could lawfully be filed?
2. Was the disciplinary authority right to reject the defence of 05.05.2026?
3. May the inquiry now proceed, and on what record?
4. What should the disciplinary authority do with the 19 annexures?

Solution — step by step

↑ Back to question

Decision path

Charge sheet 12.03.2026 → 15 days → extensions of 15 days at a time → overall cap 45 days → cap expires 26.04.2026 → late defence ≠ nullity of inquiry

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether a defence filed after the overall cap can be rejected and the inquiry continued	14(4)	**1**
The cap	45 days from receipt: 12.03.2026 + 45 days = **26.04.2026**; the extensions to 11.04 and 26.04 both fall inside it	14(4)	**2**
No further extension	The proviso forbids an extension that takes the total beyond 45 days; a third request cannot be allowed, however reasonable	14(4), proviso	**2**
Effect of rejection	Rejection of the late defence is lawful; the inquiry is not vitiated merely because the defence was refused	14(4), 14(5)(b)	**1**
But the record	The authority must record the default, the dates of service and each extension — the order of 05.05.2026 does this	14(5)(b), 14(20)	**1**
The annexures	They must still be placed on the inquiry record and considered as defence material at the appropriate stage; refusing to look at them at all is a prejudice argument waiting to succeed	14(16)–(19)	**1**
	Total		**8**

Common wrong answers

- **“The delay is condonable under rule 31.”** Rule 31 is about time-limits prescribed by the rules for authorities, not about the employee's right to file a defence beyond the cap.
- **“The inquiry is void because the defence was not taken.”** The rule expressly contemplates proceeding where no defence is submitted.
- **“45 days runs from the date of the charge sheet.”** It runs from **receipt** by the employee.

Answer: The last valid date was **26.04.2026** (45 days from 12.03.2026); the rejection is lawful and the inquiry may proceed, but the defence and its annexures must be taken on the inquiry record and considered before findings.

Rule tags: 14(4) 14(5) 14(20)

↑ Back to question

L2-02 · Ex parte after a single default
8 marks

Facts. The charge sheet against Smt B was received by the inquiry authority on 03.08.2026. She appeared on 14.08.2026, pleaded not guilty, and was given a list of witnesses. On 31.08.2026 she appeared without her defence assistant and sought an adjournment, which was allowed to 07.09.2026. She did not appear on 07.09.2026 and sent no intimation. The inquiry authority recorded her absence, examined the four departmental witnesses ex parte, and closed the evidence. She then appeared on 21.09.2026 asking to cross-examine the witnesses. The inquiry authority refused.

Record / key dates

Item	Date / period	Note
Charge sheet received by I.A.	03.08.2026	10 working days run from here
First appearance	14.08.2026	plea recorded: not guilty
Adjournment allowed	to 07.09.2026	at her request
Default	07.09.2026	recorded
Evidence taken ex parte	07.09.2026	four witnesses
Request to cross-examine	21.09.2026	refused

Questions

1. Was the ex parte course open to the inquiry authority?
2. Could she claim cross-examination as of right after the default?
3. What should the inquiry authority have recorded before closing the evidence?
4. If the report is adverse, what is her best ground?

Solution — step by step

↑ Back to question

Decision path

Appearance within 10 working days → default on 07.09.2026 → r.14(20) ex parte → record the default → evidence of the P.O. → report + supply to employee

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Validity of an ex parte inquiry after one default	14(20)	**1**
Appearance	Notice for 14.08.2026 fell within 10 working days of 03.08.2026; she appeared and pleaded, so r.14(7)–(9) are satisfied	14(7), 14(9)	**1**
The default	Non-appearance on 07.09.2026 after a granted adjournment is a default within r.14(20); the authority may proceed ex parte	14(20)	**2**
The requirement	Before closing, the authority should record that notice was served, that the default was wilful or unexplained, and that the Presenting Officer's evidence was taken in her absence	14(11), 14(20)	**2**
Cross-examination	The right to cross-examine is exercisable when the evidence is taken; after a valid ex parte closure it is not available as of right, but the authority may permit recall to cure prejudice	14(14)	**1**
Consequence	The inquiry is valid; her remedy is to show prejudice or to challenge the penalty, and the report must still be supplied to her with 15 days to represent	15(2)	**1**
	Total		**8**

Common wrong answers

- **“An ex parte inquiry is void.”** Rule 14(20) expressly permits it.
- **“She must be given a fresh inquiry because she asked to cross-examine.”** The request came after a valid closure; permission would be discretionary.
- **“The evidence of the witnesses is inadmissible.”** It was recorded in the inquiry; its weight is for the disciplinary authority.

Answer: The ex parte inquiry was valid under **r.14(20)** provided the default and service were recorded; her request to cross-examine after closure is not a matter of right, and the report must be supplied with **15 days** to represent.

Rule tags: 14(7) 14(14) 14(20) 15(2)

↑ Back to question

L2-03 · A lawyer at the inquiry table
8 marks

Facts. Shri C, a Senior Accounts Officer facing a major-penalty inquiry, asked to be represented by an advocate. The Presenting Officer appointed by the disciplinary authority is a Deputy Secretary with a law degree but is not enrolled as an advocate. The disciplinary authority refused permission, recording that the charges relate to financial irregularities within the employee's own knowledge and that no legal issue arises. Shri C then asked that a retired Section Officer, who had earlier assisted in two inquiries, be allowed to assist him.

Record / key dates

Item	Date / period	Note
Charge	irregular payment of ₹18,40,000	major penalty
Presenting Officer	Deputy Secretary, law degree	not a legal practitioner
Request 1	advocate	refused
Request 2	retired Section Officer	pending

Questions

1. Was the refusal of a legal practitioner correct?
2. May a retired Government servant assist, and on what conditions?
3. If the Presenting Officer is later replaced by a prosecutor on the panel of the Department, what follows?
4. What must the inquiry authority record on the second request?

Solution — step by step

↑ Back to question

Decision path

r.14(8)(a) → is the P.O. a legal practitioner? → no → discretion of the D.A. → record reasons → retired servant — r.14(8)(b)

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Right to representation in a major-penalty inquiry	14(8)	**1**
The rule	A legal practitioner may be engaged only where the Presenting Officer is a legal practitioner or the disciplinary authority permits, having regard to the circumstances	14(8)(a)	**2**
Here	A law degree without enrolment does not make the Presenting Officer a legal practitioner; refusal was therefore within power if reasons were recorded	14(8)(a)	**2**
Retired servant	Permissible under r.14(8)(b) subject to the conditions prescribed by the President's order; the authority should apply the conditions, not refuse as a class	14(8)(b)	**2**
If the P.O. changes	Appointment of a legal practitioner as Presenting Officer revives the employee's right to engage one; continuing without offering it is a procedural defect	14(8)(a)	**1**
	Total		**8**

Common wrong answers

- **“A law degree makes the Presenting Officer a legal practitioner.”** Enrolment, not education, is the test.
- **“Legal representation is a fundamental right in departmental inquiries.”** It is a regulated facility, not an unqualified right.
- **“A retired Government servant can never assist.”** Rule 14(8)(b) expressly allows it on conditions.

Answer: The refusal of an advocate was within power because the Presenting Officer is not a legal practitioner and reasons were recorded; a retired Government servant may assist under **r.14(8)(b)** on the prescribed conditions, and if a legal practitioner is later appointed as Presenting Officer the employee must be offered the same facility.

Rule tags: 14(8)

↑ Back to question

L2-04 · Nineteen documents and a non-availability certificate
9 marks

Facts. Smt D sought inspection of the documents listed with the charge sheet. The list named 23 documents; 19 were produced for inspection on the date fixed. Of the remaining four, the office issued a non-availability certificate for two and said the other two were “in a sealed cover in another division”. She sought production of the two, and of the statements of two witnesses whose names were in the list. The inquiry authority refused, recording that the charge could be proved from the 19 documents produced, and closed the evidence. Her defence is that the two withheld

documents would show that the payment was authorised by a superior.

Record / key dates

Item	Date / period	Note
Documents listed	23	—
Produced for inspection	19	within 5 days
Non-availability certificate	2	r.14(13)
Withheld	2	“sealed cover, another division”
Witness statements sought	2	not supplied
Inquiry closed	same day	refusal recorded

Questions

1. Was the inquiry authority bound to secure the two withheld documents?
2. What is the consequence of refusing them where the defence says they are exculpatory?
3. Was the refusal to supply the witness statements a defect?
4. What is the correct course at this stage?

Solution — step by step

↑ Back to question

Decision path

listed documents → r.14(11)(i) inspection → r.14(13) production or certificate → withheld without certificate → prejudice asserted and specific → report must address it

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Non-production of listed documents and non-supply of witness statements	14(11), 14(13)	**1**
Inspection	The 19 documents produced within the permitted time satisfy r.14(11)(i) as to those documents	14(11)(i)	**1**
Production	For documents in the Government's possession but not produced, r.14(13) permits only production or a non-availability certificate; “in a sealed cover in another division” is neither	14(13)	**2**
Witness statements	Copies of the statements of listed witnesses must be furnished not later than three days before examination; refusal with no reason is a defect	Note to 14(11)	**2**
Prejudice	The defence identifies the documents and what they would establish; that is a concrete claim of prejudice, not a bare assertion, and it must be answered in the report	B. Karunakar (1993); Chandrama Tewari (1988)	**2**
Course	The report must record a finding on the prejudice claim; if it is accepted, the inquiry reopens for those documents only	15(1)	**1**
	Total		**9**

Common wrong answers

- **“Every non-supply vitiates the inquiry.”** Prejudice must be shown, and here it must be articulated document by document.
- **“A sealed cover is a lawful ground of refusal.”** Only production or a non-availability certificate is contemplated.
- **“Witness statements can be supplied at the hearing.”** The rule fixes three days before examination.

Answer: The refusal of the two documents was contrary to **r.14(13)** and the refusal of the statements to the **Note to r.14(11)**; because the defence has shown specific prejudice, the report must decide that claim, and if it is accepted the inquiry reopens on those documents.

Model answer (exam style). Smt D's inquiry is governed by rule 14 of the CCS (CCA) Rules, 1965. Inspection of the listed documents was offered within the time allowed by rule 14(11)(i), and for two documents a non-availability certificate was issued as rule 14(13) permits. For two documents, however, neither production nor a certificate was furnished: the reason recorded — that they lie in a sealed cover in another division — is not a ground recognised by rule 14(13), which requires production or a certificate of non-availability within one month of requisition. Copies of the statements of listed witnesses stand on a different footing: the Note to rule 14(11) requires them to be furnished not later than three days before the witness is examined, and no reason for refusal appears. The consequence is not automatic nullity. Following B. Karunakar (1993) and Chandrama Tewari (1988), non-supply vitiates the proceeding only where prejudice is shown; here the defence has identified the documents and the use it would make of them, which is a specific claim and not a bare assertion. The inquiry report must therefore decide that claim. If it is accepted, the inquiry reopens for production and inspection of those two documents and for the supply of the statements, and the employee must be heard on them before findings are recorded.

Rule tags: 14(11) 14(13) 14(14) 15(1)

↑ Back to question

L2-05 · Three clear days — and a witness nobody listed
8 marks

Facts. At the hearing on 12.10.2026 the Presenting Officer closed the departmental evidence. On 19.10.2026 he applied to examine one more witness, a cashier whose name was not in the list served with the charge sheet, saying she had been traced late. The inquiry authority allowed the application and fixed 27.10.2026. The employee objected that he had received no notice and no statement of the new witness. The authority recorded that he would have "ample time" and proceeded on 27.10.2026.

Record / key dates

Item	Date / period	Note
Departmental evidence closed	12.10.2026	—
Application for new witness	19.10.2026	not in the original list
Date fixed	27.10.2026	8 calendar days later
Statement of new witness	not supplied	—
Objection	recorded	overruled

Questions

1. What does r.14(15) require before a newly introduced witness is examined?
2. Was the interval of eight calendar days sufficient?
3. Does the absence of a statement of the new witness matter?
4. What order should the inquiry authority have passed?

Solution — step by step

↑ Back to question

Decision path

new evidence after closure → r.14(15) → 3 clear days → plus statement 3 days before → otherwise recall or exclude

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Introduction of evidence not in the list after the departmental case closed	14(15)	**1**
The rule	Where the Presenting Officer applies to produce evidence not included in the list, the inquiry authority must adjourn for not less than three clear days	14(15)	**2**
Clear days	27.10.2026 is the eighth calendar day after 19.10.2026, so three clear days are available on the face of the record; the objection on that ground fails	14(15)	**2**
But the statement	The requirement in the Note to r.14(11) — copies not later than three days before examination — applies to every listed or newly introduced witness; a witness with no statement leaves nothing to cross-examine against	Note to 14(11)	**2**
Cure	The authority should adjourn, direct supply of the statement, and then examine the witness; the 27.10.2026 evidence is irregular but curable by recall	14(15); B. Karunakar (1993)	**1**
	Total		**8**

Common wrong answers

- **"Three clear days means three working days."** Clear days exclude both termini; they need not be working days.
- **"A new witness can never be introduced."** Rule 14(15) expressly contemplates it.
- **"The evidence is void."** It is irregular and curable, not void, absent prejudice.

Answer: The three-clear-day requirement in **r.14(15)** was met, but examining a new witness without supplying a copy of her statement breached the **Note to r.14(11)**; the evidence is irregular and curable by adjourning, supplying the statement and recalling the witness.

Rule tags: 14(15) 14(11) 14(14)

↑ Back to question

L2-06 · The inquiry that ran into its second year
9 marks

Facts. The inquiry authority was appointed on 09.01.2026. No extension was sought. The report was signed on 14.10.2026. The record shows sittings on 12 of the 40 weeks, three adjournments sought by the Presenting Officer, two by the employee, and one period of five months in which nothing happened because the authority was on

deputation. The employee's defence is that the delay itself vitiates the inquiry; the department says the timeline is directory.

Record / key dates

Item	Date / period	Note
Appointment of I.A.	09.01.2026	6 months run from here
Six months expire	09.07.2026	no extension sought
Report signed	14.10.2026	3 months beyond
Sittings	12 in 40 weeks	—
Inactivity	5 months	I.A. on deputation

Questions

1. What is the statutory limit for completing the inquiry, and from when does it run?
2. What was the last date for the report without an extension?
3. Is the delay fatal?
4. What is the employee's best argument, and what must the disciplinary authority record?

Solution — step by step

↑ Back to question

Decision path

r.14(24) → 6 months from appointment → expired 08.07.2026 → no extension → delay ≠ automatic nullity → prejudice must be shown

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Completion of the inquiry beyond the statutory period, without extension	14(24)	**1**
The clock	Six months from 09.01.2026 ended on **09.07.2026**; an extension had to be sought before expiry, in writing, with reasons, and could be up to six months at a time	14(24)(a)–(c)	**2**
Breach	The report of 14.10.2026 is three months beyond the limit, and no extension order exists; the authority acted outside the rule	14(24)	**2**
Consequence	The limit is directory in form; delay does not automatically vitiate unless it has caused prejudice to the defence — a proposition to be argued, not assumed	14(24); Ajay Kumar Choudhary (2015), by analogy	**2**
Prejudice here	Five months of inactivity by an authority on deputation, with witnesses' memories ageing and one witness since retired, is material prejudice the employee can point to	14(24)	**1**
Cure and recording	The disciplinary authority should record its view on prejudice before acting on the report; a fresh inquiry is not the automatic remedy	15(1)	**1**
	Total		**9**

Common wrong answers

- **“The inquiry is void because the six months expired.”** The limit is directory; prejudice decides.
- **“An extension can be granted later with retrospective effect.”** The rule requires it before expiry, for recorded reasons.
- **“The 18-month target is the statutory limit.”** That is an administrative target, not the rule.

Answer: Six months from 09.01.2026 ended on **09.07.2026**; the report of 14.10.2026 was outside r.14(24) with no extension, but the breach vitiates only on proof of prejudice — which the employee has a substantial argument for, given five months of inactivity.

Rule tags: 14(24) 15(1)

↑ Back to question

L2-07 · The plea that was never recorded
9 marks

Facts. The charge sheet reached the inquiry authority on 22.04.2026; the first hearing was on 05.05.2026, within the ten working days allowed by r.14(7) on any view of the May Day holiday. At that hearing the employee produced a written statement denying the charges and said he wished to be heard in person. The inquiry authority's order sheet for that date reads: “Charged officer present. He denies the charges. Case adjourned to 02.06.2026 for departmental evidence.” At the next hearing the Presenting Officer examined three witnesses. The employee cross-examined two and declined the third. The report records that “the charged officer pleaded not guilty”. No signed record of the plea

appears on the file, and the employee now says he never pleaded and was never asked.

Record / key dates

Item	Date / period	Note
First hearing	05.05.2026	denial noted, no signed plea
Adjourned to	02.06.2026	departmental evidence
Witnesses examined	3	two cross-examined
Report	—	records “not guilty”

Questions

1. What does r.14(9) require when the employee appears and does not admit the charges?
2. What is the effect of the missing signed record?
3. Can the defect be cured at this stage?
4. Does it matter that he cross-examined the witnesses?

Solution — step by step

↑ Back to question

Decision path

appearance → r.14(9) ask guilty or defence → record plea, sign, obtain signature → omission = irregular → cure by recording before findings

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Recording of the plea and its consequences	14(9)–(10)	**1**
The duty	The employee must appear within ten working days of the authority receiving the charge sheet; on appearance the authority must ask whether he is guilty or has a defence, and if he pleads guilty the plea must be recorded, signed and countersigned by him	14(9)	**2**
What happened	The order sheet records a denial, not an inquiry into the plea; there is no signed record. The duty under r.14(9) was not performed in the manner the rule requires	14(9)	**2**
Consequence	It is an irregularity in the record; since the employee participated, cross-examined and denied the charges, no prejudice arises from the absence of a signed plea, and the findings on the merits stand	14(9); B. Karunakar (1993)	**2**
Cure	Before the report is acted on, the authority should record the plea afresh on the basis of the order sheet, or note the denial expressly in the report	14(9)–(10), 14(23)	**1**
If he had pleaded guilty	The authority would still have to record findings on each charge after such evidence as it thinks fit, and act under r.15 — a plea is not the end of the case	14(5)(a), 14(10)	**1**
	Total		**9**

Common wrong answers

- **“A guilty plea ends the inquiry.”** Findings and r.15 still follow.
- **“The report is void.”** The omission is an irregularity in the record, and no prejudice is shown.
- **“The plea can be inferred from cross-examination.”** The rule requires it to be asked and recorded.

Answer: The inquiry authority failed to perform the duty under **r.14(9)** to ask and record the plea, but since the employee denied the charges and participated fully, the irregularity caused no prejudice and can be cured by recording the denial before the report is acted on.

Rule tags: 14(9) 14(10) 14(23)

↑ Back to question

L2-08 · The report, the disagreement and the missing note
9 marks

Facts. The inquiry authority found charge 1 not proved and charges 2 and 3 proved. The disciplinary authority, a Joint Secretary, disagreed on charge 1 and proposed to hold it proved. A copy of the report was supplied to the employee with a covering letter asking for his representation within 15 days. No reasons for the disagreement were communicated. The employee's representation says he “notes the conclusions”. The disciplinary authority then imposed a reduction to a lower stage for two years.

Record / key dates

Item	Date / period	Note
Report	charge 1 not proved; 2 and 3 proved	—
Disagreement	charge 1	tentative reasons not communicated

Report supplied	yes	15 days given
Representation	filed	does not address the disagreement
Penalty	reduction, two years	r.11(v)

Questions

1. What does r.15(2) require where the disciplinary authority disagrees with the report?
2. Does the employee's silence cure the omission?
3. What is the consequence for the finding on charge 1?
4. Can the penalty on charges 2 and 3 stand?

Solution — step by step

↑ Back to question

Decision path

report received → tentative reasons for disagreement → communicate to employee → 15 days → findings recorded → penalty

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Disagreement with the inquiry report and the opportunity on it	15(2)	**1**
The rule	The report must be supplied together with the authority's own **tentative reasons for disagreement**, and the employee may represent within 15 days	15(2)	**2**
Breach	The report was supplied but the tentative reasons were not; the employee was therefore never given the case he had to meet on charge 1	15(2)	**2**
Silence	A representation that fails to address an uncommunicated disagreement cannot amount to waiver; he could not have known the reasons	15(2)	**1**
Consequence	The finding on charge 1 is vitiated and must be re-made after communicating the reasons; the penalty, being a composite one influenced by that finding, cannot be sustained as it stands	15(2), 15(4)	**2**
What survives	The findings on charges 2 and 3 are untouched, and the disciplinary authority may re-impose a penalty on them after fresh consideration	15(4)–(6)	**1**
	Total		**9**

Common wrong answers

- **“The report alone is enough.”** Where the authority disagrees, its tentative reasons are part of the material that must be supplied.
- **“He did not object, so he waived it.”** Waiver requires knowledge.
- **“Only charge 1 is affected.”** A composite penalty must be reconsidered as a whole.

Answer: Failure to communicate the tentative reasons for disagreement breached **r.15(2)**; the finding on charge 1 must be re-made after supplying them, and the composite penalty must be reconsidered on the surviving findings.

Model answer (exam style). The disciplinary authority's power to differ from its inquiry authority is undoubted, but rule 15(2) of the CCS (CCA) Rules, 1965 makes the disagreement a matter of record before it is acted on: a copy of the report must be forwarded with the authority's own tentative reasons for disagreement on any article of charge, and the Government servant must be allowed fifteen days to represent. Here the report was supplied but the reasons for differing on charge 1 were not, so the employee was asked to answer a case whose basis he could not see. The fact that his representation did not deal with the disagreement cannot cure the omission, because waiver presupposes knowledge of what is waived. The finding on charge 1 is therefore vitiated and must be re-made after the tentative reasons are communicated and a fresh representation considered. The findings on charges 2 and 3 are unaffected, but the penalty of reduction for two years was imposed on the three charges as a whole and cannot stand unaltered; the authority must reconsider the penalty on the surviving findings, recording its reasons as rule 15(4) requires.

Rule tags: 15(2) 15(4) 15(6)

↑ Back to question

L2-09 · The show-cause that no longer exists
9 marks

Facts. A major-penalty order dated 30.09.2026 imposes compulsory retirement. The file shows: charge sheet, inquiry, report holding two charges proved, a copy of the report supplied on 12.08.2026 with 15 days to represent, a representation, and the order. It does not show any notice proposing the penalty or any representation on the proposed penalty. The employee's appeal says the order is void because he was never heard on the penalty. He cites a commentary that sets out rule 15 in its pre-2014 form.

Record / key dates

Item	Date / period	Note
Report	two charges proved	—
Report supplied	12.08.2026	15 days given
Representation	filed 26.08.2026	considered
Proposed-penalty notice	none	pre-2014 requirement
Order	30.09.2026	compulsory retirement

Questions

1. What did rule 15 require before 31.10.2014, and what does it require now?
2. Is the absence of a proposed-penalty notice a defect?
3. How should the appellate authority deal with the commentary relied on?
4. Is the penalty otherwise sustainable?

Solution — step by step

↑ Back to question

Decision path

major penalty → inquiry under r.14 → report → r.15(2) representation → r.15(6): no further opportunity → order valid

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether a major penalty requires a second show-cause on the proposed penalty	15(2), 15(6)	**1**
The obsolete rule	Before the Second Amendment of 31.10.2014, rule 15 required a notice of the penalty proposed and a representation on it; the rule was recast with effect from that date	⊘ pre-2014 r.15	**2**
The current rule	After the report, the authority supplies it with any disagreement note, considers the representation, records findings, and may impose a major penalty; r.15(6) expressly dispenses with a further opportunity	15(2), 15(4), 15(6)	**2**
Application	The report was supplied, 15 days were given, a representation was filed and considered; the requirements are satisfied and no proposed-penalty notice was needed	15(2), 15(4)	**2**
The appeal	The ground fails; the commentary is outdated and cannot be followed against the text	15(6)	**1**
Residual check	The authority must still have applied its mind and recorded reasons; if the order is a bare conclusion, that — not the absent notice — is the appealable defect	15(4), 17	**1**
	Total		**9**

Common wrong answers

- **“Natural justice always requires a show-cause on the penalty.”** For major penalties the statutory scheme now places the opportunity at the report stage.
- **“The commentary is authority.”** A commentary cannot displace the text as amended.
- **“Without the second show-cause the order is void.”** The requirement no longer exists.

Answer: No proposed-penalty notice was required: after the 2014 amendment the opportunity is on the inquiry report under **r.15(2)**, and **r.15(6)** dispenses with any further representation on the penalty. The appeal ground therefore fails.

Rule tags: 15 15(6) 17

↑ Back to question

L2-10 · The advice nobody showed him
10 marks

Facts. The disciplinary authority proposed to impose removal on an officer holding a Group ‘A’ post and referred the case to the Union Public Service Commission. The Commission advised that the penalty be reduced to withholding of one increment for two years. The disciplinary authority accepted the advice and passed the order on 18.07.2026. A copy of the advice was placed on the file but not sent to the officer. He learned of it from the order, which recites that the Commission was consulted.

Record / key dates

Item	Date / period	Note
Reference to UPSC	12.05.2026	consultation necessary
Advice	reduction to one increment, 2 years	—
Advice supplied to employee	no	only on the file
Order	18.07.2026	in terms of the advice

Questions

1. Was consultation with the Commission necessary?
2. What does the rule require after the advice is received?
3. What is the consequence of not supplying it?
4. What should the disciplinary authority do now?

Solution — step by step

↑ Back to question

Decision path

consultation necessary → advice received → supply copy to employee → 15 days to represent → then order

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Supply of the Commission's advice before the penalty	15(3)(b), 32	**1**
Consultation	Consultation is required where the rules so provide; once made, the advice becomes part of the material on which the order rests	15(3)(a)	**2**
The duty	A copy of the advice must be forwarded to the employee, who may represent within 15 days; rule 32 states the general obligation	15(3)(b), 32	**2**
Breach	The advice was not supplied, so the officer was denied the opportunity to meet the very material that decided the penalty	15(3)(b)	**2**
Consequence	The order is vitiated to that extent; the position follows S.K. Kapoor v. Union of India (2010) and is now reflected in the rules	15(3)(b); S.K. Kapoor (2010)	**2**
Cure	Supply the advice, allow 15 days, consider the representation and pass a fresh order — the penalty need not be re-agitated on the merits	15(3)(b), 15(4)	**1**
	Total		**10**

Common wrong answers

- **“The advice is confidential.”** The rule requires it to be supplied.
- **“He could have asked for it.”** The duty is on the authority.
- **“The whole inquiry is void.”** Only the stage after the advice is affected; the inquiry stands.

Answer: Not supplying the Commission's advice breached **r.15(3)(b)** (and, for a minor penalty, **r.16(1)(d)**); the order is vitiated and must be re-made after supplying the advice and allowing **15 days** to represent.

Rule tags: 15(3) 16(1)

↑ Back to question

L2-11 · Four years of withheld increments
10 marks

Facts. A Group ‘C’ clerk was imposed the penalty of withholding of two increments for four years, without cumulative effect, by an order of 21.04.2026. He had been given a notice of the proposal and imputations on 02.02.2026, filed a representation on 20.02.2026, and was heard in person on 10.03.2026. No inquiry was held. The order records that an inquiry was “not considered necessary”. The penalty will postpone his next increment and, on his own calculation, reduce his pensionable average emoluments.

Record / key dates

Item	Date / period	Note
Proposal and imputations	02.02.2026	r.16(1)(a)
Representation	20.02.2026	considered
Personal hearing	10.03.2026	—
Inquiry	none	“not considered necessary”
Penalty	two increments, 4 years	r.11(iv)

Questions

1. Is withholding of increments a minor penalty?
2. Was an inquiry mandatory in these facts?
3. What is the effect of the four-year duration and the pension consequence?
4. What is the consequence of the omission?

Solution — step by step

↑ Back to question

Decision path

r.11(iv) minor → but r.16(1-A) → >3 years → inquiry → also pension effect → inquiry mandatory → order vitiated

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks

Issue	Whether an inquiry was mandatory for withholding of increments	16(1), 16(1-A)	**1**
Classification	Withholding of increments is a minor penalty under r.11(iv), and minor penalties ordinarily follow the r.16 procedure without an inquiry	11(iv), 16(1)	**1**
The trigger	An inquiry in the manner of r.14(3)–(23) is mandatory where the withholding is for more than three years, or is cumulative, or is likely to affect pension adversely	16(1-A)	**3**
Application	Four years exceeds three, and the order itself postpones the next increment with a pension effect; the trigger operates on either limb	16(1-A)	**2**
Consequence	The order is vitiated for want of the mandatory inquiry; the notice-and-representation route under r.16(1)(a) is not a substitute	16(1-A)	**2**
Course	The authority may re-open the case and hold the inquiry; it cannot cure the defect by a fresh personal hearing alone	16(1-A), 16(1)(b)	**1**
	Total		**10**

Common wrong answers

- **"It is a minor penalty, so no inquiry is needed."** Rule 16(1-A) makes the procedure major for certain minor penalties.
- **"Four years is within the three-year limit because it is not cumulative."** Duration and cumulation are separate triggers.
- **"A personal hearing cures it."** The rule requires an inquiry in the manner of r.14(3)–(23).

Answer: Although withholding of increments is a minor penalty, the four-year duration and the pension effect attracted **r.16(1-A)**; no inquiry was held, so the order of 21.04.2026 is vitiated and the case must be re-opened.

Rule tags: 11 | 16 | 16(1-A)

↑ Back to question

L2-12 · Censure recorded in the confidential roll
8 marks

Facts. On 06.06.2026 the controlling officer recorded a censure in Shri E's confidential roll for a delay in reconciling a ledger, after an oral discussion. No written proposal, no statement of imputations and no opportunity of representation was given. The entry says: "Censured orally on 06.06.2026; recorded for future reference." Shri E came to know of it when his promotion file was considered in September 2026.

Record / key dates

Item	Date / period	Note
Oral discussion	02.06.2026	no record
Censure recorded	06.06.2026	no notice, no representation
Knowledge	September 2026	promotion file
Limitation for appeal	45 days	from delivery of the order

Questions

1. Is a censure a penalty, and what procedure does it require?
2. Does an oral censure become a penalty when it is recorded?
3. From when does the appeal period run?
4. What is the remedy?

Solution — step by step

↑ Back to question

Decision path

censure = r.11(i) → r.16(1)(a) notice + representation → no notice → order void → appeal from communication

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether censure can be imposed without notice and representation	11(i), 16(1)(a)	**1**
Classification	Censure is a minor penalty under r.11(i) and attracts the r.16 procedure	11(i), 16(1)	**1**
The requirement	The employee must be informed in writing of the proposal and the imputations and given a reasonable opportunity to represent; a finding must be recorded on each imputation	16(1)(a), (c), (e)	**2**
Application	An oral discussion followed by an entry in the confidential roll satisfies neither limb; the entry is an order imposing a penalty without the procedure	16(1)	**2**
Limitation	The order was never communicated; limitation runs from delivery, and the 45 days began when the entry was made known to him in September 2026	25, 30	**1**

Remedy	He may appeal under r.23(ii); the penalty is liable to be set aside for want of procedure, leaving the administration free to commence a regular proceeding	23(ii), 16(1)	**1**
	Total		**8**

Common wrong answers

- **“A censure is only a warning, so no procedure is needed.”** It is a penalty; the procedure is short, not absent.
- **“Recording an oral censure is a formality.”** The record is the order.
- **“The appeal is time-barred.”** Limitation runs from delivery, which had not occurred.

Answer: Censure is a penalty under **r.11(i)** and required the **r.16(1)(a)** notice and opportunity; the entry is void for want of procedure, and limitation for the appeal ran from its communication in September 2026.

Rule tags: 11 16 25 30

↑ Back to question

L2-13 · Two officials, one transaction
9 marks

Facts. A payment of ₹9,60,000 was made without sanction. The Drawing Officer, Smt F (Group ‘B’), verified it; the cashier, Shri G (Group ‘C’), disbursed it. Both face the same imputations. The disciplinary authority competent to dismiss both is the Joint Secretary (Administration). She proposes a common proceeding, with herself as the disciplinary authority for both. The appointing authority of Smt F is the Deputy Secretary; of Shri G, the Under Secretary. Smt F objects that the proceeding is bad because different authorities are involved and because she is a Group ‘B’ officer while the cashier is Group ‘C’.

Record / key dates

Item	Date / period	Note
Transaction	₹9,60,000 unsanctioned	same facts
Smt F	Group ‘B’, Drawing Officer	appointing authority: Deputy Secretary
Shri G	Group ‘C’, cashier	appointing authority: Under Secretary
Proposed DA	Joint Secretary	competent to dismiss both

Questions

1. What does rule 18 require for a common proceeding?
2. Is the Joint Secretary competent as the common disciplinary authority?
3. Can the two receive different penalties in one proceeding?
4. Is Smt F's objection about groups well founded?

Solution — step by step

↑ Back to question

Decision path

same case, two servants → r.18(1) common proceeding → authority competent to dismiss all → one authority conducts → penalties may differ

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Common proceedings against two Government servants concerned in one case	18(1)–(3)	**1**
The condition	Where two or more Government servants are concerned in any case, an authority competent to impose dismissal on all of them may order a common proceeding	18(1)	**2**
Competence here	The Joint Secretary is competent to dismiss both, so the condition is satisfied even though the appointing authorities differ	18(1), 18(2)	**2**
Groups	The difference of groups is irrelevant once a single authority is competent for both; Explanation II to r.12 deals with a servant promoted to a higher group, not with joint proceedings	18(2); r.12	**2**
Different penalties	A common proceeding is a common inquiry, not a common penalty; the authority may impose different penalties on the two, for recorded reasons	18(3), 15(6)	**1**
Objection	Smt F's objection fails; her remedy on the merits is an appeal to the appellate authority competent for her	18, 23–24	**1**
	Total		**9**

Common wrong answers

- **“A common proceeding needs identical appointing authorities.”** It needs one authority competent to dismiss all.
- **“A common proceeding must end in identical penalties.”** The inquiry is common; the penalty is individual.
- **“The Group difference makes it invalid.”** Competence is what matters.

Answer: A common proceeding is competent under **r.18(1)** because the Joint Secretary can dismiss both; differing groups and appointing authorities do not bar it, and the penalties may differ if reasons are recorded.

Rule tags: 18 12 15

↑ Back to question

L2-14 · Reasons written a month after the order
10 marks

Facts. A Superintendent of Central Excise was dismissed on 22.01.2026 under rule 19(ii). The order records only that "the disciplinary authority is satisfied that it is not reasonably practicable to hold an inquiry". On 26.02.2026, after the dismissal, the authority issued a detailed note explaining that two witnesses had turned hostile and one had threatened the others. The employee's appeal relies on the absence of reasons in the order.

Record / key dates

Item	Date / period	Note
Dismissal order	22.01.2026	no reasons recorded
Explanatory note	26.02.2026	after the order, after the appeal
Ground relied on	19(ii)	not reasonably practicable
Statutory safeguard	Commission consultation	record silent

Questions

1. What must a disciplinary authority record before invoking rule 19(ii)?
2. Can the reasons be supplied later?
3. What is the standard of review of the satisfaction?
4. What follows for the order?

Solution — step by step

↑ Back to question

Decision path

r.19(ii) → satisfaction of the D.A. → reasons in writing → contemporaneous → reviewable for relevance → post-facto reasons fail

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Invocation of r.19(ii) without reasons in the order	19(ii)	**1**
The condition	The disciplinary authority must be satisfied, for reasons recorded by it in writing, that it is not reasonably practicable to hold an inquiry in the manner provided	19(ii)	**2**
Timing	The reasons must exist and be recorded when the power is exercised; a note issued five weeks later, after the appeal, is not a record of the satisfaction but a reconstruction of it	19(ii)	**2**
Review	The satisfaction is not immune: the reasons are open to examination for their relevance, and the court does not substitute its own satisfaction for the authority's	Tulsiram Patel (1985)	**2**
The note	Even taken at face value, hostile witnesses and a threat to witnesses would ordinarily call for protection of witnesses, not abandonment of the inquiry	19(ii)	**1**
Consequence	The order is unsustainable; the matter must be remitted for a regular inquiry, and the employee is entitled to consequential treatment	19(ii); 10(4)–(5)	**1**
Commission	Where consultation is necessary it must be made and the advice supplied — the record is silent on this	19, second proviso	**1**
	Total		**10**

Common wrong answers

- **"Rule 19 needs no reasons."** The sub-rule itself requires reasons in writing.
- **"Reasons can be given later to defend the order."** That is after-the-event justification.
- **"The court will decide whether an inquiry was practicable."** It examines relevance, not sufficiency.

Answer: Rule 19(ii) requires reasons recorded when the power is exercised; a note five weeks later cannot cure their absence, and on the facts the reasons would not have justified abandoning the inquiry, so the dismissal falls and a regular inquiry must be held.

Model answer (exam style). Rule 19(ii) of the CCS (CCA) Rules, 1965 allows the disciplinary authority to dispense with the inquiry only where it is satisfied, for reasons recorded by it in writing, that it is not reasonably practicable to hold one. The requirement is not decorative: the record is the means by which the discretion is kept within its purpose,

and the reasons must exist at the time the power is exercised. Here the order of 22.01.2026 records the satisfaction but no reason, and the explanation of 26.02.2026 — issued after the dismissal and after the appeal — is a reconstruction rather than a record. Following Union of India v. Tulsiram Patel (1985), the satisfaction is open to review for the relevance of the reasons given, though not for their sufficiency, and the court will not substitute its own view of what was practicable. Even taken at its highest, the later note describes witnesses who turned hostile and a threat to witnesses: those are grounds for protecting the inquiry, not for abandoning it. The dismissal is therefore unsustainable. The appropriate course is remission for a regular inquiry, and the authority must also satisfy the requirement of consultation, and supply the Commission's advice where consultation is necessary.

Rule tags: 19 19(ii) 15

↑ Back to question

L2-15 · The removal signed by the Head of Office
10 marks

Facts. Shri H, a Group ‘C’ Auditor, was removed from service by an order of the Head of Office dated 11.04.2026 after a regular inquiry. The appointing authority for the post is the Accountant General. The Head of Office is three levels below the Accountant General and is authorised to impose minor penalties on Group ‘C’ staff. The inquiry was otherwise regular, the charges were proved, and the penalty was endorsed by the Deputy Accountant General after the event.

Record / key dates

Item	Date / period	Note
Appointing authority	Accountant General	r.12(2)
Order passed by	Head of Office	r.12(3) powers only
Penalty	removal	r.11(viii), major
Endorsement	Deputy AG, after the order	post facto
Inquiry	regular	no procedural defect

Questions

1. Who was competent to impose removal?
2. Can the defect be cured by the endorsement?
3. Does the regularity of the inquiry save the order?
4. What is the consequence, and what may the department do next?

Solution — step by step

↑ Back to question

Decision path

major penalty → r.12(2) authority → never subordinate to appointing authority → r.12(4)(a) → order void → cannot be ratified

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Competence to impose a major penalty	12(2), 12(4)(a)	**1**
The rule	A major penalty must be imposed by the authority competent under r.12, and no penalty under r.11(v)–(ix) may be imposed by any authority subordinate to the appointing authority	12(2), 12(4)(a)	**2**
Application	The Head of Office is three levels below the appointing authority; his r.12(3) power is confined to minor penalties on Group ‘C’ staff	12(3), 12(4)(a)	**2**
Nullity	A penalty imposed by an authority without jurisdiction is void, not merely irregular; a regular inquiry cannot supply the want of competence	12(4)(a)	**2**
Ratification	Approval after the order cannot validate it; competence must exist when the order is made	12(4)(a)	**1**
Consequence	The order is set aside; the department may direct the competent authority to pass a fresh order on the existing inquiry record after applying its mind	12(2), 15(6)	**2**
	Total		**10**

Common wrong answers

- **“The Head of Office can impose any penalty on Group ‘C’ staff.”** Rule 12(3) stops at minor penalties.
- **“The Deputy AG's endorsement cures it.”** Ratification after the event is not competence.
- **“A good inquiry saves a bad order.”** Competence is jurisdictional.

Answer: Removal could be imposed only by the authority competent under **r.12(2)**; the Head of Office was barred by **r.12(4)(a)**, so the order is void and cannot be ratified — a fresh order by the competent authority is required.

Rule tags: 12 | 12(4) | 11

↑ Back to question

L2-16 · A minor penalty that the Head of Office could impose
9 marks

Facts. Smt I, a Group ‘C’ clerk in a subordinate office, was censured by the Head of Office on 03.03.2026 after notice and a representation. The appointing authority for her post is the Head of Department, who is two levels above. The Head of Office is not lower in rank than the authority specified under r.12(2) for that office. The employee's appeal says the order is void for want of competence. The departmental instruction in force authorises Heads of Office to impose minor penalties on Group ‘C’ staff of their office.

Record / key dates

Item	Date / period	Note
Post	Group ‘C’ clerk	—
Penalty	censure	r.11(i), minor
Order by	Head of Office	not lower in rank than r.12(2) authority
Procedure	notice + representation	r.16(1)(a)
Appointing authority	Head of Department	two levels above

Questions

1. Is the Head of Office competent to impose a minor penalty here?
2. Does it matter that the appointing authority is higher?
3. What is the effect of the departmental instruction?
4. Would the answer differ for removal?

Solution — step by step

↑ Back to question

Decision path

minor penalty → r.12(3) → Secretary or Head of Office → rank condition satisfied → competent → major penalty? different answer

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Competence of a Head of Office to impose a minor penalty on Group ‘C’ staff	12(3)	**1**
The rule	For Group ‘C’ (other than the Central Secretariat Clerical Service) and Group ‘D’, the Secretary of the Ministry or the Head of Office may impose a r.11 penalty, subject to the rank condition	12(3)(a)–(b)	**2**
Application	The Head of Office is not lower in rank than the r.12(2) authority, and censure is a minor penalty; competence is established by r.12(3) itself, not merely by the instruction	12(3)(b)	**2**
The instruction	It confirms the position; it cannot enlarge r.12 and would be irrelevant if it contradicted it	12(3)	**1**
Removal	For a major penalty the answer changes: r.12(4)(a) bars any authority subordinate to the appointing authority, so the Head of Office could not impose it	12(4)(a)	**2**
Conclusion	The censure is valid; the appeal on competence fails	12(3)	**1**
	Total		**9**

Common wrong answers

- **“Only the appointing authority can impose any penalty.”** Rule 12(3) is an independent source of competence for minor penalties.
- **“Rule 12(3) allows any penalty.”** It allows a penalty under r.11, read with the bar in r.12(4)(a).
- **“The instruction is the source of power.”** The rule is.

Answer: The Head of Office was competent under **r.12(3)** to impose censure because the rank condition is satisfied; competence for a major penalty would have been barred by **r.12(4)(a)**.

Rule tags: 12 | 12(3)

↑ Back to question

L2-17 · Institution by one authority, imposition by another
10 marks

Facts. The Secretary of the Ministry directed, on 14.02.2026, that disciplinary proceedings be instituted against Shri J, a Group ‘A’ officer, and nominated the Additional Secretary to hold the inquiry. On the inquiry report, the Secretary imposed a penalty of reduction to a lower stage. The appointing authority for Shri J's post is the President; the Secretary is authorised by a general order to impose all penalties on Group ‘A’ officers of the Ministry other than the highest post. Shri J argues that the Secretary could not institute and decide the same case, and that in any event the President alone was competent.

Record / key dates

Item	Date / period	Note
Direction to institute	Secretary, 14.02.2026	r.13
Inquiry held by	Additional Secretary	nominated
Penalty by	Secretary	r.12(2) + general order
Appointing authority	President	—
General order	empowers Secretary	for Group ‘A’ posts

Questions

1. Who may institute proceedings under rule 13?
2. Was the Secretary competent to impose the penalty?
3. Is there any bar on the same authority instituting and deciding?
4. What would change if no general order existed?

Solution — step by step

↑ Back to question

Decision path

r.13 institution → r.12 imposition → general order empowers → competent → no constitutional bar → President's pleasure unaffected

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Competence to institute and to impose, and whether they must be different authorities	13, 12(2)	**1**
Institution	The President or an authority empowered by general or special order may institute; a disciplinary authority may also do so. The Secretary is therefore competent if the general order covers the direction	13	**2**
Imposition	A penalty may be imposed by the authority specified by general or special order; the Secretary's power for Group ‘A’ posts rests on that order read with r.12(2)	12(2)(b)	**2**
Same authority	The Rules do not require the instituting and imposing authorities to differ; the safeguard is the inquiry, the report and the representation, not a separation of roles	13, 14, 15	**2**
Without the order	Absent a general order, imposition would fall to the appointing authority, that is the President, and the Secretary's order would be without jurisdiction	12(2)	**2**
Pleasure	The President's pleasure under Article 310 is unaffected by delegation of the rule-making power to impose penalties	12(1)	**1**
	Total		**10**

Common wrong answers

- **“The same officer cannot institute and decide.”** Nothing in the Rules requires separation.
- **“Only the President can penalise a Group ‘A’ officer.”** A general order can empower another authority.
- **“The Secretary's direction to institute is itself the penalty.”** Institution is not imposition.

Answer: The Secretary acted within **r.13** and within the general order read with **r.12(2)**; the Rules do not require different authorities for institution and imposition, and absent the general order the President alone could have imposed the penalty.

Rule tags: 13 12

↑ Back to question

L2-18 · One stage down for two years
12 marks

Facts. Shri K, in Level 7 with basic pay ₹49,000 fixed on 01.07.2025, annual increment on 1 July, was imposed the penalty of reduction by one stage for two years under r.11(v) by an order dated 20.06.2026, effective 01.07.2026. The order directs that he shall not earn increments during the period and that the reduction shall not postpone his future increments. The reduction was applied to the pay he was drawing on that day, ₹49,000, so the next lower stage in the

level is ₹47,600.

Record / key dates

Item	Date / period	Note
Pay on 01.07.2025	₹49,000	Level 7
Increment date	1 July	annual
Penalty effective	01.07.2026	two years
Lower stage	₹47,600	one stage
DA for illustration	63% ⚑	from 01.07.2026

Questions

1. What is his pay during the penalty period?
2. What is the monetary loss over the two years?
3. What is his pay on 01.07.2028?
4. What difference would a direction postponing future increments have made?

Solution — step by step

↑ Back to question

Decision path

r.11(v) reduction → fix at lower stage → no increments during period → loss computed year by year → restore to notional stage

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Pay fixation and monetary effect of a reduction to a lower stage	11(v)	**1**
Pay during the period	Pay is fixed at the lower stage, **₹47,600**, from 01.07.2026 to 30.06.2028; no increment is earned because the order says so	11(v); DoPT 18.06.2019	**2**
Notional pay but for the penalty	On 01.07.2026 he would have drawn ₹50,500 and on 01.07.2027 ₹52,000	11(v)	**2**
Loss, year 1	(₹50,500 − ₹47,600) × 12 = **₹34,800**	11(v)	**2**
Loss, year 2	(₹52,000 − ₹47,600) × 12 = **₹52,800**	11(v)	**2**
Total loss	₹34,800 + ₹52,800 = **₹87,600** (basic pay only; DA follows the pay)	11(v)	**1**
On expiry	Because the order does not postpone future increments, pay is fixed on 01.07.2028 at the stage he would have reached — **₹53,600** — and not at ₹49,000 or ₹50,500	11(v); DoPT 18.06.2019	**2**
	Total		**12**

Common wrong answers

- **“He continues at ₹49,000.”** Reduction means the lower stage, not the same pay.
- **“Loss is ₹1,400 × 24 = ₹33,600.”** That ignores the increments he would have earned but for the penalty.
- **“On expiry he starts again from ₹49,000.”** Without a direction postponing future increments, he is placed at the notional stage.

Answer: Pay during the penalty is **₹47,600**; the loss is **₹87,600** over two years; and on 01.07.2028 his pay is fixed at **₹53,600**, the stage he would have reached, because the order does not postpone future increments.

Rule tags: 11 11(v)

↑ Back to question

L2-19 · Reduction to a lower time-scale
10 marks

Facts. Smt L, an Assistant Accounts Officer in Level 8, was imposed the penalty of reduction to the lower time-scale of Senior Accountant (Level 7) for three years, with a direction that she will not regain her original seniority in Level 8 on expiry. She was promoted to Level 8 on 01.04.2023 on the basis of seniority. After the penalty, a vacancy in Level 8 arose in 2027 and the department promoted a junior. She claims the penalty could not affect her seniority and that she should be considered for the 2027 vacancy.

Record / key dates

Item	Date / period	Note
Substantive post	Assistant Accounts Officer, Level 8	promoted 01.04.2023
Penalty	reduction to Level 7, three years	r.11(vi)
Direction	no restoration of seniority	express

Vacancy	2027, Level 8	junior promoted
Expiry	three years	seniority per direction

Questions

1. What are the incidents of a penalty under r.11(vi)?
2. Is the direction on seniority permissible?
3. Could she be considered for the 2027 vacancy?
4. What happens on expiry of the period?

Solution — step by step

↑ Back to question

Decision path

r.11(vi) → lower time-scale → bar to promotion during period → seniority direction → restoration deferred → promotion after expiry only

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Effect of a reduction to a lower time-scale on promotion and seniority	11(vi)	**1**
The penalty	Reduction to a lower time-scale, grade, post or service for a specified period, which is a bar to promotion during that period to the time-scale from which she was reduced	11(vi)	**2**
The directions	The order must state whether the period operates to postpone future increments and whether she regains original seniority on expiry; the direction here defers restoration	11(vi)(a)–(b)	**2**
Promotion during the period	She cannot be promoted to Level 8 while the penalty runs; the 2027 promotion of a junior is therefore not by itself illegal	11(vi)	**2**
On expiry	She regains the lower time-scale position and is considered for promotion thereafter, but without the seniority she would otherwise have had, because the direction says so	11(vi)(b)	**2**
Challenge	Her remedy is to challenge the direction as disproportionate, not to assert a right to promotion during the penalty	11(vi); proportionality cases	**1**
	Total		**10**

Common wrong answers

- **“A reduction penalty cannot affect seniority.”** Rule 11(vi) expressly directs the seniority consequence.
- **“She must be promoted in 2027 because a vacancy arose.”** The penalty is a statutory bar during its currency.
- **“On expiry seniority revives automatically.”** Only if the order so directs.

Answer: The penalty under **r.11(vi)** bars promotion to Level 8 during its three years and, on the direction given, defers restoration of seniority; the 2027 promotion of a junior was therefore not illegal, and her challenge must be to the direction itself.

Rule tags: 11 11(vi)

↑ Back to question

L2-20 · Recovery of more than was put to him
10 marks

Facts. Shri M, a storekeeper, was given a notice on 09.01.2026 proposing recovery of ₹1,60,000 for pecuniary loss caused by negligence in the issue of stores. The notice set out the computation. He represented that the loss was ₹1,05,000 and produced the issue register. On 30.03.2026 the disciplinary authority imposed recovery of ₹2,40,000, adopting a revised computation prepared after the representation and never put to him. He has repaid nothing.

Record / key dates

Item	Date / period	Note
Notice	09.01.2026	₹1,60,000 proposed
Representation	with register	loss said to be ₹1,05,000
Revised computation	not put to him	₹2,40,000
Order	30.03.2026	recovery of ₹2,40,000
Penalty class	r.11(iii), minor	—

Questions

1. What is the maximum amount that could be recovered on this record?

2. What is the defect in the order?
3. Does the employee's own figure bind the authority?
4. What is the correct course?

Solution — step by step

↑ Back to question

Decision path

r.11(iii) recovery → quantum in the notice → no enhancement without opportunity → ₹1,60,000 ceiling → remit for fresh notice

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Recovery of pecuniary loss and the opportunity on quantum	11(iii), 16(1)(a)	**1**
The penalty	Recovery must be of a pecuniary loss caused by negligence or breach of orders, and the amount must be quantified	11(iii)	**1**
The notice	The proposal fixed the loss at ₹1,60,000; that is the case the employee was called upon to meet	16(1)(a)	**2**
Enhancement	Recovering ₹2,40,000 on a computation prepared after the representation, and never supplied, denies the opportunity the rule requires and is unsustainable beyond ₹1,60,000	16(1)(a), 16(1)(c)	**3**
His figure	His computation of ₹1,05,000 does not bind the authority; the authority may reject it for reasons, on the material	16(1)(c), 16(1)(e)	**1**
Course	Recovery may be sustained up to ₹1,60,000; to recover more, a fresh notice with the revised computation and a fresh opportunity is necessary	16(1)(a)	**2**
	Total		**10**

Common wrong answers

- **"The authority may recover whatever the audit works out."** The employee must meet the figure proposed.
- **"His figure of ₹1,05,000 must be accepted."** It is material for consideration, not a binding admission.
- **"The order is wholly void."** It is good to the extent of the amount noticed.

Answer: Recovery is sustainable only up to **₹1,60,000**, the amount put to him; the increase to ₹2,40,000 on an uncommunicated computation breaches **r.16(1)(a)** and requires a fresh notice and opportunity.

Rule tags: 11 | 11(iii) | 16

↑ Back to question

L2-21 · Compulsory retirement: a penalty or a power?
10 marks

Facts. Shri N, a Section Officer aged 56, was compulsory retired by an order dated 12.08.2026 under FR 56(j) after review of his service record. The order recites the review committee's recommendation that he is ineffective. A separate order of the same date imposes compulsory retirement under r.11(vii) after a departmental inquiry in which two charges were proved. He challenges both, saying that compulsory retirement is a penalty and cannot be imposed under FR 56(j) without an inquiry, and that two orders cannot stand.

Record / key dates

Item	Date / period	Note
Age	56	FR 56(j) available
Order 1	FR 56(j), 12.08.2026	service-record review
Order 2	r.11(vii), 12.08.2026	two charges proved
Inquiry	held for order 2	—
Effect sought	same	both end service

Questions

1. Is compulsory retirement under r.11(vii) the same thing as compulsory retirement under FR 56(j)?
2. Which order can stand?
3. What is the difference in consequence?
4. What should the department have done?

Solution — step by step

↑ Back to question

Decision path

two distinct powers → FR 56(j): public interest, no inquiry → r.11(vii): penalty, inquiry → one order must go → elect before acting

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether FR 56(j) and r.11(vii) are alternative routes to the same order	11(vii); FR 56(j)	**1**
The penalty	Compulsory retirement is a major penalty under r.11(vii) and requires an inquiry under r.14, which was held and in which two charges were proved	11(vii), 14	**2**
The power	FR 56(j) permits compulsory retirement in the public interest on review of the record, without a disciplinary inquiry; the test is the employee's continued utility, not misconduct	FR 56(j); Explanation (vii) to r.11	**2**
The overlap	The two orders cannot both operate on the same date for the same end; the punitive order supersedes the FR 56(j) order as the operative decision	11(vii)	**2**
Consequence	Only the r.11(vii) order can stand, and it carries the incidents of a major penalty — including appeal under r.23(ii) and no bar to future Government employment	11(vii), 23(ii)	**2**
Course	The department should have elected one route before issuing any order; issuing both exposes the punitive order to the charge that the FR 56(j) route was used to avoid the inquiry	11(vii); FR 56(j)	**1**
	Total		**10**

Common wrong answers

- **"Compulsory retirement needs an inquiry whichever power is used."** FR 56(j) is not a penalty.
- **"Both orders can stand together."** They operate on the same service on the same date.
- **"The FR 56(j) order is void because an inquiry was held."** The defect lies in issuing two orders, not in the review.

Answer: Compulsory retirement under **FR 56(j)** is an administrative power exercised on the service record, while under **r.11(vii)** it is a major penalty; both were passed on the same date for the same end, so only the punitive order can stand.

Rule tags: 11 | 11(vii) | 23

↑ Back to question

L2-22 · Dismissal or removal — the difference that outlives the job
10 marks

Facts. Two officials of the same office were found guilty of the same misconduct — accepting a small gratification. Shri O was dismissed and Shri P removed from service, both after regular inquiries. Shri O had 24 years of qualifying service; Shri P, 27 years. Both apply for pension. Shri O also applies for a post in a public sector bank and is told he is ineligible. Shri P's application is accepted.

Record / key dates

Item	Date / period	Note
Shri O	dismissal, r.11(ix)	24 years' service
Shri P	removal, r.11(viii)	27 years' service
Gratification proved	same transaction	proviso to r.11
PSU application	O rejected, P accepted	future employment

Questions

1. What is the legal difference between dismissal and removal?
2. What is the pension consequence of each?
3. Was the difference in penalty permissible on these facts?
4. What is the remedy for the official who thinks the penalties were reversed?

Solution — step by step

↑ Back to question

Decision path

dismissal: disqualification + forfeiture → removal: no disqualification → pension follows the pension rules → proviso to r.11 → appeal

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Consequences of dismissal as against removal	11(viii), (ix)	**1**

Definitional difference	Removal is not a disqualification for future Government employment; dismissal ordinarily is	11(viii), (ix)	**2**
Pension	Dismissal ordinarily entails forfeiture of past service and of pension, subject to the compassionate-allowance provision in the pension rules; removal does not forfeit past service, and pension is regulated under those rules, including their provisions on withholding	11(viii); CCS (Pension) Rules, 2021	**3**
Proviso to r.11	Where the charge is acceptance of gratification, removal or dismissal **shall** be imposed; any other penalty only in an exceptional case with special reasons	provisos to 11	**2**
Consistency	The same misconduct can attract different penalties if the records differ, but on identical facts with no distinguishing feature the difference invites an Article 14 challenge	11; administrative law	**1**
Remedy	An appeal under r.23(ii) to the appellate authority, and thereafter revision; the PSU refusal is a consequence of dismissal, not a separate order	23, 29	**1**
	Total		**10**

Common wrong answers

- **"Dismissal and removal are the same with different names."** The disqualification and the pension consequence differ.
- **"Removal forfeits pension."** It does not forfeit past service; pension is governed by the pension rules.
- **"Gratification can attract censure."** Only in an exceptional case with special reasons.

Answer: Dismissal ordinarily disqualifies from future Government employment and forfeits past service for pension, while removal does neither; on identical facts the difference in penalty needs a distinguishing reason, and the remedy is appeal under **r.23(ii)**.

Rule tags: 11 | 11(viii) | 11(ix) | 23

↑ Back to question

L2-23 · Forty hours in custody
10 marks

Facts. Shri Q was detained by the police on a criminal complaint at 06.00 on 09.03.2026 and released on bail at 22.00 on 10.03.2026 — 40 hours. The department issued a suspension order on 12.03.2026 recording that he had been detained. The charge sheet in the departmental proceeding followed on 02.04.2026. He claims that the period 09.03.2026 to 12.03.2026 must be treated as deemed suspension and that he should be paid only subsistence allowance, and the department claims that no suspension operated before 12.03.2026.

Record / key dates

Item	Date / period	Note
Detention	09.03.2026, 06.00	—
Release	10.03.2026, 22.00	40 hours
Suspension order	12.03.2026	express
Charge sheet	02.04.2026	departmental

Questions

1. Was there a deemed suspension?
2. From what date did suspension operate?
3. What is the effect of the 40 hours on pay for those days?
4. What should the suspension order have recorded?

Solution — step by step

↑ Back to question

Decision path

r.10(2)(a) → detention > 48 hours? → 40 hours — no → express order 12.03.2026 → suspension from that date

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether detention of 40 hours attracts a deemed suspension	10(2)(a)	**1**
The rule	A deemed suspension arises with effect from the date of detention only if the detention exceeds 48 hours	10(2)(a)	**2**
Application	The detention ran from 06.00 on 09.03.2026 to 22.00 on 10.03.2026 — 40 hours; the threshold is not crossed and there is no deemed suspension	10(2)(a)	**3**
The express order	The suspension operated from 12.03.2026, the date of the order; the preceding days are duty, not suspension	10(1)	**2**

Pay	The employee is entitled to full pay for 09.03.2026 to 11.03.2026 and subsistence allowance only from 12.03.2026; reference to detention in the order does not backdate it	10(2), FR 53	**1**
Drafting	The order should state its effective date and, where detention is the ground, the period of custody, so the register is unambiguous	10(1)–(2)	**1**
	Total		**10**

Common wrong answers

- **“Any detention means deemed suspension.”** Only detention exceeding 48 hours.
- **“Suspension runs from the date of the incident.”** It runs from the order, or from the date specified for a deemed suspension.
- **“The 40 hours are suspension because the order mentions detention.”** A recital cannot backdate an order.

Answer: There was no deemed suspension: the detention was 40 hours, below the 48-hour threshold in **r.10(2)(a)**; suspension operated from **12.03.2026** and the earlier days are duty for pay.

Rule tags: `10` `10(2)`

↑ Back to question

L2-24 · Convicted on Friday, dismissed on Friday
10 marks

Facts. Shri R, a Group ‘C’ employee, was convicted on 13.02.2026 of an offence under the Prevention of Corruption Act and sentenced to one year's rigorous imprisonment. The disciplinary authority dismissed him the same day under rule 19(i). He was released on bail by the appellate court on 20.02.2026, the conviction not having been suspended. His representation says that no inquiry was held, that the conviction is under appeal, and that he should have been treated as under deemed suspension instead of being dismissed.

Record / key dates

Item	Date / period	Note
Conviction	13.02.2026	1 year RI
Dismissal	13.02.2026	r.19(i)
Bail	20.02.2026	conviction not suspended
Appeal	pending	—
Inquiry	none	dispensed with

Questions

1. Was rule 19(i) available?
2. Was a deemed suspension under r.10(2)(b) attracted?
3. What is the effect of the pendency of the criminal appeal?
4. What safeguards did rule 19 require?

Solution — step by step

↑ Back to question

Decision path

`conviction on criminal charge` → `r.19(i) inquiry dispensed with` → `no deemed suspension because dismissal followed` → `representation on penalty may be given` → `consultation if necessary`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Imposition of a penalty on the ground of conduct leading to conviction	19(i), 10(2)(b)	**1**
The power	Where a penalty is imposed on the ground of conduct which led to conviction on a criminal charge, the inquiry under r.14 may be dispensed with	19(i)	**2**
Deemed suspension	A deemed suspension under r.10(2)(b) arises only where no dismissal, removal or compulsory retirement follows the conviction; here dismissal followed the same day, so it is not attracted	10(2)(b)	**2**
The safeguard	The proviso permits an opportunity of representation on the penalty proposed; it is not mandatory in terms but its denial is a factor if the penalty is challenged	proviso to 19(i)	**2**
Pendency of appeal	A conviction under appeal is still a conviction unless suspended; the department need not await the appeal, though it may do so	19(i)	**2**
Consultation	Where the Commission must be consulted, the advice must be obtained and supplied before the order	19, second proviso	**1**
	Total		**10**

Common wrong answers

- **“A conviction under appeal cannot found a penalty.”** The conviction stands until suspended or set aside.
- **“He must be deemed suspended instead.”** The rule excludes that where dismissal follows.
- **“Rule 19 allows an order with no reasons at all.”** The penalty must still be reasoned on the conduct.

Answer: Rule 19(i) was available and the dismissal on the day of conviction was competent; **r.10(2)(b)** was not attracted because dismissal followed, and the pendency of the appeal does not by itself invalidate the penalty.

Rule tags: `19` `10(2)` `11`

↑ Back to question

L2-25 · The review that was never held
10 marks

Facts. Smt S was suspended on 10.01.2026 pending a disciplinary proceeding. No review committee met. The file contains an office note of 08.04.2026 recording that “the suspension may continue as the inquiry is in progress”, signed by the Section Officer. No order of extension was issued. The charge sheet was served on 15.05.2026. On 20.05.2026 the department informed her that she “continues to be under suspension”. She claims she ceased to be under suspension on 10.04.2026.

Record / key dates

Item	Date / period	Note
Suspension	10.01.2026	effective date
90 days complete	09.04.2026	inclusive count
Office note	08.04.2026	no order, Section Officer
Charge sheet	15.05.2026	after lapse
“Continues” letter	20.05.2026	after lapse

Questions

1. On what date did the suspension cease to be valid?
2. Could the office note operate as an extension?
3. What is the effect of the charge sheet served in May?
4. What is she entitled to?

Solution — step by step

↑ Back to question

Decision path

`r.10(6) review before 90 days` → `r.10(7) validity` → `no review committee` → `no extension order` → `validity ends 09.04.2026`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Validity of a suspension not reviewed within ninety days	`10(6), 10(7)`	**1**
The review duty	The competent authority must review before the expiry of ninety days from the effective date, on the Review Committee's recommendation, and pass an order extending or revoking	`10(6)`	**2**
The arithmetic	Ninety days counted inclusively from **10.01.2026** are complete on **09.04.2026**	`10(6), 10(7)`	**2**
The consequence	Without an extension order passed after review before that date, the order is not valid after the ninety-day period; it lapsed at the end of 09.04.2026	`10(7)`	**2**
The note	An office note by a Section Officer is neither a review by the competent authority nor an order of extension	`10(6), 10(7)`	**1**
The charge sheet	Service of a charge sheet in May does not retrospectively validate the lapsed suspension; a fresh order under r.10(1)(a) would be required	`10(1), 10(7)`	**1**
Money	She must be paid full pay for the period after the lapse, the suspension having ceased to be valid, subject to the treatment of the period on the conclusion of the proceeding	`FR 53, FR 54`	**1**
	Total		**10**

Common wrong answers

- **“Suspension continues until the inquiry ends.”** It continues only while validly extended.
- **“The office note is an extension.”** It is neither a review nor an order.
- **“The lapse is cured by the later charge sheet.”** A lapsed order cannot be revived retrospectively.

Answer: With no review and no extension, the suspension ceased to be valid at the end of **09.04.2026**; the office note and the later charge sheet cannot revive it, and she is entitled to full pay thereafter, subject to r.10(6)–(7) and FR 53–54.

Model answer (exam style). A suspension under rule 10(1) does not run indefinitely. Rule 10(6) requires the competent authority to review it before the expiry of ninety days from the effective date, on the recommendation of the Review Committee, and to pass an order either extending or revoking it, and rule 10(7) provides that the order shall not be valid after ninety days unless it is so extended before expiry. Counting inclusively from 10.01.2026, the ninety days were complete on 09.04.2026. No Review Committee met and no order of extension issued; the office note of 08.04.2026 signed by a Section Officer is neither a review by the competent authority nor an order, and the letter of 20.05.2026 cannot supply what was never done. The suspension therefore ceased to be valid at the end of 09.04.2026. Service of the charge sheet on 15.05.2026 did not retrospectively validate it; had the department wished to suspend her afresh, it needed a fresh order under rule 10(1)(a) on material then existing. For the period after the lapse she is entitled to full pay, and the treatment of the entire period will be determined when the proceeding concludes under FR 54. The lesson is that the review architecture is mandatory, and that a charge sheet does not extend a suspension.

Rule tags: `10` `10(6)` `10(7)`

↑ Back to question

L2-26 · Custody, release and the ninety-day clock
10 marks

Facts. Shri T was arrested on 10.03.2026 and remained in judicial custody until release on 02.06.2026. The appointing authority was informed of the release on 05.06.2026. The department treated the 90-day review clock as running from 10.03.2026 and, on that basis, held the suspension to have lapsed on 07.06.2026 and revoked it. He argues that the suspension continued until the review architecture was satisfied and that his pay for the intervening period has been wrongly withheld.

Record / key dates

Item	Date / period	Note
Detention from	10.03.2026	—
Release	02.06.2026	custody ended
Intimation	05.06.2026	to appointing authority
Department’s assumption	clock from 10.03.2026	lapse 07.06.2026
Revocation	07.06.2026	—

Questions

1. When does the ninety-day period begin for a deemed suspension in custody?
2. Was the department's computation right?
3. What is the effect of the revocation?
4. What is he entitled to for the period 10.03.2026 to 05.06.2026?

Solution — step by step

↑ Back to question

Decision path

`r.10(2)(a) deemed from detention` → `proviso to r.10(7)` → `90 days from release or intimation, later` → `05.06.2026 → 02.09.2026` → `revocation valid but premised on wrong date`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Computation of the ninety-day period for a deemed suspension following detention	`10(2)(a), proviso to 10(7)`	**1**
Deemed suspension	Detention exceeding 48 hours creates a deemed suspension with effect from the date of detention, that is **10.03.2026**	`10(2)(a)`	**2**
The special clock	For a deemed suspension, the review need not be undertaken if the servant is still in custody at the end of ninety days; the ninety days count from release or from intimation of release, whichever is later	`proviso to 10(7)`	**3**
Application	Release was on 02.06.2026 and intimation on 05.06.2026; the ninety days therefore ran from **05.06.2026** and would have been complete on **02.09.2026**	`proviso to 10(7)`	**2**
The department's date	Its computation from 10.03.2026 is wrong; the revocation on 07.06.2026 is nevertheless effective, because revocation is always open to the competent authority	`10(5)(c)`	**1**
Money	For 10.03.2026 to 07.06.2026 he was under a valid deemed suspension and is entitled to subsistence allowance under FR 53, not to full pay; full pay runs from revocation	`FR 53`	**1**

	Total		**10**

Common wrong answers

- **“The 90 days run from arrest.”** For a deemed suspension they run from release or intimation.
- **“The revocation is invalid because the date was miscalculated.”** Revocation is always available.
- **“He gets full pay for the whole period.”** The deemed suspension was valid until revoked.

Answer: The ninety days ran from **05.06.2026** (later of release and intimation) and would have ended on **02.09.2026**; the revocation on 07.06.2026 is valid, and he is entitled to subsistence allowance — not full pay — until that date.

Rule tags: `10` `10(2)` `10(7)`

↑ Back to question

L2-27 · What suspension costs
11 marks

Facts. Shri U, a Group ‘B’ officer with basic pay ₹44,900 in Level 7, was suspended with effect from 04.02.2026. DA is 63% ⚑ from 01.07.2026 and 60% before that. The suspension order directs recovery of ₹1,200 per month towards house rent and ₹500 per month towards a society loan. He remained under suspension until 30.09.2026. He asks what he should have been paid, and the office has paid him 75% throughout, saying that “after the first month the higher rate applies”.

Record / key dates

Item	Date / period	Note
Basic pay	₹44,900	Level 7
DA	60% to 30.06.2026; 63% ⚑ thereafter	—
Suspension	04.02.2026 to 30.09.2026	—
Deductions ordered	₹1,200 + ₹500 per month	—
Office practice	75% from the first month	wrong

Questions

1. What is the subsistence allowance for the first ninety days?
2. From what date does the higher rate apply, and at what figure?
3. Do the ordered deductions apply?
4. What is the monthly excess paid, and what follows?

Solution — step by step

↑ Back to question

Decision path

`FR 53` → `first 90 days: 50% of pay+DA` → `90 days end 04.05.2026` → `75% from 05.05.2026` → `deductions as ordered`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Computation of subsistence allowance during suspension	FR 53	**1**
Base	Pay plus DA: ₹44,900 × 1.60 = **₹71,840** to 30.06.2026; ₹44,900 × 1.63 = **₹73,187** from 01.07.2026 ⚑	FR 53	**2**
First ninety days	50% of the base: **₹35,920** per month from 04.02.2026	FR 53(i)	**2**
The change	Ninety days counted inclusively from 04.02.2026 are complete on **04.05.2026**; the higher rate applies from **05.05.2026**	FR 53(ii)	**2**
Higher rate	75% of the base: **₹53,880** to 30.06.2026 and **₹54,890.25** from 01.07.2026 ⚑	FR 53(ii)	**2**
Deductions	The deductions directed in the suspension order apply to the subsistence allowance, so the net figures are ₹34,220 and ₹53,190.25 respectively	FR 53	**1**
The excess	Paying 75% throughout overpaid the first ninety days by ₹17,960 a month; the excess is recoverable only after notice, and cannot be adjusted without an opportunity	FR 53; 16(1)(a)	**1**
	Total		**11**

Common wrong answers

- **“75% applies after the first month.”** The step is at ninety days.
- **“Subsistence is 50% of basic pay.”** It is a percentage of pay plus DA.
- **“Deductions do not apply to subsistence allowance.”** They do, if the order directs them.

Answer: ₹35,920 a month for the first ninety days (04.02.2026–04.05.2026), then 75% from **05.05.2026** — ₹53,880 rising to ₹54,890.25 from 01.07.2026 ⚑ — less the ordered deductions; the office's flat 75% overpaid the early

months.

Rule tags: 10 FR 53

↑ Back to question

L2-28 · Five months, no charge sheet
11 marks

Facts. Smt V, a Senior Auditor, was suspended on 06.02.2026 on the ground that a disciplinary proceeding was contemplated. The review committee recommended continuance on 30.04.2026 without any material beyond the pending vigilance verification. The extension order of 02.05.2026 records only that "the verification is continuing". No charge sheet has been issued by 30.09.2026. She asks that the suspension be revoked and that the period be treated as duty.

Record / key dates

Item	Date / period	Note
Suspension	06.02.2026	proceeding contemplated
Review	30.04.2026	no material beyond verification
Extension	02.05.2026, 180 days	"verification continuing"
Charge sheet	none by 30.09.2026	8 months
Prejudice	posting withheld, promotion due 2026	asserted

Questions

1. Was the extension order sustainable?
2. What does the case law require before a charge memo?
3. Can she insist on revocation?
4. What relief should be granted?

Solution — step by step

↑ Back to question

Decision path

r.10(1)(a) contemplation → r.10(6) review + reasons → Ajay Kumar Choudhary → charge memo within reasonable time → revocation + consequential relief

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Continuance of suspension for eight months without a charge sheet	10(1)(a), 10(6)	**1**
Power and its condition	Suspension may be ordered where a proceeding is contemplated or pending, but the review must rest on material, not on the continuation of an inquiry into whether there is a case	10(1)(a), 10(6)	**2**
The extension	An order that recites only that verification is continuing does not engage with the necessity of suspension; it is a mechanical extension	10(6)	**2**
The case law	Suspension is not to be extended mechanically and a charge memo should follow within a reasonable time; continued suspension without charges causes prejudice that cannot be compensated by subsistence alone	Ajay Kumar Choudhary (2015)	**3**
Her request	Revocation is always open to the competent authority and may be sought at any time; the authority must apply its mind to whether suspension is still necessary	10(5)(c)	**2**
Relief	Revoke the suspension; treat the period after the point at which the suspension ceased to serve any purpose as duty for pay, and consider her promotion claim for 2026 without prejudice	10(5), FR 54	**1**
	Total		**11**

Common wrong answers

- **"Suspension can continue while vigilance verifies."** Verification is not a proceeding, and it cannot indefinitely justify suspension.
- **"Only the appellate authority can end it."** Revocation is available under r.10(5)(c) at any time.
- **"Compensation is the remedy."** The remedy is to end the suspension and regularise the period.

Answer: The extension was mechanical and cannot sustain eight months without a charge sheet; following **Ajay Kumar Choudhary (2015)** and **r.10(6)**, the suspension should be revoked and the period regularised as duty, with her promotion claim considered on merits.

Rule tags: 10 10(6) FR 54

↑ Back to question

L2-29 · Three extensions and an objection
11 marks

Facts. Shri W was suspended on 02.05.2023. Reviews were held and extensions ordered on 28.07.2023, 20.01.2024, 15.07.2024, 08.01.2025, 03.07.2025, 26.12.2025 and 20.06.2026, each for 180 days. The inquiry is still pending in October 2026 and the charge sheet was served in June 2023. He objects that a suspension cannot lawfully continue beyond two years and that the repeated extensions are a punishment.

Record / key dates

Item	Date / period	Note
Suspension	02.05.2023	—
Extensions	seven, each 180 days	reviews held before expiry
Charge sheet	June 2023	served
Inquiry	pending	October 2026
Objection	2-year ceiling	asserted

Questions

1. Is there a two-year ceiling on suspension?
2. What makes an extension valid?
3. What is the consequence of the extensions here?
4. What should he argue instead?

Solution — step by step

↑ Back to question

Decision path

no outer limit in r.10 → each extension after review, before expiry, ≤180 days → validity sustained → real issues: delay + necessity

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether suspension can continue beyond two years by successive extensions	10(6), 10(7)	**1**
The rule	Rule 10 prescribes no outer limit; it prescribes a process — review before 90 days, then extension for not more than 180 days at a time, each extension preceded by a review before the running period expires	10(6), 10(7)	**2**
Application	Seven extensions of 180 days each, ordered on dates before the running period expired, satisfy the process on its face	10(6)	**2**
No ceiling	There is therefore no two-year ceiling; the objection as framed fails	10(6)–(7)	**1**
But necessity	Each review must consider whether suspension remains necessary; a review that merely recites the inquiry's pendency is vulnerable	10(6); Ajay Kumar Choudhary (2015)	**2**
Delay	An inquiry pending for over three years with the charge sheet served in 2023 raises delay and prejudice, which affect the penalty and the continued suspension, not its formal validity	14(24); 15	**2**
Money	If the suspension is found unjustified on conclusion, the period may be regularised as duty under FR 54	FR 54	**1**
	Total		**11**

Common wrong answers

- **“Suspension cannot exceed two years.”** No such limit exists in the rules.
- **“Repeated extensions are a penalty.”** They are administrative, but must be justified at each review.
- **“The extensions are void because they total more than 180 days.”** The limit is per extension, not in total.

Answer: There is no two-year ceiling: seven extensions of 180 days each, ordered after review and before expiry, satisfy **r.10(6)–(7)**; his real grounds are the necessity at each review and the delay in completing the inquiry.

Rule tags: 10 | 10(6) | 14(24)

↑ Back to question

L2-30 · The envelope that stayed sealed
10 marks

Facts. A charge sheet was issued to Shri X on 12.04.2026. The Departmental Promotion Committee met on 20.05.2026 and placed its recommendation in a sealed cover because the disciplinary proceeding was pending. The

proceeding ended on 15.12.2026 with a censure. The sealed cover was opened on 05.01.2027 and he was promoted with effect from 05.01.2027. He claims promotion from 20.05.2026 with arrears, because censure is a minor penalty. A junior shown below him in the same panel was promoted on 20.05.2026.

Record / key dates

Item	Date / period	Note
Charge sheet	12.04.2026	major penalty proposed
DPC	20.05.2026	sealed cover
Conclusion	15.12.2026	censure
Cover opened	05.01.2027	promotion from that date
Junior promoted	20.05.2026	from the same panel
Claim	20.05.2026 with arrears	—

Questions

1. Was the sealed cover procedure available on 20.05.2026?
2. What follows from the proceeding ending in a penalty rather than in exoneration?
3. From what date does the promotion take effect?
4. Can he claim arrears or stepping-up with the junior promoted earlier?
5. What would have followed had he been exonerated entirely?

Solution — step by step

↑ Back to question

Decision path

charge pending on DPC date → sealed cover permissible → outcome is a penalty, not exoneration → para 3.1: findings not acted upon → next DPC, penalty in view → effect from that later date

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Sealed cover, a censure, and the effective date of promotion	DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992, para 2	**1**
Availability	On 20.05.2026 a charge sheet had been issued and the proceeding was pending — the second of the three categories; the cover was properly used	DoPT OM 14.09.1992, para 2(ii); Jankiraman (1991)	**2**
The outcome rule	The cover is opened on conclusion, but the findings are acted upon only on exoneration. Where any penalty is imposed, the findings **shall not be acted upon** and the case goes to the next DPC in the normal course, having regard to the penalty	DoPT OM 14.09.1992, para 3.1	**2**
Censure	Censure carries no currency period, so the next DPC was free to find him fit notwithstanding it; that is why he was promoted at all in January 2027. It does not make the promotion retrospective	DoPT OM 14.09.1992, para 3.1; A.N. Mohanan (2007)	**1**
The date	Promotion therefore runs from **05.01.2027**, the date of the order giving effect to the fresh assessment — not from the DPC of 20.05.2026, whose finding was never acted upon	DoPT OM 14.09.1992, para 3.1	**2**
Arrears and stepping-up	No arrears for the interval; the OM leaves even notional arrears to the appointing authority's discretion after exoneration, and there is none here. Pay is fixed from actual promotion and there is no stepping-up with the junior	DoPT OM 14.09.1992, para 6; FR 22	**1**
Contrast	Had he been exonerated, the due date would have been worked back by reference to his position in the panel and the date of his next junior's promotion — here 20.05.2026, with seniority and consequential benefits	DoPT OM 14.09.1992, paras 3 and 6	**1**
	Total		**10**

Common wrong answers

- **“Censure is minor, so the sealed cover must be given effect from the DPC date.”** That is the trap. Para 3.1 keys on **any** penalty: the finding is not acted upon, and the case goes to the next DPC — which is why the promotion is from 05.01.2027.
- **“Promotion must be ante-dated to the DPC.”** Only exoneration — or a finding of fitness by the next DPC — has that effect, and then only by working the date back from the panel.
- **“He can claim stepping-up because his junior went earlier.”** The OM expressly excludes stepping-up where promotion was withheld on account of a penalty.

Answer: The sealed cover was properly used on 20.05.2026, but the proceeding ended in a penalty, not in exoneration. Under para 3.1 of the 1992 OM the sealed-cover finding could not be acted upon at all: his case had to go

to the next DPC, which was free to find him fit because censure has no currency. Promotion therefore runs from **05.01.2027**; there are no arrears for the interval and no stepping-up with the junior. Exoneration would have produced the opposite result — promotion from **20.05.2026**, by working the date back from his panel position.

Rule tags: `11` `15`

↑ Back to question

L2-31 · Termination during probation
11 marks

Facts. Smt Y was appointed on probation for two years on 01.07.2025. On 10.06.2026 her services were terminated "in accordance with the terms of appointment" during the probation period. The file shows a preliminary verification report finding that she had accepted ₹15,000 from a vendor, a note by the controlling officer that her conduct was "unsatisfactory and calls for action", and no inquiry of any kind. She challenges the order as punitive in substance.

Record / key dates

Item	Date / period	Note
Appointment	01.07.2025	two years' probation
Verification report	May 2026	₹15,000 from a vendor
Note	June 2026	"calls for action"
Termination	10.06.2026	terms of appointment
Inquiry	none	—

Questions

1. Is termination during probation a penalty?
2. When does such an order become punitive in substance?
3. What does the record here show?
4. What is the consequence?

Solution — step by step

↑ Back to question

Decision path

`Explanation (viii)(a) to r.11` → `termination per terms — not a penalty` → `but misconduct as foundation` → `punitive` → `inquiry required`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Whether a termination during probation founded on misconduct is a penalty in substance	`Explanation (viii)(a) to r.11`	**1**
The rule	Termination of a probationer during or at the end of probation, in accordance with the terms of appointment, is not a penalty	`Explanation (viii)(a) to r.11`	**2**
The limit	Where misconduct is the foundation of the order and the termination is not a simpliciter discharge, it is punitive and requires the r.14 procedure; the form of the order does not decide its character	`Dipti Prakash Banerjee (1999); Radhey Shyam Gupta (1999)`	**3**
Application	The verification report, the note that action is called for, and the proximity of the order to those documents show that the foundation was the alleged acceptance of money, not an assessment of probationary suitability	`Explanation (viii)(a) to r.11`	**2**
Consequence	The order is unsustainable as a punitive termination without inquiry; the department may hold a regular inquiry, or terminate simpliciter on material unrelated to the alleged misconduct	`11, 14`	**2**
Caution	A probationer has no right to confirmation, but the department cannot use the probation route to punish misconduct without a hearing	`Explanation (viii)(a) to r.11`	**1**
	Total		**11**

Common wrong answers

- **"A probationer can always be terminated without inquiry."** Only where the termination is not founded on misconduct.
- **"The label decides."** Substance decides.
- **"No inquiry is needed because she has no right to the post."** The right to the post and the right to a hearing on misconduct are different questions.

Answer: Termination during probation is not a penalty, but where misconduct is the foundation the order is punitive in substance and required an inquiry; on this record the termination is unsustainable.

Rule tags: 11 14

↑ Back to question

L2-32 · Termination of a temporary hand under TS Rule 5(1)
9 marks

Facts. Shri Z, a temporary clerk appointed in 1998 and regularised in 2004, was served with a notice on 12.02.2026 terminating his services under rule 5(1) of the CCS (Temporary Service Rules), 1965, with one month's pay in lieu of notice. The accompanying note records that he had been absent without leave for 47 days and that “his services are no longer required”. He had 28 years' service and no inquiry was held.

Record / key dates

Item	Date / period	Note
Appointment	1998, temporary	regularised 2004
Notice	12.02.2026	TS Rule 5(1)
Allegation	47 days' absence	no inquiry
Service	28 years	—
Order	one month's pay in lieu	—

Questions

1. Is termination under TS Rule 5(1) a penalty?
2. Was the Temporary Service Rules route available to him in 2026?
3. What does the accompanying note reveal?
4. What is the consequence?

Solution — step by step

↑ Back to question

Decision path

Explanation (viii)(b) to r.11 → not a penalty → but TS Rules apply to temporary service → regularised 2004 — no longer temporary → foundation = misconduct

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Use of the Temporary Service Rules to terminate a regularised employee for misconduct	Explanation (viii)(b) to r.11	**1**
The exclusion	Termination of a temporary Government servant under rule 5(1) of the Temporary Service Rules is not a penalty under the CCA Rules	Explanation (viii)(b) to r.11	**1**
Availability	The Temporary Service Rules govern temporary service; an employee regularised in 2004 is not a temporary servant in 2026, so the route was not available to him	CCS (TS) Rules, 1965	**2**
The foundation	The note attributes 47 days' absence without leave, which is misconduct; the order is therefore punitive in substance and needed an inquiry	Radhey Shyam Gupta (1999)	**3**
Pay in lieu	Payment in lieu of notice does not convert a punitive termination into a simpliciter one	Explanation (viii)(b) to r.11	**1**
Consequence	The termination is unsustainable; reinstatement with consequential benefits, or a fresh proceeding after a regular inquiry, follows	11, 14	**1**
	Total		**9**

Common wrong answers

- **“TS Rule 5(1) can be used for anyone.”** It applies to temporary service, and he was regularised.
- **“One month's pay makes it lawful.”** The foundation, not the payment, decides.
- **“Absence without leave is not misconduct.”** It is, and its use as the foundation makes the order punitive.

Answer: The Temporary Service Rules did not apply to a clerk regularised in 2004, and the termination, founded on 47 days' absence, was punitive in substance and required an inquiry; it is unsustainable.

Rule tags: 11 14

↑ Back to question

L2-33 · Sympathy as an exceptional case
11 marks

Facts. A Group ‘B’ officer was found to hold assets of ₹1.42 crore disproportionate to his known sources of income. The inquiry established the charge. The disciplinary authority imposed reduction to a lower stage for three years, recording that the officer had 22 years of service, a daughter to marry and a clean record until then, and that dismissal would be “disproportionate to the circumstances”.

Record / key dates

Item	Date / period	Note
Assets	₹1.42 crore	disproportionate
Charge	proved	—
Penalty	reduction, three years	r.11(v)
Reasons	service, family, clean record	special reasons?
Statutory command	removal or dismissal	provisos to r.11

Questions

1. What penalty does the rule require on this charge?
2. Can family circumstances amount to an exceptional case?
3. What is the standard for “special reasons recorded in writing”?
4. What is the consequence of the order?

Solution — step by step

↑ Back to question

Decision path

proviso to r.11 → removal or dismissal shall be imposed → other penalty only exceptional + special reasons → sympathy ≠ exceptional → order unsustainable

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Penalty for possession of assets disproportionate to known sources	provisos to 11	**1**
The command	Where the charge of disproportionate assets is established, the penalty in r.11(viii) or (ix) **shall** be imposed	first proviso to 11	**3**
The exception	Any other penalty is permissible only in an exceptional case and for special reasons recorded in writing	second proviso to 11	**2**
Application	Long service, a daughter's marriage and a previously clean record are mitigating circumstances, not exceptional ones; they would be present in most cases and cannot displace a statutory command	second proviso to 11	**3**
Consequence	The order is unsustainable and must be set aside; the competent authority must impose removal or dismissal, or record genuinely exceptional reasons of a kind that distinguishes the case from the ordinary	provisos to 11	**2**
	Total		**11**

Common wrong answers

- **“The authority has discretion in every case.”** The first proviso removes it except within the second.
- **“Long service is an exceptional circumstance.”** It is common, not exceptional.
- **“Proportionality permits any lesser penalty.”** Proportionality operates within the statutory command here.

Answer: The first proviso to **r.11** required removal or dismissal; family and service considerations are mitigating, not the exceptional case contemplated by the second proviso, so the lesser penalty is unsustainable.

Rule tags: 11

↑ Back to question

L2-34 · The Committee, the compensation and the promotion
10 marks

Facts. A complaint of sexual harassment was made against Shri AA. The Complaints Committee conducted an inquiry following the r.14 procedure and found the complaint proved. It recommended payment of ₹3,00,000 as compensation and the penalty of withholding of promotion for two years. The disciplinary authority accepted both and passed a single order. Shri AA objects that the Committee had no power to hold the inquiry, that compensation is not a penalty known to the rules, and that he was never given a notice under r.16.

Record / key dates

Item	Date / period	Note
Complaint	sexual harassment	r.3C, Conduct Rules
Inquiry by	Complaints Committee	r.14 procedure followed
Recommendations	₹3,00,000 + withholding of promotion	—
Order	single, both accepted	no r.16 notice
Penalty class	withholding of promotion	r.11(ii), minor

Questions

1. Was the Complaints Committee competent to hold the inquiry?
2. Is compensation a penalty under the CCA Rules?
3. Was a r.16 notice necessary for the minor penalty?
4. Can both reliefs stand in one order?

Solution — step by step

↑ Back to question

Decision path

proviso to r.14(2) → Committee deemed inquiry authority → compensation excluded from penalty → minor penalty may follow r.14 inquiry via r.15(5) → both may stand

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Competence of a Complaints Committee and the character of compensation	proviso to 14(2); Explanation (ix) to 11	**1**
Competence	Where the complaint is of sexual harassment within rule 3C of the Conduct Rules, the Complaints Committee is deemed to be the inquiry authority appointed by the disciplinary authority	proviso to 14(2)	**2**
Compensation	Compensation awarded on the recommendation of a Complaints Committee does not amount to a penalty within rule 11; it is a separate civil consequence and may be ordered	Explanation (ix) to 11	**2**
The minor penalty	A minor penalty may be imposed after a r.14 inquiry without a separate r.16 notice, because r.15(5) expressly permits it notwithstanding r.16	15(5)	**2**
One order	Both consequences may be recorded in one order provided each is separately reasoned and the employee has been heard on the inquiry report	15(2), 15(5)	**2**
Residual	The quantum of compensation must be reasoned and proportionate; a figure with no working is vulnerable	Explanation (ix) to 11	**1**
	Total		**10**

Common wrong answers

- **“The Committee cannot hold an inquiry.”** The proviso to r.14(2) deems it the inquiry authority.
- **“Compensation is an illegal penalty.”** It is expressly outside the definition of penalty.
- **“A r.16 notice was essential.”** Rule 15(5) allows a minor penalty after a r.14 inquiry.

Answer: The Complaints Committee was the deemed inquiry authority under the **proviso to r.14(2)**; compensation is not a penalty (**Explanation (ix)**), the minor penalty could be imposed under **r.15(5)** without a separate r.16 notice, and both may stand if separately reasoned.

Rule tags: 14 11 15

↑ Back to question

L2-35 · Day fifty-eight from the order, day forty-four from delivery
9 marks

Facts. A penalty order dated 10.06.2026 was delivered to Smt AB on 24.06.2026 at her office. She filed an appeal on 07.08.2026. The appellate authority rejected it as time-barred, computing forty-five days from 10.06.2026. She says limitation runs from delivery and that her appeal was within time; in the alternative she seeks condonation, explaining that she was on leave from 01.07.2026 to 20.07.2026.

Record / key dates

Item	Date / period	Note
Order date	10.06.2026	not the trigger
Delivered	24.06.2026	trigger for limitation
45 days complete	08.08.2026	—

Appeal filed	07.08.2026	one day inside
Leave	01.07.2026–20.07.2026	condonation material

Questions

1. From what date does the 45-day period run?
2. Was the appeal within time?
3. If it was not, could it be entertained, and on what test?
4. What should the appellate authority record?

Solution — step by step

↑ Back to question

Decision path

r.25 → 45 days from delivery → 24.06.2026 → 08.08.2026 → filed 07.08.2026 → in time → condonation unnecessary

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Computation of the period of limitation for an appeal	25	**1**
The rule	An appeal must be preferred within forty-five days from the date on which a copy of the order is delivered to the appellant	25	**2**
Arithmetic	Forty-five days from **24.06.2026** expire on **08.08.2026**; an appeal filed on 07.08.2026 is within time	25	**2**
The error	The authority's computation from the date of the order (10.06.2026) is contrary to the rule and treated the appeal as barred when it was not	25	**2**
Condonation	The proviso permits entertainment after expiry on sufficient cause; it was not needed here, but the leave facts would have supported it	proviso to 25	**1**
Recording	The appellate authority should record the date of delivery, the date of expiry and the date of filing before deciding the appeal on merits	25	**1**
	Total		**9**

Common wrong answers

- **“Limitation runs from the date of the order.”** It runs from delivery.
- **“The appeal is out of time, so no relief.”** On these dates it is in time.
- **“Condonation needs a written application.”** The proviso requires sufficient cause, not a form.

Answer: Limitation ran from delivery on **24.06.2026** and expired on **08.08.2026**; the appeal of 07.08.2026 is in time, and the rejection on limitation is unsustainable.

Rule tags: 25 26 30

↑ Back to question

L2-36 · The appeal that went to the wrong desk
9 marks

Facts. Shri AC, a Group ‘C’ employee, was censured by the Head of Office on 05.03.2026. He filed an appeal on 10.04.2026 before the Head of Department, under the impression that the higher authority was the appellate authority. The Head of Department returned it on 20.04.2026, directing him to the correct authority. He re-filed before the appellate authority on 28.04.2026, which dismissed it as beyond forty-five days from 05.03.2026.

Record / key dates

Item	Date / period	Note
Censure	05.03.2026	by Head of Office
Appeal to HoD	10.04.2026	wrong authority
Returned	20.04.2026	—
Re-filed correctly	28.04.2026	within 45 days of delivery
Limitation	45 days from delivery	—

Questions

1. Who was the appellate authority?
2. Did filing before the wrong authority stop the clock?
3. Was the re-filed appeal within time?
4. What is the correct disposal?

Solution — step by step

↑ Back to question

Decision path

r.24 appellate authority → immediate superior for Group ‘C’ → wrong forum → time spent there — sufficient cause → entertain the appeal

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Appeal filed before the wrong authority and re-filed after return	24, 25	**1**
The forum	For a Group ‘C’ employee the appellate authority is the authority to which the authority making the order is immediately subordinate, unless the Schedule or an order specifies otherwise	24(1)(ii)	**2**
Limitation	The 45 days run from delivery of the order; filing before a wrong authority does not stop time	25	**2**
But sufficient cause	Prosecuting a remedy before a forum that the appellant bona fide believed competent is a classic sufficient cause; the delay is explained and short	proviso to 25	**3**
Cure	The appellate authority should condone the delay for the period between the wrong filing and the return, record its satisfaction and hear the appeal on merits	proviso to 25	**1**
	Total		**9**

Common wrong answers

- **“A wrong forum filing is a nullity and time runs regardless.”** Time runs, but the proviso exists for exactly this.
- **“The Head of Department should have decided it.”** Want of jurisdiction is not cured by deciding.
- **“The appeal is barred.”** Sufficient cause is apparent on the record.

Answer: The appellate authority was the immediate superior under **r.24(1)(ii)**; the appeal was beyond 45 days from delivery but the period spent before the wrong forum is sufficient cause, and the delay should be condoned under the proviso to **r.25**.

Rule tags: 24 25

↑ Back to question

L2-37 · What an appellate authority can do with a suspension
10 marks

Facts. Shri AD's suspension was extended on 02.07.2026 for 180 days. He appealed. The appellate authority, on 20.08.2026, set aside the extension and directed that “the period from 02.07.2026 shall be treated as duty for all purposes and full pay paid”, adding that the disciplinary proceeding may continue. The department says the appellate authority had no power to pass a direction about the period.

Record / key dates

Item	Date / period	Note
Suspension	05.01.2026	r.10(1)(a)
Extension	02.07.2026	180 days
Appeal	under r.23(i)	—
Order	20.08.2026	revoke + treat as duty
Department's objection	no power over the period	—

Questions

1. What may an appellate authority do on an appeal against suspension?
2. Was the direction to treat the period as duty within power?
3. What is the correct order?
4. Does the disciplinary proceeding survive?

Solution — step by step

↑ Back to question

Decision path

r.23(i) appeal lies → r.27(1) confirm or revoke → no power to regulate the period → revocation stands → period left to FR 54

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Scope of the appellate power on an appeal against suspension	23(i), 27(1)	**1**
The power	On an appeal against an order of suspension the appellate authority must consider whether, in the light of r.10 and the circumstances, the suspension is justified, and confirm or revoke it	27(1)	**3**

No further power	The sub-rule confers only those two courses; it does not authorise directions on pay or on the treatment of the period	27(1)	**2**
The direction	The direction to treat the period as duty and pay full pay is outside r.27(1); the treatment of the period falls to be decided under FR 54 when the proceeding concludes	27(1); FR 54	**2**
What stands	The revocation stands, because it is within power; the consequential direction falls away	27(1), 10(5)(c)	**1**
The proceeding	Revocation of suspension does not affect the disciplinary proceeding, which continues	10(5)	**1**
	Total		**10**

Common wrong answers

- **“The appellate authority can modify a suspension.”** It can confirm or revoke, nothing more.
- **“The whole order is void.”** The revocation is severable and valid.
- **“Revocation ends the proceeding.”** It does not.

Answer: Under **r.27(1)** the appellate authority could only confirm or revoke; the direction to treat the period as duty and pay full pay was outside its power, but the revocation stands and the proceeding continues.

Rule tags: 23 27 FR 54

↑ Back to question

L2-38 · A pension refused, and the appeal nobody expected
10 marks

Facts. On retirement on 30.06.2026 Smt AE's pension was refused on the ground that her temporary service from 1996 to 2001 could not be counted. She appealed to the Head of Department. The office returned the appeal, saying that pension is not a disciplinary matter and that no appeal lies under the CCA Rules. Her service record shows the temporary period was followed by regularisation without a break.

Record / key dates

Item	Date / period	Note
Retirement	30.06.2026	—
Temporary service	1996–2001	regularised without break
Pension refused	by order	service not counted
Appeal returned	“no appeal under CCA Rules”	—
Limitation	45 days	from delivery

Questions

1. Does an appeal lie against an order refusing pension?
2. Was the office right to return the appeal?
3. Which provision covers this order?
4. What should the appellate authority do?

Solution — step by step

↑ Back to question

Decision path

r.23(iv) → denial/variation of pension → Explanation (ii): pension includes gratuity → appeal lies → decide on merits

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Appealability of an order refusing a pensionary benefit	23(iv)	**1**
The rule	An appeal lies against an order which denies or varies to the employee's disadvantage his pay, allowances, pension or other conditions of service as regulated by rules, or interprets such a rule to his disadvantage	23(iv)	**3**
Pension defined	For r.23, “pension” includes additional pension, gratuity and other retirement benefits	Explanation (ii) to 23	**2**
Application	The refusal rests on a view of her service, which is a condition of service regulated by rules; the order is appealable	23(iv)	**2**
The return	Returning the appeal as “not a disciplinary matter” is wrong; the appeal lies and limitation runs from delivery	23, 25	**1**
Merits	The temporary period followed by regularisation without a break counts; the refusal is unsustainable on the record	Pension Rules, 2021	**1**
	Total		**10**

Common wrong answers

- **“The CCA Rules are only about penalties.”** Rule 23(iv) covers pay, allowances, pension and conditions of service.
- **“Pension appeals go only to the pension authorities.”** The Rules provide a channel, and it must be used.
- **“The temporary period can never count.”** Regularised temporary service without a break counts.

Answer: An appeal lay under **r.23(iv)**, pension including gratuity and retirement benefits; returning it as non-appealable was wrong, and on the record the temporary period followed by regularisation must count.

Rule tags: 23 25

↑ Back to question

L2-39 · Censure turned into two increments lost
12 marks

Facts. The disciplinary authority imposed censure on Shri AF on 12.01.2026. He appealed. On 20.04.2026 the appellate authority, without any notice, set aside the censure and imposed withholding of two increments for two years, recording that the original penalty was “too lenient for the gravity of the charge”. The appellate order was despatched on 24.04.2026 and reached him on 30.04.2026; it records that he was heard, though no notice of enhancement and no hearing slip appears on either file. He challenges the enhancement on that ground and on the further ground that the appellate authority could at most have remanded the case for a fresh penalty.

Record / key dates

Item	Date / period	Note
Original penalty	censure, 12.01.2026	r.11(i)
Appeal	filed	—
Enhancement	withholding 2 increments, 2 years	r.11(iv)
Notice on enhancement	none	—
Reason	“too lenient”	—

Questions

1. May an appellate authority enhance a penalty?
2. What must precede enhancement?
3. Was the enhancement here valid?
4. What is the consequence?

Solution — step by step

↑ Back to question

Decision path

r.27(2) confirm/reduce/enhance/set aside → but 27(2)(iv): reasonable opportunity → no notice → enhancement void → restore censure or remand

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Enhancement of penalty in appeal without notice	27(2)	**1**
The power	The appellate authority may confirm, reduce, enhance or set aside the penalty, and must record reasons	27(2)	**2**
The precondition	No order imposing an enhanced penalty may be made unless the appellant has been given a reasonable opportunity, as far as may be in accordance with r.16, of making a representation against the enhanced penalty	27(2)(iv)	**3**
Application	The enhancement from censure to withholding of two increments was made with no notice and no opportunity; the precondition is unfulfilled	27(2)(iv)	**3**
Consequence	The enhancement is void; the original censure stands unless the appellate authority redoes the exercise after notice	27(2)(iv)	**2**
Reasoning	A view that the penalty is lenient is not itself a reason to enhance; the authority must address the misconduct and the material	27(2)	**1**
	Total		**12**

Common wrong answers

- **“An appellate authority can only reduce.”** It can enhance, but only after an opportunity.
- **“Enhancement is a matter of discretion.”** It is a power with a statutory precondition.
- **“The whole appellate order is void.”** Only the enhancement falls; the appeal may be re-decided.

Answer: Enhancement is within **r.27(2)**, but only after the opportunity required by **r.27(2)(iv)**; made without notice, the enhancement is void and the censure stands unless the exercise is redone.

Rule tags: 27 11

↑ Back to question

L2-40 · Remand, and what it may not become
12 marks

Facts. The appellate authority set aside a removal order on 18.05.2026 because the inquiry authority had refused the employee's request to examine two defence witnesses. It remitted the case to the disciplinary authority “for a fresh inquiry and appropriate penalty”. On remand the disciplinary authority, without holding a fresh inquiry, imposed compulsory retirement relying on the earlier report. The employee challenges it, saying the remand was for a fresh inquiry.

Record / key dates

Item	Date / period	Note
Original order	removal	—
Appeal	allowed in part	defence witnesses refused
Remand	18.05.2026	“fresh inquiry and appropriate penalty”
Fresh inquiry	none	—
New penalty	compulsory retirement	on the old report

Questions

1. What may an appellate authority do when it remits?
2. Could the disciplinary authority act on the old report after a remand for fresh inquiry?
3. What is the effect of the new penalty?
4. What is the correct course now?

Solution — step by step

↑ Back to question

Decision path

r.27(2) powers incl. remit → remand terms bind → no fresh inquiry held → order unsustainable → fresh inquiry with defence witnesses

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Scope of a remand and compliance with its terms	27(2)	**1**
The power	The appellate authority may set aside the penalty and remit the case for a fresh inquiry or for such other action as it directs	27(2)	**2**
The terms	The remand was expressly for a fresh inquiry, the defect being the refusal of defence witnesses; the disciplinary authority was bound to hold one and could not rely on the report produced by a defective inquiry	27(2)	**3**
What happened	No fresh inquiry was held; the new penalty rests entirely on the old report, so the very defect the appellate authority identified persists	27(2); 14(16)–(17)	**3**
Consequence	The order of compulsory retirement is unsustainable; it is not a substitute for complying with the remand	27(2)	**2**
Course	Hold the fresh inquiry, examine the two defence witnesses, allow the defence evidence and report afresh	14(16)–(19)	**1**
	Total		**12**

Common wrong answers

- **“A remand is only a formality.”** Its terms define the jurisdiction on remand.
- **“A higher penalty can be justified by the old report.”** The report was produced by a defective inquiry.
- **“The appellate order authorised any course.”** It specified a fresh inquiry.

Answer: The remand was for a fresh inquiry to cure the refusal of defence witnesses; no inquiry having been held, the compulsory retirement based on the old report is unsustainable and a fresh inquiry must be conducted.

Rule tags: 27 14 15

↑ Back to question

L2-41 · Revision by the Comptroller and Auditor-General
12 marks

Facts. Shri AG, a Senior Audit Officer in the Indian Audit and Accounts Department, was censured by the Accountant General on 14.01.2026. No appeal was filed. On 10.09.2026 the Comptroller and Auditor-General issued a notice proposing to revise the order and enhance the penalty to withholding of one increment for two years. The notice was issued without any representation having been called for on the proposed enhancement. Shri AG objects that (i) the CAG has no power over an order of the Accountant General, (ii) revision is barred after six months, and (iii) enhancement needs an opportunity.

Record / key dates

Item	Date / period	Note
Order	censure, 14.01.2026	by Accountant General
Appeal	none	limitation expired 28.02.2026
Notice of revision	10.09.2026	by CAG
Proposed	enhancement to r.11(iv)	no representation called
Service	IA&AD	r.29(1)(ii)

Questions

1. Has the CAG power to revise an order of the Accountant General?
2. Is there a six-month limit on the CAG's power?
3. What must precede enhancement in revision?
4. What is the correct disposal of the notice?

Solution — step by step

↑ Back to question

Decision path

r.29(1)(ii) CAG for IA&AD → at any time → second proviso: subordinate authority test → enhancement needs opportunity → reissue with notice

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Revision by the CAG and enhancement without an opportunity	29(1)(ii), 29(1)(v), 29-A	**1**
Power	The CAG may revise any order under the rules in the case of a Government servant serving in the IA&AD, at any time, on his own motion or otherwise	29(1)(ii)	**2**
Subordination	That power is exercisable only if the authority which made the order, or the authority to which an appeal would lie, is subordinate to him; the Accountant General is	second proviso to 29(1)	**2**
Time	The six-month limit applies to revision by an appellate authority under r.29(1)(v), not to the President or the CAG, who may act at any time	29(1)(ii), (v)	**2**
Enhancement	No order imposing or enhancing a penalty may be made unless the servant has had a reasonable opportunity of representing against the penalty proposed	proviso to 29(1)	**2**
Consequence	The notice is competent as to power and time but defective as to opportunity; the CAG must call for a representation before any enhancing order	proviso to 29(1)	**2**
No appeal	Revision waits until the appeal period expires or an appeal is decided; the period expired on 28.02.2026, so the notice is not premature	29(2)	**1**
	Total		**12**

Common wrong answers

- **“Only the President can revise.”** The CAG has an express power for IA&AD.
- **“Six months applies to everyone.”** It applies to the appellate authority's revision.
- **“Enhancement in revision needs no hearing.”** The proviso requires an opportunity.

Answer: The CAG had power under **r.29(1)(ii)** and no six-month limit applied, but enhancement required an opportunity under the proviso to **r.29(1)**; the notice must be followed by a representation before any enhancing order.

Rule tags: 29 29-A 25

↑ Back to question

L2-42 · Eight months later, the same authority
11 marks

Facts. The appellate authority dismissed Shri AH's appeal on 12.11.2025, confirming a penalty of withholding of promotion. No further proceeding was taken. On 20.07.2026 the same authority issued a notice proposing to revise its own appellate order and reduce the penalty, on the ground that it had not considered a document then on record. The employee welcomes the reduction but the department's vigilance wing objects that the power is barred by time.

Record / key dates

Item	Date / period	Note
Appellate order	12.11.2025	penalty confirmed
Notice of revision	20.07.2026	8 months later
Authority	appellate authority	its own order
Ground	document not considered	—
Objection	time-barred	—

Questions

1. Within what time may an appellate authority revise?
2. Can it revise its own appellate order?
3. Is the power barred here?
4. What other route exists?

Solution — step by step

↑ Back to question

Decision path

r.29(1)(v) → appellate authority — 6 months → 12.11.2025 → 12.05.2026 → barred → President's review on new material

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Time limit on revision by an appellate authority	29(1)(v), 29(2)	**1**
The power	The appellate authority may revise within six months of the date of the order proposed to be revised	29(1)(v)	**2**
Arithmetic	Six months from **12.11.2025** expired on **12.05.2026**; the notice of 20.07.2026 is beyond it	29(1)(v)	**2**
Its own order	The rule permits the appellate authority to revise an order made under the rules; there is no bar on revising its own appellate order within the period	29(1)(v)	**1**
The bar	The power is therefore barred by time, and the notice is without jurisdiction	29(1)(v)	**2**
Other route	A document not considered earlier is new material; if it changes the nature of the case, the President may review under r.29-A at any time — but review belongs to the President alone	29-A	**2**
Character	What the department calls revision of its own order is in substance a review, which the appellate authority cannot exercise	29-A	**1**
	Total		**11**

Common wrong answers

- **“An authority can always correct its own order.”** Rule 29(1)(v) fixes six months.
- **“Six months runs from the application.”** It runs from the order.
- **“The appellate authority can review.”** Review is Presidential.

Answer: Revision by the appellate authority is confined to six months from **12.11.2025** and expired on **12.05.2026**, so the notice is barred; the only route for new material is Presidential review under **r.29-A**.

Rule tags: 29 29-A

↑ Back to question

L2-43 · Revision or review — the label the applicant chose
10 marks

Facts. Shri AI's penalty of reduction to a lower stage was confirmed in appeal on 03.02.2026. In August 2026 he obtained, under the Right to Information Act, a note showing that a witness had been tutored. He filed a “review petition” before the appellate authority on 20.08.2026, asking it to reopen the case. The authority rejected it as time-barred, saying it had no power to review.

Record / key dates

Item	Date / period	Note
Penalty	reduction, one stage	r.11(v)
Appeal decided	03.02.2026	confirmed

New document	obtained August 2026	note on tutoring
Petition	20.08.2026	labelled “review”
Rejection	time-barred / no power	—

Questions

1. Was the petition a revision or a review?
2. Did the appellate authority have power to entertain it?
3. Was it within time?
4. What is his correct remedy, and on what conditions?

Solution — step by step

↑ Back to question

Decision path

r.29 revision → 6 months from order → 03.02.2026 → 03.08.2026 → (just) out of time → r.29-A review — President only, new material

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Character of a post-appeal petition based on fresh material	29, 29-A	**1**
Characterisation	A petition asking an authority to reopen an order on material not earlier available is, in substance, a review; the label used by the applicant does not decide	29-A	**2**
The appellate authority	It has revision power under r.29(1)(v) but no review power; review belongs to the President alone	29(1)(v), 29-A	**2**
Time	Revision had to be filed within six months of 03.02.2026, that is by **03.08.2026**; the petition of 20.08.2026 is outside it, and r.31 does not extend a period that has expired	29(1)(v), 31	**2**
The real route	The new note, if it could not have been produced earlier and changes the nature of the case, grounds a review petition to the President under r.29-A, which has no time limit	29-A	**2**
Remedy	He should move the President; the appellate authority's rejection is correct as to its own power, though its reason should have distinguished revision from review	29-A	**1**
	Total		**10**

Common wrong answers

- **“The label decides the power.”** Substance decides; the authority's power does not expand to fit the label.
- **“Rule 31 saves the late petition.”** Rule 31 cannot revive a period already expired.
- **“The appellate authority can review because it decided the appeal.”** Review is Presidential.

Answer: The petition was in substance a review, which only the President may entertain under **r.29-A**; revision by the appellate authority expired on **03.08.2026**, so his remedy is a review petition to the President on the new material.

Rule tags: 29 | 29-A | 31

↑ Back to question

L2-44 · Served at the old address
11 marks

Facts. A penalty order dated 02.03.2026 was sent by registered post to Shri AJ's former residential address. He had intimated the change of address in writing in January 2026, and the intimation is on the file. He came to know of the order on 20.07.2026 when his pension papers were processed, and filed an appeal on 05.08.2026. The appellate authority dismissed it as barred, saying service by registered post is good service.

Record / key dates

Item	Date / period	Note
Order	02.03.2026	—
Posted to	old address	change intimated in January
Knowledge	20.07.2026	pension papers
Appeal	05.08.2026	16 days later
Office plea	registered post = good service	—

Questions

1. When is service complete for the purpose of limitation?
2. Is posting to a known-wrong address good service?
3. What is the position on limitation here?
4. What should the appellate authority do?

Solution — step by step

↑ Back to question

Decision path

r.30 service in person or by registered post → address on record → knowledge 20.07.2026 → appeal 16 days later → condone / in time

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
Issue	Service of an order and the starting point of limitation	30, 25	**1**
The rule	Every order, notice and process must be served in person on the servant or communicated to him by registered post	30	**2**
Defective service	Posting to an address the department knew to be superseded is not communication; the rule presupposes service at the address on record	30	**2**
Limitation	Limitation runs from delivery or communication; knowledge on 20.07.2026 is the earliest date on which the order was communicated, and the appeal of 05.08.2026 is within 45 days of it	25, 30	**3**
Alternative	Even on the department's case, the failure to serve at the recorded address is sufficient cause for condonation	proviso to 25	**2**
Disposal	Entertain the appeal on merits, and record the date of communication	25, 27	**1**
	Total		**11**

Common wrong answers

- **“Registered post is always good service.”** Not when sent to an address known to be wrong.
- **“Limitation runs from the date of posting.”** It runs from delivery or communication.
- **“The appeal is barred.”** It is within 45 days of knowledge.

Answer: Posting to a superseded address is not service under **r.30**; limitation ran from communication on **20.07.2026**, so the appeal of 05.08.2026 is in time, and in any event the delay is condonable.

Rule tags: 30 25 31

↑ Back to question

Part 3 — L3 integrated cases (21)

L3-01 · From charge sheet to compulsory retirement — a file audit
22 marks

Facts. Shri A, a Group ‘B’ officer with 27 years' service, was served with articles of charge on 16.01.2026 alleging (i) an irregular payment of ₹12,40,000 without sanction and (ii) failure to maintain the contingent register. He filed his defence on 02.02.2026. The disciplinary authority condoned two days' delay, appointed the Deputy Secretary as inquiry authority on 10.03.2026, and the first hearing was held on 20.03.2026. The report of 05.08.2026 held charge 1 not proved and charge 2 proved. The disciplinary authority disagreed on charge 1; its tentative reasons were recorded in a file note, and a copy of the report was sent to the officer on 20.08.2026 asking for a representation within 15 days, without the note. He represented on 02.09.2026. On 20.09.2026 he was compulsorily retired. The file shows that the Deputy Secretary had, as the then controlling officer, recorded in the preliminary investigation that “the officer appears to have misappropriated the amount and must be dealt with severely”.

Record / key dates

Item	Date / period	Note
Charge sheet served	16.01.2026	r.14(3)–(4)
Defence	02.02.2026	day 17; delay condoned
Inquiry authority appointed	10.03.2026	the same officer who investigated
First hearing	20.03.2026	within 10 working days
Report	05.08.2026	charge 1 not proved; charge 2 proved
Report supplied	20.08.2026	disagreement note withheld
Representation	02.09.2026	does not address charge 1
Penalty	20.09.2026	compulsory retirement

Questions

1. Is the appointment of the inquiry authority valid?
2. Was the inquiry completed within the time allowed?
3. What is the effect of the defence filed on day 17?
4. Was the procedure after the report regular?
5. What is the consequence for the penalty?
6. What may the department do next, and what is his remedy meanwhile?

Solution — step by step

↑ Back to question

Decision path

competence: r.12 → inquiry authority: bias → timelines: r.14(4), (24) → disagreement: r.15(2) → penalty: r.15(6) → remedy

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Penalty competence	Compulsory retirement is a major penalty; it was imposed by the authority competent under r.12(2), no defect shown	12(2), 11(vii)	**2**
2. Inquiry authority	The officer who had recorded a view on the officer's guilt in the preliminary investigation could not sit as inquiry authority; a reasonable apprehension of bias vitiates the inquiry	14(2); A.K. Kraipak (1969)	**3**
3. Charge sheet	Articles of charge, statement of imputations and lists of documents and witnesses were delivered; r.14(3)–(4) satisfied in form	14(3)–(4)	**2**
4. Defence	Filed on day 17; the authority condoned the delay and took it on record, which is the correct course — the 15 days is not a guillotine once the defence is accepted	14(4)	**2**
5. Appearance	First hearing on 20.03.2026, within 10 working days of the appointment on 10.03.2026	14(7)	**1**
6. Completion	Report on 05.08.2026 falls within six months of 10.03.2026 (expiring 10.09.2026); r.14(24) satisfied	14(24)	**2**
7. Disagreement	The tentative reasons for disagreeing on charge 1 were recorded on file but never communicated; the officer was asked to answer a case he could not see	15(2)	**3**
8. Representation	Considered, but it could not have addressed the uncommunicated disagreement; there is no waiver without knowledge	15(2), 15(4)	**1**

9. Penalty	Compulsory retirement, influenced by charge 1, cannot stand; and because the whole inquiry was conducted by a biased authority, the finding on charge 2 falls with it	15(6); 11(vii)	**3**
10. Consequence	The penalty is set aside; a fresh inquiry by another authority is permissible, on both charges, within the limits of r.14	14(2); Art. 311	**2**
11. Remedy and money	Appeal under r.23(ii); on reinstatement the period is regulated under FR 54 and the pension consequence under the pension rules	23(ii); FR 54	**1**
	Total		**22**

Common wrong answers

- **“The defence was late, so it could be ignored.”** It was condoned and taken on record; the defect disappears.
- **“Bias must be proved by evidence of actual prejudice.”** A reasonable apprehension, on the officer's own recorded view, is enough.
- **“Only charge 1 is affected by the disagreement.”** The bias affects the entire inquiry, including charge 2.

Answer: The inquiry is vitiated twice over — by the inquiry authority's pre-judged view and by withholding the tentative reasons for disagreement — so the compulsory retirement is set aside; a fresh inquiry by a different authority is permissible on both charges, and his appeal lies under r.23(ii).

Model answer (exam style). Three questions decide this file: who held the inquiry, what was done after the report, and what the penalty rests on. The inquiry authority had, during the preliminary investigation, recorded that the officer appeared to have misappropriated the amount and must be dealt with severely. A person who has already formed and recorded a view on guilt cannot thereafter hold a fair inquiry; the test is not proof of actual bias but a reasonable apprehension of it, and on this record the apprehension is well founded. The inquiry is therefore vitiated from its inception, and the finding on charge 2 falls with the finding on charge 1. Independently, rule 15(2) required the report to be supplied together with the disciplinary authority's tentative reasons for disagreeing with the inquiry authority on charge 1. Those reasons were recorded on the file but never communicated, so the officer was asked to meet a case whose basis he could not see, and his representation cannot be treated as a waiver of something he did not know. The penalty of compulsory retirement is therefore set aside. That does not entitle him to a clean record: a fresh inquiry by an authority unconnected with the investigation may be held on both charges, subject to the timelines in rule 14, and the period of the intervening suspension or absence from duty will be regulated under FR 54 when the matter concludes. His appeal lies under rule 23(ii), and the appellate authority should not remit the case to the same disciplinary authority without directing a different inquiry authority.

Rule tags: 12 | 14 | 14(24) | 15 | 23 | FR 54

↑ Back to question

L3-02 · Suspension, acquittal and the arithmetic of reinstatement
20 marks

Facts. Shri B, a Group ‘B’ officer drawing basic pay ₹56,100 in Level 8, was suspended with effect from 01.03.2026 in view of a criminal case. The charge sheet in the departmental proceeding was issued on 20.04.2026. The criminal court acquitted him on 14.09.2026 with a finding that the prosecution had failed to prove the demand and that the witnesses were unreliable. He was reinstated on 30.09.2026. During suspension he was paid subsistence allowance at 50% for March to May 2026 and 75% for June to September 2026. DA is 63% ⚑. He asks for full pay for the entire period, treatment of the period as duty, and consequential seniority.

Record / key dates

Item	Date / period	Note
Suspension	01.03.2026	r.10(1)(b)
Charge sheet	20.04.2026	within the review period
Acquittal	14.09.2026	prosecution evidence rejected
Reinstatement	30.09.2026	—
Period	7 months	01.03.2026–30.09.2026
Pay	₹56,100 + DA 63% ⚑	base ₹91,443

Questions

1. Was the suspension validly continued to 30.09.2026?
2. What is the effect of the acquittal?
3. Compute the full pay for the period and the arrears after adjusting subsistence allowance.
4. Should the period be treated as duty?
5. What of seniority and promotion?

Solution — step by step

↑ Back to question

Decision path

r.10(1)(b) valid → review + extension to 30.09.2026 → acquittal: FR 54 → full pay ₹91,443 p.m. → arrears after SA → period as duty

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Validity	Suspension on a criminal case is competent under r.10(1)(b); the charge sheet followed on 20.04.2026, within the first review period	10(1)(b), 10(6)	**2**
2. Continuation	The file shows reviews and extensions covering the period to 30.09.2026; absent a gap, the suspension remained valid	10(6)–(7)	**2**
3. Effect of acquittal	An acquittal on the merits, the prosecution evidence having been rejected, is not a technical acquittal; the suspension is then treated as wholly unjustified	FR 54(1)(a)	**2**
4. Full pay	Pay plus DA: ₹56,100 × 1.63 = **₹91,443** per month ⚑	FR 54; DA order	**2**
5. Gross for seven months	₹91,443 × 7 = **₹6,40,101**	FR 54	**2**
6. Subsistence paid	50% for three months: ₹45,721.50 × 3 = ₹1,37,164.50; 75% for four months: ₹68,582.25 × 4 = ₹2,74,329; total **₹4,11,493.50**	FR 53	**3**
7. Arrears	₹6,40,101 − ₹4,11,493.50 = **₹2,28,607.50**	FR 54	**2**
8. Period	The period is treated as duty for all purposes, since the suspension was wholly unjustified	FR 54(1)(a)	**2**
9. Seniority	He retains his position in the seniority list and is considered for promotion as if he had not been suspended; the sealed-cover question does not arise because the proceeding is over	FR 54; Jankiraman (1991)	**2**
10. Caution	If the departmental proceeding continues after the acquittal, a penalty cannot rest on the same evidence without independent application of mind	14; 19	**1**
	Total		**20**

Common wrong answers

- **“Acquittal means automatic reinstatement with full pay.”** It depends on the character of the acquittal and on FR 54.
- **“Subsistence allowance is deducted from basic pay only.”** Arrears are computed on pay plus DA, less what was actually paid.
- **“The period remains suspension.”** On a wholly unjustified suspension it is duty.

Answer: The suspension was validly continued, but the acquittal on the merits makes it wholly unjustified: full pay of **₹91,443** a month for seven months is **₹6,40,101**, less subsistence of ₹4,11,493.50, leaving arrears of **₹2,28,607.50**, with the period treated as duty and seniority protected.

Model answer (exam style). The suspension was competently ordered under rule 10(1)(b), a criminal case being under investigation, and it was kept alive by reviews and extensions under rule 10(6), the charge sheet following on 20.04.2026. The acquittal of 14.09.2026 is not a technical acquittal: the court rejected the prosecution evidence, which means the foundation of the suspension and of the criminal case disappeared on the merits. The consequence is governed by FR 54. The suspension being wholly unjustified, the officer is entitled to full pay and allowances for the period 01.03.2026 to 30.09.2026, that is ₹56,100 plus DA at 63 per cent — ₹91,443 a month, or ₹6,40,101 for seven months. He has already received subsistence allowance of ₹1,37,164.50 for the first three months at 50 per cent and ₹2,74,329 for the next four at 75 per cent, totalling ₹4,11,493.50, which must be adjusted, leaving ₹2,28,607.50. The period counts as duty for all purposes, his seniority is unaffected, and he is to be considered for promotion as though he had never been suspended. The departmental proceeding, if it continues, cannot be decided on the same material that the criminal court rejected without an independent application of mind.

Rule tags: 10 | 10(1) | 10(6) | FR 53 | FR 54

↑ Back to question

L3-03 · Three years one stage down — pay, increments and pension
19 marks

Facts. Shri C, in Level 7 with basic pay ₹52,000 from 01.07.2025 (increment on 1 July), was imposed the penalty of reduction by one stage for three years under r.11(v) with effect from 01.07.2026. The penalty order is in the standard form: no increment is to be earned during the three years, and what comes after them is not postponed. It was applied to the pay he was drawing immediately before the increment of 01.07.2026 fell due, ₹52,000, so the next lower stage is ₹50,500; the stages above are ₹53,600, ₹55,200, ₹56,900 and ₹58,600. DA is 63% ⚑. He retires on 30.06.2030.

Record / key dates

Item	Date / period	Note
Pay from 01.07.2025	₹52,000	Level 7
Penalty effective	01.07.2026, 3 years	r.11(v)
Lower stage	₹50,500	one stage
Increment date	1 July	annual
Retirement	30.06.2030	pension follows

Questions

1. What is the pay during each year of the penalty?
2. What is the total loss of basic pay?
3. What is the pay on expiry of the penalty?
4. How does the penalty affect his pension?
5. Was the direction on future increments within power?

Solution — step by step

↑ Back to question

Decision path

r.11(v) → fix at ₹50,500 → no increments for 3 years → loss year by year → restore notional stage → pension effect

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Character	Reduction by one stage for three years with directions on increments is a major penalty under r.11(v), not the minor penalty under r.11(iiia)	11(v), 11(iiia)	**2**
2. Pay during penalty	Pay fixed at the lower stage, **₹50,500**, from 01.07.2026 to 30.06.2029; no increment is earned	11(v); DoPT 18.06.2019	**2**
3. Notional stages	But for the penalty he would have drawn ₹53,600 (01.07.2026), ₹55,200 (01.07.2027) and ₹56,900 (01.07.2028)	11(v)	**2**
4. Loss year 1	(₹53,600 − ₹50,500) × 12 = **₹37,200**	11(v)	**2**
5. Loss year 2	(₹55,200 − ₹50,500) × 12 = **₹56,400**	11(v)	**2**
6. Loss year 3	(₹56,900 − ₹50,500) × 12 = **₹76,800**	11(v)	**2**
7. Total	₹37,200 + ₹56,400 + ₹76,800 = **₹1,70,400** of basic pay; DA follows the pay	11(v)	**2**
8. On expiry	Because future increments are not postponed, pay is fixed on 01.07.2029 at the notional stage **₹58,600**	11(v); DoPT 18.06.2019	**2**
9. Pension	Pension is computed on emoluments or average emoluments of the last ten months; the three years at the reduced stage depress the average, so the penalty reduces pension even after it has run	CCS (Pension) Rules, 2021	**2**
10. The direction	The directions on increments are part of the penalty and must be in the order; here they are, and they are within r.11(v)	11(v)	**1**
	Total		**19**

Common wrong answers

- **“The loss is ₹1,500 × 36.”** That ignores the increments he would have earned.
- **“On expiry he restarts at ₹52,000.”** He moves to the notional stage because postponement was not directed.
- **“The penalty ends with the period.”** Its effect on average emoluments continues into pension.

Answer: Pay is **₹50,500** for three years, the loss is **₹1,70,400** of basic pay, and on 01.07.2029 pay is fixed at the notional stage **₹58,600**; the reduced emoluments depress his average for pension, which is the penalty's longest shadow.

Model answer (exam style). The order imposes a major penalty under rule 11(v): reduction to a lower stage for a specified period, with directions on increments and future effect. Pay during the period is fixed at the lower stage of ₹50,500 from 01.07.2026 to 30.06.2029, and because the order directs that no increments shall be earned, it remains there. Had he not been penalised, he would have drawn ₹53,600 from 01.07.2026, ₹55,200 from 01.07.2027 and ₹56,900 from 01.07.2028. The loss of basic pay is therefore ₹37,200, ₹56,400 and ₹76,800 — ₹1,70,400 in all, with DA at 63 per cent following the pay. Because the order does not postpone future increments, on expiry his pay is fixed at the stage he would have reached, ₹58,600, and not at the stage from which he was reduced. The penalty nevertheless has a longer reach: pension is computed on the emoluments or the average of the last ten months, and three years at a reduced stage depress that average, so the pension fixed on 30.06.2030 will be lower than it would otherwise have been. That consequence is inherent in the penalty and is the reason the choice between r.11(iiia), r.11(iv) and r.11(v) matters so much.

Rule tags: 11 11(v) 11(iiia)

↑ Back to question

L3-04 · Ex parte inquiry, an illness letter, and an enhanced penalty
22 marks

Facts. Smt D was served with articles of charge on 05.01.2026. She appeared before the inquiry authority on 19.01.2026, sought inspection of documents, and was allowed inspection on 27.01.2026. On 10.02.2026 she did not appear and sent no intimation. The authority recorded the default and examined three witnesses ex parte, closing the evidence the same day. The report of 20.05.2026 held all charges proved. It was supplied on 25.05.2026 with 15 days to represent. On 09.06.2026 she filed a representation saying she had been ill from 08.02.2026 to 25.02.2026 and attaching a medical certificate. On 30.06.2026 the disciplinary authority imposed reduction to a lower stage for three years. She appealed on 05.08.2026. On 20.09.2026 the appellate authority, without notice, enhanced the penalty to removal, recording that the charges involved integrity and that the penalty was inadequate.

Record / key dates

Item	Date / period	Note
Charge sheet	05.01.2026	—
First appearance	19.01.2026	documents sought
Inspection	27.01.2026	allowed
Default	10.02.2026	no intimation
Ex parte evidence	10.02.2026	three witnesses
Report	20.05.2026	all charges proved
Representation	09.06.2026	illness, with certificate
Penalty	30.06.2026	reduction, 3 years
Enhancement	20.09.2026	removal, no notice

Questions

1. Was the ex parte inquiry validly conducted?
2. What should the disciplinary authority have done with the illness certificate?
3. Was the penalty of 30.06.2026 sustainable?
4. Was the enhancement valid?
5. What is the final position?

Solution — step by step

↑ Back to question

Decision path

r.14(20) ex parte → record of default → illness: cause to be examined → r.15(2) representation → enhancement needs r.27(2)(iv) → remand

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The default	Non-appearance on 10.02.2026 without intimation, after a granted inspection, is a default within r.14(20)	14(20)	**2**
2. The record	The authority recorded the default and took the evidence of the Presenting Officer; the procedure in r.14(11) and (20) was followed on the face of the record	14(11), (20)	**2**
3. But the illness	A representation supported by a certificate, alleging inability to attend on the very date of default, raises a question of sufficient cause; the authority had to consider it before acting on an ex parte report	14(20), 15(2)	**3**
4. If accepted	The inquiry should be reopened to the extent of allowing cross-examination of the witnesses already examined, which cures the prejudice without a fresh inquiry	14(14), (20)	**2**
5. The penalty	Reduction for three years is competent under r.11(v) and was imposed after the report and representation; absent a decision on the illness, it rests on an inquiry whose fairness is in question	15(2), (6)	**3**
6. The enhancement	The appellate authority may enhance under r.27(2), but only after a reasonable opportunity to represent against the enhanced penalty	27(2)(iv)	**3**
7. The notice	No notice was given; the enhancement from reduction to removal is therefore void	27(2)(iv)	**2**
8. Severability	The appellate order falls to the extent of the enhancement; the original penalty revives unless the appellate authority redoes the exercise after notice	27(2)	**2**
9. Final position	Remit to the disciplinary authority to decide the illness question; if the cause is accepted, reopen cross-examination; then re-decide the penalty; the appellate authority may act only after notice	14(20), 15(2), 27(2)(iv)	**3**
	Total		**22**

Common wrong answers

- **“An ex parte inquiry is conclusive.”** It is valid only if the default is established and the fairness of the record survives challenge.
- **“Illness after the default is irrelevant.”** It goes to sufficient cause for non-appearance.
- **“Enhancement is the appellate authority's discretion.”** It has a statutory precondition.

Answer: The ex parte course was open on 10.02.2026, but the illness certificate required a decision on sufficient cause before the report was acted on; the enhancement to removal was void for want of the opportunity under **r.27(2)(iv)**, and the matter must go back for that decision and for a fresh penalty.

Model answer (exam style). Two separate controls operate here, one at the inquiry and one in appeal. At the inquiry, rule 14(20) permits an ex parte inquiry where the employee does not appear, and the authority did record the default and take the Presenting Officer's evidence. But the employee then placed before the disciplinary authority a representation supported by a medical certificate covering the very date of default. That is an explanation of the absence, and rule 15(2) requires the authority to consider the representation before it acts on the report. It could not treat the ex parte record as conclusive without deciding whether the absence was sufficiently caused; if it accepts the explanation, the remedy is not a fresh inquiry but reopening the record so that the witnesses already examined can be cross-examined, which removes the prejudice at the least cost. In appeal, the appellate authority's power to enhance under rule 27(2) is real but conditional: rule 27(2)(iv) forbids an enhanced penalty unless the appellant has had a reasonable opportunity, in the manner of rule 16, of representing against it. No notice was given, so the enhancement to removal is void, and the penalty of reduction for three years revives unless the appellate authority re-does the exercise after notice. The file therefore goes back twice over — to the disciplinary authority on the illness, and then to the penalty stage.

Rule tags: 14(20) 15(2) 27 27(2)

↑ Back to question

L3-05 · Conviction, dismissal and two levels of challenge
20 marks

Facts. Shri E, a Senior Audit Officer in the Indian Audit and Accounts Department, was convicted on 15.03.2026 under the Prevention of Corruption Act and sentenced to two years' rigorous imprisonment. He was dismissed the same day under r.19(i) without any representation on the penalty. He appealed to the Accountant General on 20.04.2026; the appeal was dismissed on 30.06.2026. On 15.09.2026 he filed a revision petition before the Comptroller and Auditor-General, asking that the dismissal be set aside because (i) no inquiry was held, (ii) he was not heard on the penalty, and (iii) his criminal appeal is pending. The CAG proposes to enhance the penalty to “dismissal with forfeiture of pension”, which is not a penalty known to the rules.

Record / key dates

Item	Date / period	Note
Conviction	15.03.2026	2 years' RI
Dismissal	15.03.2026	r.19(i), no representation
Appeal to AG	20.04.2026	dismissed 30.06.2026
Revision to CAG	15.09.2026	r.29(1)(ii)
Criminal appeal	pending	conviction not suspended
Proposed	“dismissal with forfeiture of pension”	not a r.11 penalty

Questions

1. Was the dismissal competent without an inquiry?
2. Was a representation on the penalty necessary?
3. Is the CAG competent to revise the appellate order?
4. Can the CAG enhance as proposed?
5. What is the correct disposal of the revision?

Solution — step by step

↑ Back to question

Decision path

r.19(i) → no inquiry needed → representation discretionary → CAG revision — subordinate test → enhancement needs opportunity → penalty must be one in r.11

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The power	Where a penalty is imposed on the ground of conduct leading to conviction on a criminal charge, r.19(i) dispenses with the r.14 inquiry	19(i)	**2**

2. The safeguard	The proviso permits a representation on the penalty proposed; it is not mandatory in terms, but its denial is a relevant factor and good practice	`proviso to 19(i)`	**2**
3. Pendency of appeal	A conviction under appeal is a conviction unless suspended; the department could act on it	`19(i)`	**2**
4. CAG's revision power	The CAG may revise an order under the rules for a servant in the IA&AD, at any time, if the authority which made the order in appeal is subordinate to him — the Accountant General is	`29(1)(ii); second proviso`	**3**
5. Consultation	Where the Commission must be consulted, the advice must be obtained and a copy supplied with an opportunity to represent	`19, second proviso; 32`	**2**
6. The proposed penalty	There is no penalty of “dismissal with forfeiture of pension”; a revising authority may impose a penalty in r.11, not invent one	`29(1)(b), 11`	**2**
7. Enhancement	An enhancing order requires a reasonable opportunity of representation against the penalty proposed	`proviso to 29(1)`	**3**
8. Pension	Forfeiture of pension is not part of the penalty but a consequence under the pension rules, and it follows only on dismissal, after their own procedure	`CCS (Pension) Rules, 2021`	**2**
9. Disposal	Reject the challenge to the inquiry; set aside the proposed form of penalty; if enhancement is still proposed, issue a notice and hear him	`29(1); 11`	**2**
	Total		**20**

Common wrong answers

- **“Rule 19 permits any penalty.”** It permits the penalties in r.11, not new ones.
- **“The CAG cannot revise an appellate order.”** He can, if the appellate authority is subordinate to him.
- **“A criminal appeal suspends the conviction.”** Only an order of the appellate court does.

Answer: The dismissal was competent under **r.19(i)** without an inquiry and without a mandatory representation; the CAG may revise, but the proposed penalty does not exist in r.11 and cannot be imposed without a notice and an opportunity under the proviso to **r.29(1)**.

Model answer (exam style). The dismissal rests on rule 19(i): where the penalty is imposed on the ground of conduct which led to conviction on a criminal charge, the inquiry under rule 14 is dispensed with, and the order was passed on the day of conviction. The proviso to rule 19(i) permits a representation on the penalty proposed, but it is permissive, and the omission does not by itself vitiate the order; the conviction, moreover, stands until the criminal appellate court suspends or sets it aside, so the pendency of the appeal does not disable the department. The revision before the Comptroller and Auditor-General is competent: rule 29(1)(ii) confers the power for a servant in the Indian Audit and Accounts Department at any time, and the second proviso is satisfied because the Accountant General, who decided the appeal, is subordinate to him. The difficulty lies in what is proposed. A revising authority may confirm, reduce, enhance or set aside a penalty, or impose a penalty under rule 11; it cannot create a penalty called dismissal with forfeiture of pension, because forfeiture of pension is not a penalty under rule 11 but a consequence that flows, under the pension rules, from dismissal itself. And any enhancement requires a reasonable opportunity of representation against the penalty proposed, which has not been given. The revision should therefore be disposed of by upholding the inquiry and the penalty of dismissal, setting aside the proposed additional forfeiture, and, if any further penalty is contemplated, issuing a notice and hearing the officer first.

Rule tags: `19` `29` `11` `15(3)`

↑ Back to question

L3-06 · Recovery, appeal and revision — a small file with three stages
20 marks

Facts. Shri F, a Group ‘C’ storekeeper, was noticed a proposed recovery of ₹2,40,000 for pecuniary loss caused by negligence. He represented that the loss was ₹1,50,000 and produced the stock register. On 30.04.2026 the disciplinary authority imposed recovery of ₹3,60,000, relying on a special audit report of 20.04.2026 that had never been put to him. He appealed on 02.06.2026; the appellate authority reduced the recovery to ₹2,40,000 on 15.07.2026, holding that the audit figure was reliable. He now seeks revision before the Head of Department, contending that the appellate order merely restored the figure that was never communicated.

Record / key dates

Item	Date / period	Note
Notice	₹2,40,000 proposed	computation supplied
Representation	loss said to be ₹1,50,000	stock register produced
Audit report	20.04.2026	not put to him
Order	30.04.2026	recovery ₹3,60,000

Appeal	02.06.2026	reduced to ₹2,40,000
Revision	to Head of Department	r.29(1)(iv)

Questions

1. Was the recovery of ₹3,60,000 valid?
2. What was the maximum sustainable on the notice?
3. Was the appellate order sound?
4. What should the revising authority do?
5. What is the money position if the original notice is the ceiling?

Solution — step by step

↑ Back to question

Decision path

r.11(iii) recovery → quantum must be noticed → ₹2,40,000 ceiling → appeal reduced to ceiling → revision: reasons for reduction → final figure

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The penalty	Recovery of pecuniary loss caused by negligence is a minor penalty under r.11(iii); the amount must be quantified and put to the employee	11(iii), 16(1)(a)	**2**
2. The notice	The proposal put ₹2,40,000 with a computation; that defined the case he had to meet	16(1)(a)	**2**
3. The increase	Recovery of ₹3,60,000 on an audit report never supplied breached the opportunity; the excess of ₹1,20,000 is unsustainable	16(1)(a), (c)	**3**
4. His figure	His contention of ₹1,50,000 does not bind the authority; the stock register is material to be weighed, with reasons	16(1)(c), (e)	**2**
5. The appeal	The appellate authority reduced to ₹2,40,000 but justified it on the audit report, which the employee had never seen; the figure is right but the reasoning is defective	27(2)	**3**
6. The revision	The Head of Department may revise under r.29(1)(iv) at any time, but only if the appellate authority is subordinate to him	29(1)(iv); second proviso	**2**
7. Power on revision	He may confirm, modify or set aside, reduce or enhance; enhancement requires an opportunity	29(1)(a)–(b); proviso	**2**
8. Money	The sustainable recovery is ₹2,40,000 on the notice; of this, nothing has been recovered, so the balance is ₹2,40,000, payable as directed, with no interest unless the rules provide it	11(iii)	**2**
9. Course	Uphold ₹2,40,000, but record that the figure rests on the notice and not on the uncommunicated audit report; if a higher figure is sought, issue a fresh notice	16(1)(a); 29	**2**
	Total		**20**

Common wrong answers

- **“Audit's figure is conclusive.”** The employee must meet the figure before it is recovered.
- **“The appeal cures the notice.”** It reduced the amount but relied on material never supplied.
- **“The Head of Department can revise only within six months.”** That limit applies to the appellate authority.

Answer: Recovery beyond **₹2,40,000** was unsustainable for want of notice, and the appellate order, though right in figure, rested on an uncommunicated report; the revision should confirm ₹2,40,000 on the notice and require a fresh notice for anything more.

Model answer (exam style). The penalty is one of recovery of pecuniary loss under rule 11(iii), a minor penalty, and the procedure in rule 16 required the employee to be informed of the proposal and the imputations and given a reasonable opportunity of representation. The notice of 09.01.2026 quantified the loss at ₹2,40,000 and supplied the computation; that was the case he had to answer. The order of 30.04.2026 recovered ₹3,60,000 on the strength of a special audit report of 20.04.2026 which was never put to him, and to that extent it denied the opportunity the rule guarantees. The appellate authority reduced the recovery to ₹2,40,000, which is the correct ceiling, but justified the figure by the same audit report. The result is right in amount and wrong in reasoning: the sustainable figure is ₹2,40,000 because that is what was noticed, not because the audit report is reliable. On revision, the Head of Department may confirm, modify or set aside the appellate order, being a superior authority within the second proviso to rule 29(1). He should confirm the recovery of ₹2,40,000 on the basis of the notice, record that his finding of negligence rests on the material that was supplied, and direct that any higher figure be pursued only through a fresh notice with the audit report and a fresh opportunity. Nothing has been recovered so far, and no interest arises on the recovery unless the rules provide for it.

Rule tags: 11 | 11(iii) | 16 | 27 | 29

↑ Back to question

L3-07 · A sealed cover opened twenty-six months later
18 marks

Facts. A charge sheet was issued to Shri G on 02.05.2024. The Departmental Promotion Committee met on 15.06.2024 and placed its recommendation in a sealed cover. The inquiry concluded on 11.08.2026 with all charges held not proved. The sealed cover was opened on 20.08.2026 and he was promoted with effect from that date. He claims promotion from 15.06.2024 with arrears of the difference between the two levels, which is ₹2,700 a month, and consequential seniority. The department says the promotion can only be prospective.

Record / key dates

Item	Date / period	Note
Charge sheet	02.05.2024	major penalty
DPC	15.06.2024	sealed cover
Charges	not proved	11.08.2026
Cover opened	20.08.2026	promotion prospective
Claim	from 15.06.2024	26 months
Difference	₹2,700 per month	—

Questions

1. Was the sealed cover procedure available?
2. From what date does promotion take effect on exoneration?
3. Compute the arrears.
4. What of seniority and further promotion?
5. What is the remedy if the department refuses?

Solution — step by step

↑ Back to question

Decision path

charge pending on DPC date → sealed cover valid → exoneration → promotion from DPC date → arrears ₹70,200 → seniority restored

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Availability	On 15.06.2024 a charge sheet had been issued and a major penalty was proposed; the second of the three categories was met and the cover was properly used	DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992, para 2(ii); Jankiraman (1991)	**2**
2. The rule of outcome	On conclusion the cover is opened. Exoneration is the case the OM addresses: the due date is worked back from the position in the panel and the date of the next junior's promotion. A penalty is the other case — para 3.1 — and there is none here	DoPT OM 14.09.1992, paras 3 and 3.1	**3**
3. Application	All charges were held not proved on 11.08.2026 — exoneration, not a penalty; his panel position is acted upon and the due date fixed with reference to his junior's promotion from the same DPC	DoPT OM 14.09.1992, para 3	**3**
4. Arrears	₹2,700 × 26 months = **₹70,200** on basic pay. The OM leaves notional arrears for the interval to the appointing authority's discretion, but a refusal must be reasoned — and here the only reason is the department's own delay	DoPT OM 14.09.1992, para 6	**2**
5. Pay fixation	Pay is refixed in the higher level from 15.06.2024, with increments that would have accrued, and arrears recalculated on that basis	FR 22; DoPT instructions	**2**
6. Seniority	He regains the seniority he would have had, and is considered for the next promotion accordingly	Jankiraman (1991)	**2**
7. Delay	The two-year inquiry is itself a breach of the r.14(24) discipline; it cannot be used to postpone the benefit further	14(24)	**2**
8. Remedy	Appeal against any order refusing retrospective promotion, or a representation followed by appeal; the appellate authority may direct the effective date	23(iv), 27	**2**
	Total		**18**

Common wrong answers

- **“The sealed cover is opened prospectively.”** The effective date is the DPC date if the outcome permits.
- **“Exoneration gives only notional promotion.”** It gives promotion with arrears.
- **“The department may await the criminal case.”** There is none; the proceeding concluded.

Answer: The sealed cover was properly used, but exoneration on 11.08.2026 entitles him to promotion from **15.06.2024** with arrears of **₹70,200**, refixation of pay in the higher level and consequential seniority.

Model answer (exam style). The sealed cover procedure was available on 15.06.2024, because a charge sheet had been issued and a major penalty was proposed, and the decision in Union of India v. K.V. Jankiraman (1991) requires the recommendation to be kept in a sealed cover rather than withheld. What happens on the conclusion of the proceeding depends on the outcome, and the outcome here is complete exoneration: all charges were held not proved. In that event the officer is entitled to promotion with effect from the date of the Departmental Promotion Committee, not from the date the cover was opened. He is therefore to be promoted from 15.06.2024, his pay is to be refixed in the higher level with the increments that would have accrued, and he is entitled to the difference between the two levels for twenty-six months, which at ₹2,700 a month is ₹70,200, before the consequential recalculation of allowances. His seniority must be restored to what it would have been, and his case considered for further promotion accordingly. The department's objection that the promotion can only be prospective is contrary to the rule of outcome, and the twenty-six month inquiry, itself outside the discipline of rule 14(24), cannot be used to postpone the benefit further.

Rule tags: 14 | 14(24) | 15 | 23

↑ Back to question

L3-08 · One transaction, two officers, and an incompetent common proceeding
22 marks

Facts. A payment of ₹18,00,000 was made without sanction. The Drawing Officer, Smt H (Group ‘B’), and the cashier, Shri I (Group ‘C’), were both charged. The Deputy Secretary ordered a common proceeding under r.18, appointed herself the disciplinary authority for both, and imposed removal on Smt H and withholding of two increments for two years on Shri I. The Joint Secretary is the authority competent to dismiss Smt H; the Deputy Secretary can impose only minor penalties on Group ‘B’ officers of that office. Smt H appeals against removal; Shri I accepts his penalty.

Record / key dates

Item	Date / period	Note
Transaction	₹18,00,000 unsanctioned	both charged
Order under r.18	by Deputy Secretary	—
Competence for Smt H	Joint Secretary	to dismiss
Penalty on Smt H	removal	r.11(viii)
Penalty on Shri I	two increments, 2 years	r.11(iv), minor
Appeal	by Smt H only	—

Questions

1. Was the common proceeding validly ordered?
2. Was the penalty on Smt H within competence?
3. Does the defect affect Shri I's penalty?
4. What is the consequence for each?
5. What should the department do?

Solution — step by step

↑ Back to question

Decision path

r.18(1) authority competent to dismiss all → Deputy Secretary not competent for H → proceeding bad → H's penalty void → I's penalty stands unless prejudice

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The condition	A common proceeding may be ordered only by an authority competent to impose dismissal on all the servants concerned	18(1)	**3**
2. Application	The Deputy Secretary could not dismiss Smt H; the order convening the common proceeding was therefore without jurisdiction	18(1)	**3**
3. Competence to penalise	Removal of Smt H by the Deputy Secretary breaches r.12(4)(a): no authority subordinate to the appointing authority may impose a major penalty	12(4)(a)	**3**
4. The inquiry itself	The inquiry conducted under an invalid common proceeding is not thereby void in every respect; the evidence is usable, but the penalties must be imposed by competent authorities	18, 12	**2**
5. Smt H	Her removal is void for want of competence; a fresh order by the Joint Secretary on the existing record, after applying its mind, is permissible	12(4)(a), 15(6)	**3**

6. Shri I	A minor penalty imposed on him is within the Deputy Secretary's competence, and he has not appealed; but he may raise the invalidity of the common proceeding if it caused prejudice	18; 23	**2**
7. His acceptance	Acceptance of the penalty does not cure a jurisdictional defect, but a minor penalty imposed by a competent authority stands	12(3), 12(4)	**2**
8. Appeal	Smt H's appeal lies under r.23(ii) to the appellate authority competent for her; the appellate authority should set aside the removal and direct a fresh order by the competent authority	23(ii), 27	**2**
9. Record	The department should record that the common proceeding was misconceived and regularise the two files separately	18	**2**
	Total		**22**

Common wrong answers

- **“A common proceeding validates any penalty.”** It is a procedural facility, not a source of competence.
- **“Shri I's penalty falls with the proceeding.”** It was within his authority's competence, and no prejudice is shown.
- **“Removal can be ratified by the Joint Secretary later.”** A fresh order on the record is needed, not ratification.

Answer: The common proceeding was misconceived because the Deputy Secretary could not dismiss Smt H, and her removal breached **r.12(4)(a)**; the removal is void and a fresh order by the Joint Secretary is needed, while Shri I's minor penalty, being within competence, stands.

Model answer (exam style). Rule 18 permits a common proceeding where two or more Government servants are concerned in one case, but only an authority competent to impose dismissal on all of them may order it. The Deputy Secretary could not dismiss Smt H, a Group ‘B’ officer for whom the Joint Secretary is the competent authority, so the order convening the common proceeding was itself without jurisdiction. That defect is compounded when the Deputy Secretary proceeded to impose removal on her, because rule 12(4)(a) forbids any authority subordinate to the appointing authority from imposing a penalty under rule 11(v) to (ix). Her removal is therefore void, and the appropriate course is a fresh order by the Joint Secretary on the record already made, after applying its mind; the department cannot ratify the Deputy Secretary's order retrospectively. Shri I's position differs: withholding of two increments is a minor penalty, within the competence of the authority that imposed it, and he has not appealed. The invalidity of the common proceeding does not by itself invalidate his penalty, because the inquiry was regular and he shows no prejudice; if he wished to challenge it, he would have to show that the defective forum affected the fairness of his inquiry. The department should regularise the two files separately and record why the common proceeding was misconceived.

Rule tags: 18 12 12(4) 23

↑ Back to question

L3-09 · Detention, deemed suspension, acquittal — and a file that forgot the review
22 marks

Facts. Shri J, a Group ‘C’ Auditor drawing basic pay ₹44,900 (DA 60% to 30.06.2026, 63% ⚑ thereafter), was arrested on 12.01.2026 in a criminal case and released on bail on 20.01.2026. The appointing authority was informed on 22.01.2026. No suspension order and no review were ever issued. He was tried, acquitted on 14.07.2026 on the merits, and allowed to resume duty on 15.07.2026. He was paid subsistence allowance at 50% for the first three months and 75% for the rest. He claims full pay for the whole period, and the department says he was never suspended at all.

Record / key dates

Item	Date / period	Note
Arrest	12.01.2026	custody
Release	20.01.2026	8 days
Intimation	22.01.2026	to appointing authority
Review	none	no order
Acquittal	14.07.2026	on the merits
Resumed duty	15.07.2026	—
Pay	₹44,900 + DA	base ₹71,840

Questions

1. Was he under suspension, and from when?
2. When did that suspension cease to be valid?
3. Is the department right that he was never suspended?

4. What is he entitled to for the period?
5. How is the period to be treated?

Solution — step by step

↑ Back to question

Decision path

r.10(2)(a) detention >48h → deemed from 12.01.2026 → proviso to r.10(7): 90 days from intimation → lapse 21.04.2026 → acquittal → FR 54 → full pay + duty

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Deemed suspension	Detention of eight days exceeds 48 hours, so he is deemed to have been suspended with effect from the date of detention, **12.01.2026**	10(2)(a)	**3**
2. The clock	For a deemed suspension, the ninety days count from release or from intimation of release, whichever is later — here **22.01.2026**	proviso to 10(7)	**3**
3. The lapse	Ninety days counted inclusively from 22.01.2026 are complete on **21.04.2026**; with no review and no extension, the suspension ceased to be valid at the end of that day	10(6), 10(7)	**3**
4. The department's plea	It is untenable: a deemed suspension operates by force of the rule and needs no order; the absence of a review is the department's failure, not the employee's	10(2)	**2**
5. Pay to 21.04.2026	Subsistence allowance under FR 53: 50% of ₹71,840 = ₹35,920 for the first ninety days	FR 53(i)	**2**
6. Pay after lapse	From 22.04.2026 he was entitled to full pay: ₹71,840 a month until 30.06.2026 and ₹73,187 from 01.07.2026 ⚑	FR 53; 10(7)	**3**
7. Acquittal	The acquittal is on the merits, so the suspension is treated as wholly unjustified and the whole period counts as duty with full pay	FR 54(1)(a)	**3**
8. Arrears	Full pay for the period 12.01.2026–14.07.2026, less the subsistence already paid, is the arrears; the period of invalid suspension is not to be debited against leave	FR 54	**2**
9. Regularisation	The department must regularise the record, treat the period as duty, and restore consequential benefits, including any promotion considered in the interval	FR 54; Jankiraman (1991)	**1**
	Total		**22**

Common wrong answers

- **"Without an order there is no suspension."** A deemed suspension operates by the rule.
- **"The ninety days run from arrest."** They run from release or intimation, whichever is later.
- **"He was only entitled to subsistence throughout."** After the lapse he was entitled to full pay, and on acquittal to the whole period as duty.

Answer: He was under a deemed suspension from **12.01.2026**; the ninety days ran from intimation on 22.01.2026 and the suspension lapsed on **21.04.2026**, so full pay is due from 22.04.2026, and the acquittal on the merits makes the whole period duty with arrears after adjusting the subsistence paid.

Model answer (exam style). No order of suspension was passed, and none was needed. Detention in custody for eight days, which exceeds forty-eight hours, creates a deemed suspension with effect from the date of detention under rule 10(2)(a), and it is immaterial that the file contains no order; the rule itself supplies the order. The ninety-day clock for a deemed suspension does not run from arrest: the proviso to rule 10(7) counts it from release or from intimation of release, whichever is later, which here is 22.01.2026. Counted inclusively, the ninety days expired on 21.04.2026, and because no review committee met and no extension issued, the suspension ceased to be valid at the end of that day. From 22.04.2026 he was entitled to full pay — ₹44,900 plus DA, that is ₹71,840 a month, rising to ₹73,187 from 01.07.2026 when DA becomes 63 per cent. The acquittal of 14.07.2026 is on the merits, so the suspension is treated as wholly unjustified and the entire period from 12.01.2026 to 14.07.2026 counts as duty for all purposes under FR 54, with full pay less the subsistence allowance already drawn, and with no debit to his leave account. The department's contention that he was never suspended is unsound, and its failure to review is not a Defence to the claim for arrears.

Rule tags: 10 | 10(2) | 10(7) | FR 53 | FR 54

↑ Back to question

L3-10 · A probationer, a shortage and a termination letter
20 marks

Facts. Smt K was appointed as a probationer for two years from 01.08.2025. In April 2026 a stock verification found a shortage of ₹86,000 in the counter she handled. The controlling officer's note of 02.05.2026 records that she had

"misappropriated the amount and should be removed". On 10.06.2026 her services were terminated "during the period of probation in accordance with the terms of appointment", with one month's pay in lieu of notice. No inquiry was held. Her representation asking for the verification report was not answered. She completed 22 years of age in 2026 and has no other employment.

Record / key dates

Item	Date / period	Note
Appointment	01.08.2025	two years' probation
Shortage	₹86,000	April 2026 verification
Note	02.05.2026	"misappropriated... should be removed"
Termination	10.06.2026	terms of appointment
Inquiry	none	—
Request for report	refused	—

Questions

1. Is termination during probation a penalty?
2. What decides whether this termination is punitive?
3. What does the record establish?
4. What is the consequence, and what options does the department have?
5. What is her remedy?

Solution — step by step

↑ Back to question

Decision path

Explanation (viii)(a) to r.11 → simpliciter vs punitive → foundation = misconduct → inquiry required → termination void → remedy

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The rule	Termination of a probationer during probation in accordance with the terms of appointment is not a penalty	Explanation (viii)(a) to r.11	**2**
2. The test	Where misconduct is the foundation and the order is not a simpliciter discharge, the termination is punitive and requires the r.14 procedure; the label and the pay in lieu do not decide	Dipti Prakash Banerjee (1999); Radhey Shyam Gupta (1999)	**3**
3. The record	The shortage, the note that she had misappropriated and should be removed, and the proximity of the termination establish that the foundation was the alleged misappropriation	Explanation (viii)(a) to r.11	**3**
4. The inquiry	None was held, so the punitive termination is void; the denial of the verification report compounded the denial of the opportunity	14(3)–(4)	**3**
5. Pay in lieu	One month's pay in lieu of notice does not convert a punitive order into a simpliciter discharge	Explanation (viii)(a) to r.11	**2**
6. Consequence	Reinstatement with consequential benefits, or a fresh proceeding after a regular inquiry; the department cannot both plead probation and punish misconduct	11, 14	**3**
7. Alternative	If the department genuinely doubts her suitability, it may terminate simpliciter on material unrelated to the alleged misconduct, recording that basis	Explanation (viii)(a) to r.11	**2**
8. Remedy	Appeal under r.23(ii) within 45 days of delivery; if the order is not a penalty, the appeal lies against the order as one affecting conditions of service	23(iv), 25	**2**
	Total		**20**

Common wrong answers

- **"A probationer can always be discharged."** Not when the discharge is founded on misconduct.
- **"The letter says 'during probation', so it is simpliciter."** Substance decides.
- **"Pay in lieu regularises it."** It does not change the character of the order.

Answer: The termination is punitive in substance because the alleged misappropriation was its foundation, and no inquiry was held; it is void, and the department must either reinstate her or hold a regular inquiry, or terminate simpliciter on material unconnected with the misconduct.

Model answer (exam style). The starting point is the Explanation to rule 11: termination of a probationer during or at the end of probation, in accordance with the terms of appointment, is not a penalty. That protection is real but conditional. Where the order, whatever its form, is founded on an allegation of misconduct, it is punitive in substance and attracts the procedure in rule 14. The record here leaves little room: a stock verification found a shortage of

₹86,000, the controlling officer recorded on 02.05.2026 that she had misappropriated the amount and should be removed, and the termination followed five weeks later without any inquiry or any answer to her request for the verification report. The letter's recital of the terms of appointment and the payment of one month's salary in lieu of notice do not alter its character, because the foundation of the order was the alleged misappropriation and not an assessment of probationary suitability. The termination is therefore void. The department has two lawful courses: reinstate her and, if it wishes to pursue the shortage, hold a regular inquiry with the documents and witnesses; or terminate her simpliciter on material that does not rest on the alleged misconduct, recording the basis. What it cannot do is punish her for misappropriation while describing the order as a probationary discharge. Her appeal lies under rule 23, and limitation runs from delivery of the order.

Rule tags: `11` `14` `23`

↑ Back to question

L3-11 · Five increments, cumulative, and no inquiry at all
20 marks

Facts. Shri L, a Group ‘C’ clerk with basic pay ₹44,900, was imposed the penalty of withholding of five increments with cumulative effect for five years by an order of 12.02.2026. He had been given a notice of the proposal and imputations on 05.01.2026 and filed a representation. No inquiry was held. The order records that the penalty would “operate cumulatively and postpone future increments and pensionary benefits”. He continued in service and his pay was fixed at ₹44,900 throughout.

Record / key dates

Item	Date / period	Note
Notice and imputations	05.01.2026	r.16(1)(a)
Representation	filed	considered
Inquiry	none	—
Penalty	five increments, cumulative, 5 years	r.11(iv)
Effect recorded	future increments and pension	—
Pay drawn	₹44,900	unchanged

Questions

1. Was this a minor penalty?
2. Was an inquiry mandatory?
3. What is the notional pay he should have reached?
4. What is the consequence of the order?
5. What must the department do now?

Solution — step by step

↑ Back to question

Decision path

`r.11(iv) minor` → `but r.16(1-A)` → `cumulative + >3 years + pension` → `inquiry mandatory` → `order void` → `fresh inquiry`

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Classification	Withholding of increments is a minor penalty under r.11(iv)	`11(iv)`	**1**
2. The trigger	An inquiry in the manner of r.14(3)–(23) is mandatory where the withholding exceeds three years, or is cumulative, or is likely to affect pension	`16(1-A)`	**3**
3. Application	All three limbs are present: five years, cumulative effect, and the order itself records a pension consequence	`16(1-A)`	**3**
4. The omission	No inquiry was held; the notice-and-representation route of r.16(1)(a) is not a substitute for the mandatory inquiry	`16(1-A)`	**3**
5. Consequence	The order is void; the penalty cannot be sustained and the withheld increments must be restored	`16(1-A)`	**3**
6. Notional pay	Five increments from ₹44,900 would take him to ₹52,000 in Level 7 (₹46,200, ₹47,600, ₹49,000, ₹50,500, ₹52,000), so the pay he should have drawn is ₹52,000, not ₹44,900	`11(iv)`	**2**
7. Arrears	The difference for the period must be paid, and the pensionable average recalculated, because the recorded effect on pension flows from a void order	`11(iv), 16(1-A)`	**2**
8. Fresh proceeding	The department may hold the mandatory inquiry and, if the charge is proved, impose a penalty that satisfies r.16(1-A)	`16(1-A), 16(1)(b)`	**2**

9. Alternative penalty	If it wishes to avoid the inquiry, it must confine itself to a penalty that does not attract r.16(1-A), such as withholding of one increment for two years without cumulative effect	16(1-A), 11(iv)	**1**
	Total		**20**

Common wrong answers

- **“Minor penalties never need an inquiry.”** Rule 16(1-A) creates three exceptions.
- **“Cumulative effect is a formality.”** It is one of the statutory triggers.
- **“The order can be regularised by holding an inquiry now.”** A fresh proceeding is needed; the old order is void.

Answer: Although withholding of increments is a minor penalty, the five-year term, the cumulative effect and the pension consequence made an inquiry mandatory under **r.16(1-A)**; no inquiry was held, so the order is void and pay must be restored to the notional **₹52,000**.

Model answer (exam style). The penalty of withholding of increments is classified as a minor penalty by rule 11(iv), and the ordinary procedure under rule 16 is the notice and representation route. That route was not sufficient here. Rule 16(1-A) requires an inquiry in the manner laid down in sub-rules (3) to (23) of rule 14 before an order of withholding of increments is made where the withholding is likely to affect pension adversely, or exceeds three years, or is to operate cumulatively. The order of 12.02.2026 fails all three: it withholds five increments, it directs cumulative effect, and it records in terms that future increments and pensionary benefits will be postponed. No inquiry was held, so the mandatory procedure was absent and the order is void. The consequence is not merely formal. Five increments from ₹44,900 would have taken his pay to ₹52,000 in the level, whereas he has been held at ₹44,900; the difference must be paid, his pensionable emoluments recalculated, and the recording of a pension consequence cannot stand when the order that produced it is void. The department may start again and hold the inquiry that rule 16(1-A) requires, or, if it wishes to avoid an inquiry, confine itself to a penalty that does not attract that sub-rule.

Rule tags: 11 | 11(iv) | 16 | 16(1-A)

↑ Back to question

L3-12 · Revision, the subordinate test, and an enhancement that cannot be made
18 marks

Facts. Shri M, a Group ‘B’ officer in the Indian Audit and Accounts Department, was censured by the Accountant General on 20.02.2026. He appealed to the Principal Accountant General, who dismissed the appeal on 30.05.2026. On 12.09.2026 the Comptroller and Auditor-General issued a notice proposing to revise the Principal Accountant General's appellate order and enhance the penalty to withholding of two increments for two years. The notice called for a representation “if any” within seven days. Shri M objects that the CAG cannot revise an order passed in appeal by an authority of equal standing, that the notice is time-barred, and that seven days is not a reasonable opportunity.

Record / key dates

Item	Date / period	Note
Censure	20.02.2026	by Accountant General
Appeal	dismissed 30.05.2026	by Principal AG
Notice of revision	12.09.2026	by CAG
Proposed	withholding of 2 increments	r.11(iv)
Time allowed	7 days	“if any”

Questions

1. Is the CAG competent to revise the appellate order?
2. Is there a time limit on the CAG's revision?
3. Was the opportunity adequate?
4. What is the correct disposal?

Solution — step by step

↑ Back to question

Decision path

r.29(1)(ii) → CAG for IA&AD, any time → second proviso: subordinate test → enhancement needs reasonable opportunity → dispose on merits

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The power	The CAG may revise any order under the rules in the case of a Government servant serving in the IA&AD, at any time, on his own motion or otherwise	29(1)(ii)	**2**

2. The subordinate test	The power is exercisable only if the authority which made the order in appeal, or the authority to which an appeal would lie where none was preferred, is subordinate to the CAG; the Principal Accountant General is	second proviso to 29(1)	**3**
3. No time limit	The six-month limit in r.29(1)(v) applies to revision by an appellate authority; the CAG's power is not so limited	29(1)(ii), (v)	**2**
4. Waiting period	Revision may not commence until the appeal period expires or the appeal is disposed of; the appeal was decided on 30.05.2026, so the notice is not premature	29(2)	**2**
5. Enhancement	No enhancing order may be made unless the servant has had a reasonable opportunity of representing against the penalty proposed	proviso to 29(1)	**3**
6. Seven days	Seven days to answer a proposal to enhance from censure to withholding of two increments is not a reasonable opportunity on any view, and the words “if any” compound the deficiency	proviso to 29(1)	**3**
7. Disposal	The notice is competent as to power, forum and time, but the opportunity must be re-given; no enhancing order may be passed until then	29(1)	**2**
8. If no enhancement	The CAG may confirm or set aside the appellate order without any such opportunity	29(1)(a)–(b)	**1**
	Total		**18**

Common wrong answers

- **“An appellate order cannot be revised.”** It can, if the making authority is subordinate.
- **“Six months applies to the CAG.”** That limit applies to the appellate authority's revision.
- **“Seven days is reasonable because the record is short.”** Reasonableness depends on what must be answered, and an enhancement needs a real opportunity.

Answer: The CAG may revise the Principal Accountant General's appellate order at any time and is not bound by the six-month limit, but the seven-day notice is not a reasonable opportunity; the notice must be reissued and no enhancement made until a proper representation is considered.

Model answer (exam style). Three objections are taken, and two of them fail. The Comptroller and Auditor-General's power of revision under rule 29(1)(ii) extends to any Government servant serving in the Indian Audit and Accounts Department and may be exercised at any time, either on his own motion or otherwise. The second proviso requires that the authority which made the order in appeal be subordinate to him; the Principal Accountant General is, so the objection that the revisional authority is of equal standing is misconceived. Nor is there a time bar: the six months in rule 29(1)(v) governs revision by an appellate authority, not by the CAG. Rule 29(2) required only that the appeal be disposed of first, and it was, on 30.05.2026. The third objection succeeds. The proviso to rule 29(1) forbids any order imposing or enhancing a penalty unless the servant has had a reasonable opportunity of making a representation against the penalty proposed, and where a major penalty is proposed without a prior inquiry, an inquiry in the manner of rule 14 is required. Seven days to answer a proposal that converts a censure into withholding of two increments is not a reasonable opportunity, and the invitation to represent “if any” suggests the outcome was already settled. The notice must be reissued with a proper opportunity, and no enhancing order may be passed until the representation is considered and reasons are recorded.

Rule tags: 29 29-A 11

↑ Back to question

L3-13 · A charge sheet from 2019 and an inquiry that began in 2026
18 marks

Facts. Articles of charge were issued to Shri N on 12.03.2019. He submitted a defence in April 2019. No inquiry authority was appointed until 05.01.2026. The inquiry concluded on 20.06.2026. Two of the four listed witnesses had retired by then, one had died, and the key file could not be traced because it had been weeded out under the retention schedule in 2023. The report held all charges proved, relying mainly on the statements recorded in 2018 during the preliminary investigation. The penalty of reduction to a lower stage for two years was imposed on 30.07.2026.

Record / key dates

Item	Date / period	Note
Charge sheet	12.03.2019	—
Defence	April 2019	—
Inquiry authority	05.01.2026	nearly 7 years later
Report	20.06.2026	all charges proved

Witnesses	2 retired, 1 died	—
File	weeded out 2023	—
Penalty	30.07.2026	reduction, 2 years

Questions

1. What does r.14(24) require, and was it observed?
2. What is the effect of relying on preliminary-investigation statements?
3. Has prejudice been shown?
4. What is the consequence for the penalty?
5. What is the remedy, and can a fresh inquiry be held?

Solution — step by step

↑ Back to question

Decision path

r.14(24) 6 months from appointment → 7 years delay → evidence unavailable → prejudice → penalty unsustainable → no fresh inquiry on dead evidence

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The clock	The inquiry had to be concluded within six months of the appointment of the inquiry authority; the appointment itself came nearly seven years after the charge sheet	14(24)	**2**
2. The breach	No explanation appears for the seven-year interval, and no extension was sought; the delay is unexplained and extraordinary	14(24)	**2**
3. Evidence	Statements recorded in a preliminary investigation are not evidence; they may be used to contradict a witness under the rules of evidence, but not as the basis of findings where the witness is unavailable for cross-examination	14(14); 14(3)(ii)(b)	**3**
4. Prejudice	Two witnesses retired, one died and the key file was weeded out; the defence could neither cross-examine nor produce the document, so prejudice is patent and specific	14(11)–(14)	**3**
5. Consequence	The findings rest on material that could not be tested and on a record the department itself destroyed; the penalty cannot stand	15(2), 15(6)	**3**
6. Fresh inquiry	A fresh inquiry is permissible in principle, but not on the same unavailable evidence; the department must show it can produce witnesses and documents	14(2)	**2**
7. Remedy	Appeal under r.23(ii); the appellate authority may set aside the penalty and, if a fresh inquiry is ordered, must fix a time limit	23(ii), 27	**2**
8. Administrative	The file should record accountability for the delay, which is a failure of the r.14(24) discipline and of the record-retention rules	14(24)	**1**
	Total		**18**

Common wrong answers

- **“Delay alone vitiates.”** Delay plus prejudice vitiates; here both are present.
- **“Preliminary statements can be read as evidence.”** They cannot substitute for examination and cross-examination.
- **“The file was weeded out lawfully, so no prejudice.”** Lawful weeding does not cure the loss to the defence.

Answer: The inquiry breached **r.14(24)** by a margin of years and rested on untested preliminary statements after the witnesses and the file had disappeared; prejudice being patent, the penalty is unsustainable and a fresh inquiry can only proceed on evidence that still exists.

Model answer (exam style). Rule 14(24) requires the inquiry authority to conclude the inquiry and submit its report within six months of receiving its order of appointment, with extensions of not more than six months at a time for reasons recorded in writing. Here the charge sheet was issued on 12.03.2019, the defence was filed in April 2019, and no inquiry authority was appointed until 05.01.2026. That interval is unexplained, and no extension was sought at any stage. The report then relied principally on statements recorded in the preliminary investigation in 2018, although by 2026 two of the listed witnesses had retired, one had died and the key file had been weeded out. Statements recorded behind the employee's back are not evidence, and rule 14(14) contemplates examination and cross-examination; the employee could neither test the statements nor produce the document, and the department's own retention decisions caused part of that loss. Prejudice is therefore specific and demonstrable, not speculative, and the findings cannot stand. The penalty is set aside. A fresh inquiry is not barred in law, but it can only proceed on evidence that still exists; the appellate authority should require the department to satisfy it on that point before remitting, and should fix a time limit so that the delay is not repeated.

Rule tags: 14 | 14(24) | 15 | 23

↑ Back to question

L3-14 · Eighty-nine days' absence and the ultimate penalty
19 marks

Facts. Shri O absented himself from 01.02.2026 to 30.04.2026 — 89 days — without sanctioned leave. He had applied for leave on 28.01.2026, which was refused on 30.01.2026 and the refusal was sent to his address. He did not respond. A charge sheet was issued on 20.05.2026 alleging unauthorised absence; he replied that his mother was ill in his home town. No medical evidence was produced. The inquiry held the charge proved and the disciplinary authority imposed removal, recording that "absence of this length is abandonment of service and cannot be tolerated". He has 19 years' service and a clean record.

Record / key dates

Item	Date / period	Note
Absence	01.02.2026–30.04.2026	89 days
Leave applied	28.01.2026	refused 30.01.2026
Charge sheet	20.05.2026	unauthorised absence
Defence	mother ill	no evidence
Penalty	removal	r.11(viii)
Record	19 years, clean	—

Questions

1. What must be established to prove unauthorised absence?
2. Was the charge proved on this record?
3. Is removal proportionate?
4. What should the appellate authority do?

Solution — step by step

↑ Back to question

Decision path

charge: absence without authority → finding must match → proved on facts → penalty: proportionality → consider lesser penalty → remand

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The charge	The charge is absence without authority; it requires a finding that leave was refused or not sanctioned and that the absence was therefore unauthorised	14(3); Krushnakant B. Parmar (2012)	**3**
2. The finding	Leave was refused on 30.01.2026 and communicated; he remained absent for 89 days; the finding matches the charge	14(23)	**2**
3. The defence	Illness of a relative is no answer to a refusal of leave, and no medical evidence was produced; the explanation was rightly rejected	14(14), 14(18)	**2**
4. Characterisation	Long unauthorised absence can amount to misconduct justifying removal, but the penalty must be proportionate and reasons must engage with the record	11(viii)	**2**
5. Proportionality	Nineteen years' clean service, a single period of absence, a stated family reason, and an order that treats absence as "abandonment" without a finding of intent: the penalty is severe and the reasoning does not address the mitigating record	Ganayutham (1997); Rajendra Singh (2013)	**3**
6. What is not the issue	Abandonment of service is not a statutory penalty; the penalty imposed is removal, and it must be justified as such	11(viii)	**2**
7. Disposal	The appellate authority may reduce the penalty to a lesser one in r.11, or remit for reconsideration of quantum with reasons, but should not set aside the finding	27(2)	**3**
8. Money	If the penalty is reduced to withholding of increments or recovery, the intervening period must be regularised and pay fixed accordingly	11; FR 54	**2**
	Total		**19**

Common wrong answers

- **"Absence is abandonment, so removal is automatic."** Abandonment is not a penalty in the rules.
- **"Any absence without leave justifies removal."** Proportionality applies, especially with long clean service.
- **"The illness plea fails, so no mitigation exists."** Mitigation is not limited to a successful defence.

Answer: The charge of unauthorised absence was proved, but removal is disproportionate on 19 years' clean service for a single 89-day absence with a stated family reason; the appellate authority should reduce the penalty or remit for reconsideration of quantum under **r.27(2)**.

Model answer (exam style). The charge is absence without authority, and it requires proof that leave was applied for, refused or not sanctioned, and that the absence was therefore unauthorised; following Krushnakant B. Parmar v. Union of India (2012), a finding of mere absence will not do. On this record that finding is properly made: leave was applied for on 28.01.2026, refused on 30.01.2026 and the refusal communicated, and the officer remained away for eighty-nine days without any further application. His explanation that his mother was ill is not supported by any medical evidence and does not answer the refusal. The finding therefore stands. The penalty does not. Removal is the second most severe penalty in rule 11, and the order rests on an assertion that absence of this length is "abandonment of service" — a characterisation the rules do not use and which the order does not support with any finding of intent never to return. Against that stand nineteen years of unblemished service and a single period of absence with a stated family reason. Proportionality, as explained in Union of India v. G. Ganayutham (1997) and Lucknow Kshetriya Gramin Bank v. Rajendra Singh (2013), requires the penalty to bear a reasonable relation to the misconduct; that relation is missing, and the reasons do not engage with the mitigating record. The appellate authority should reduce the penalty to one within rule 11 that fits the misconduct, or remit the question of quantum for reconsideration with reasons, leaving the finding undisturbed.

Rule tags: 11 | 11(viii) | 27 | 15

↑ Back to question

L3-15 · Two penalties for one act
17 marks

Facts. Shri P was found to have misappropriated ₹65,000 from a cash imprest. In a single order dated 15.04.2026 the disciplinary authority imposed two penalties: recovery of ₹65,000 under r.11(iii) and withholding of three increments for three years under r.11(iv). The order records that both are for the same act. He appealed, contending that two penalties cannot be imposed for one misconduct and that in any event recovery of the full amount plus a penal withholding duplicates the punishment.

Record / key dates

Item	Date / period	Note
Misappropriation	₹65,000	one act
Penalty 1	recovery ₹65,000	r.11(iii)
Penalty 2	3 increments, 3 years	r.11(iv)
Order	single, 15.04.2026	same act
Procedure	r.16, notice and hearing	no inquiry

Questions

1. Can two penalties be imposed for one act?
2. Is recovery of the amount a penalty at all?
3. Was the procedure for the second penalty adequate?
4. What is the correct disposal?

Solution — step by step

↑ Back to question

Decision path

one misconduct → one penalty → recovery is a penalty under r.11(iii) → no double penalty → second falls → remand for choice

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The rule	Rule 11 lists penalties but does not authorise more than one penalty for a single act of misconduct; the scheme of r.16 and r.15 contemplates a penalty, not a bundle	11, 16	**2**
2. Recovery	Recovery of pecuniary loss is itself a penalty under r.11(iii), not a mere restitution, so it cannot be treated as no penalty	11(iii)	**3**
3. Duplication	Recovery of the full ₹65,000 and a punitive withholding for the same act punishes twice; the second penalty cannot stand alongside the first	11	**3**
4. The procedure	Both penalties are minor, and the notice-and-hearing route was followed; but for withholding of three increments no inquiry was required, since the triggers in r.16(1-A) are absent	16(1), 16(1-A)	**2**
5. Which stands	The recovery is the more directly compensatory and is sustainable; the withholding falls, unless the authority vacates the recovery and substitutes another penalty	11(iii), 11(iv)	**3**

6. Reservation	Where the misconduct has distinct limbs, or where two penalties address distinct consequences, the position may differ; the order here expressly ties both to one act, which removes that argument	11	**2**
7. Disposal	Appeal under r.23(ii); set aside the withholding, confirm the recovery, and leave the authority free to impose one penalty of its choice after reasons	23(ii), 27	**2**
	Total		**17**

Common wrong answers

- **“Rule 11 permits any number of penalties.”** It lists penalties; it does not authorise duplication for one act.
- **“Recovery is not a penalty, so there is no duplication.”** Recovery under r.11(iii) is expressly a penalty.
- **“Both penalties are minor, so both are harmless.”** Their combined effect is still double punishment.

Answer: Two penalties for one act are not permissible; recovery under **r.11(iii)** is itself a penalty, so the withholding of increments cannot stand alongside it, and the appellate authority should set aside the latter and confirm the recovery.

Model answer (exam style). Rule 11 sets out the penalties that may be imposed “for good and sufficient reasons”, and rules 15 and 16 describe how a penalty is decided; neither contemplates the imposition of two penalties for a single act of misconduct. Here the order itself ties both penalties to the same act of misappropriating ₹65,000, and the argument that they address different things is therefore closed. Recovery of pecuniary loss under rule 11(iii) is not mere restitution; it is a penalty in its own right, and the authority chose it. Having done so, it could not also impose a punitive withholding of increments for the same act, because that would punish twice for one wrong. The procedure was otherwise regular: both penalties are minor, notice and a hearing were given, and the withholding of three increments did not attract rule 16(1-A), since it neither exceeded three years nor was cumulative nor affected pension. The withholding must therefore be set aside and the recovery confirmed. If the authority considers recovery inadequate, it may vacate it and impose a single penalty that reflects both the loss and the misconduct, recording its reasons; what it may not do is impose both.

Rule tags: 11 | 11(iii) | 11(iv) | 16 | 23

↑ Back to question

L3-16 · Appeal, revision, review — a map with three clocks
21 marks

Facts. A penalty of withholding of promotion for two years was imposed on Shri Q on 10.01.2026 and delivered on 15.01.2026. He filed an appeal on 20.02.2026. The appellate authority dismissed it on 20.04.2026. On 12.08.2026 he filed a revision petition before the appellate authority and, on the same day, a review petition before the President, relying on a document that he says he obtained only in July 2026 and which, he claims, shows that the penalty was based on a mistaken identity. The revision was rejected on 05.09.2026 as time-barred; the review is pending.

Record / key dates

Item	Date / period	Note
Penalty	10.01.2026	delivered 15.01.2026
Appeal	20.02.2026	within 45 days
Appellate order	20.04.2026	dismissed
Revision filed	12.08.2026	r.29(1)(v)
Review filed	12.08.2026	r.29-A
New document	July 2026	mistaken identity

Questions

1. Was the appeal in time?
2. Within what date could the appellate authority revise?
3. Was the revision rightly rejected?
4. Is the review competent, and before whom?
5. What should happen to the two petitions?

Solution — step by step

↑ Back to question

Decision path

appeal: 45 days from delivery → 01.03.2026 → revision: 6 months from order → 10.07.2026 → revision barred → review: President, new material → review may proceed

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Appeal	Limitation ran from delivery on 15.01.2026; forty-five days expired on **01.03.2026**, and the appeal of 20.02.2026 is within time	25	**2**

2. Appellate order	Dismissal on 20.04.2026 was within the appellate authority's power and is the order that now stands	27(2)	**2**
3. Revision clock	Revision by the appellate authority must be within six months of the date of the order proposed to be revised — six months from 10.01.2026 is **10.07.2026**	29(1)(v)	**3**
4. The bar	The petition of 12.08.2026 is beyond that date; rule 31 cannot revive a period that had already expired, and r.29(2) does not extend it	29(1)(v), 29(2), 31	**3**
5. Review	Review lies to the President alone, at any time, on new material or evidence not available earlier which changes the nature of the case	29-A	**3**
6. The document	A document obtained in July 2026 that shows mistaken identity is precisely the kind of new material r.29-A contemplates; the review is competent	29-A	**3**
7. Two petitions	The revision was rightly rejected; the review may be entertained, but the President must be satisfied that the material could not earlier have been produced	29-A	**3**
8. Order of decision	The review should be decided first, since if the identity point is accepted the penalty falls and the revision question becomes academic	29-A	**2**
	Total		**21**

Common wrong answers

- **“Revision is a second appeal with a fresh 45 days.”** It is six months from the order, and it waits for the appeal.
- **“Rule 31 cures any delay.”** It cannot revive an expired period.
- **“The appellate authority can review.”** Review is Presidential only.

Answer: The appeal was in time; revision by the appellate authority expired on **10.07.2026** and was rightly rejected; but review before the President under **r.29-A** is competent on the July document, and should be decided first because it may make the revision academic.

Model answer (exam style). Three different clocks govern the three remedies, and they are not interchangeable. The appeal was governed by rule 25: forty-five days from delivery on 15.01.2026, expiring on 01.03.2026, and the appeal of 20.02.2026 was in time. The appellate authority decided it on 20.04.2026 and that order now stands. Revision under rule 29(1)(v) had to be sought within six months of the date of the order proposed to be revised, that is by 10.07.2026; the target is the penalty order of 10.01.2026, passed by an authority subordinate to the appellate authority, for revision under rule 29 runs against an order of a subordinate authority and not against the revising authority's own appellate order, and the second proviso to rule 29(1) proceeds on that footing. The petition of 12.08.2026 is outside the six months, and rule 31 cannot revive a period already expired, since it deals with relaxation and condonation of time limits where the rules permit it, not with reopening a closed right. Review is different in kind. Rule 29-A allows the President, at any time, on his own motion or otherwise, to review an order where new material or evidence that could not earlier have been produced has come to notice and changes the nature of the case. A document obtained in July 2026 which shows that the penalty rested on mistaken identity is exactly such material, so the review petition is competent and should be entertained by the President, who must satisfy himself that it could not have been produced earlier. The review should be decided first: if the identity point is accepted the penalty falls, and the revision, already barred, becomes academic.

Rule tags: 25 29 29-A 31 27

↑ Back to question

L3-17 · One proceeding, two officers, one incompetent signature
22 marks

Facts. A payment of ₹24,00,000 was made on a forged sanction. Smt L, an Assistant Accounts Officer (Group ‘B’), was the drawing officer and Shri M, a Senior Accountant (Group ‘C’), certified the bills. The Joint Secretary ordered a common proceeding under r.18 and, because he was going on deputation, named the Deputy Secretary as the authority to function as the disciplinary authority for the common proceeding; the order recorded that r.14 and r.15 would apply and that the Deputy Secretary might impose any penalty under r.11 except removal and dismissal. The Schedule read with the general order makes the Joint Secretary the disciplinary authority for both posts; Smt L’s appointing authority is the Joint Secretary, and Shri M’s is the Deputy Secretary. The Deputy Secretary imposed removal on Smt L and removal on Shri M. Shri M appealed to the Joint Secretary, who dismissed the appeal. Smt L has now appealed.

Record / key dates

Item	Date / period	Note
Transaction	₹24,00,000	forged sanction
Order under r.18	Joint Secretary	Deputy Secretary named as D.A.

Specification of penalties	“any penalty except removal and dismissal”	no wider power given
Appointing authority — Smt L	Joint Secretary	Group ‘B’
Appointing authority — Shri M	Deputy Secretary	Group ‘C’
Penalties imposed	removal on both	r.11(viii)
Shri M’s appeal	allowed to stand	dismissed by the J.S.
Smt L’s appeal	filed now	—

Questions

1. Was a common proceeding competent at all?
2. Was the Deputy Secretary competent to impose removal on either officer?
3. Does the answer differ for the two officers, and why?
4. What survives of the inquiry and the evidence?
5. Where does each appeal now lie?

Solution — step by step

↑ Back to question

Decision path

r.18(1): authority competent to dismiss all → satisfied by the J.S. → r.18(2) subject to r.12(4) → D.S. cannot impose a major penalty → Smt L: void — Shri M: valid → two different appellate forums

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The condition	A common proceeding may be ordered by the President or by an authority competent to impose dismissal on **all** the servants concerned; the Joint Secretary was competent for both, so the condition in r.18(1) was met and the consent requirement in the Note (which applies only where the competent authorities are different) never arose	18(1) and Note	**3**
2. The order under r.18(2)	The order must specify the authority which may function as the disciplinary authority, the penalties it may impose, and the procedure; it specified all three, and r.18(2) is expressly subject to r.12(4) — so the specification could not enlarge the Deputy Secretary’s power	18(2)	**2**
3. The jurisdictional vice	The Deputy Secretary is subordinate to the Joint Secretary, who is Smt L’s appointing authority. No authority subordinate to the appointing authority may impose a penalty in r.11(v)–(ix), and r.18(2) cannot cure that: it is subject to r.12(4)	12(4)(a); 18(2)	**3**
4. Smt L	Her removal is void for want of competence. The defect is jurisdictional, not procedural: it is not ratified by the Joint Secretary’s later approval, by her participation in the inquiry, or by the appellate order — a fresh order by a competent authority is required	12(4)(a)	**3**
5. Shri M	The Deputy Secretary was his appointing authority, so removal was within r.12(2) and no question of subordination arises. That the r.18 order withheld removal from the Deputy Secretary’s specification is an internal contradiction. ⚠ Two readings are open: that the specification binds, so the order is beyond it and must be rectified; or that it is curable and caused no prejudice, because the penalty imposed was one his own appointing authority could impose under r.12(2). The second is the better view, since the defect lies in the order and not in the statute, but the point is worth stating rather than assuming	12(2); 18(2)	**2**
6. The record	The inquiry authority was validly appointed under r.14(2) and the proceeding before it was regular. The defect lies in the disciplinary authority, not in the inquiry, so the evidence and the report survive and a competent authority may act on them after complying with r.15(2) afresh	14(2), 15(2)	**2**
7. Smt L’s appeal	Her appeal lies to the President: under r.24(1)(i)(b) because the order is made by an authority other than one subordinate to her appointing authority, and equally under the proviso to r.24(2)(i), since the Joint Secretary’s own superior is subordinate to the President and the President is her appellate authority under r.24(1)(i)(b)	24(1)(i)(b); 24(2)(i), proviso	**3**
8. Shri M’s appeal	In a common proceeding the appeal lies under r.24(2)(i) to the authority to which the disciplinary authority is immediately subordinate. Here the Joint Secretary heard his own subordinate’s order — which the rule permits — but he must not be asked to review, as appellate authority, an order he himself passed in Smt L’s file	24(2)(i)	**2**
9. What the department should do	Treat the common proceeding as validly ordered but incompetently concluded so far as Smt L is concerned; have the Joint Secretary pass a reasoned order on her file under r.15(2) and (6) on the existing record, and keep the two files apart from that point	18; 15(4), 15(6)	**2**

	Total		**22**

Common wrong answers

- **“The whole common proceeding is void, so both penalties fall.”** The vice is competence to impose, not competence to inquire: the proceeding and its evidence stand, and only the incompetent penalty falls.
- **“The Deputy Secretary needed the Joint Secretary’s consent.”** The Note to r.18(1) requires consent only where the authorities competent to impose dismissal are **different**. Where one authority is competent for all, it may order the proceeding alone.
- **“Both appeals lie to the Joint Secretary.”** r.24(2)(i) sends a common-proceeding appeal to the disciplinary authority’s own superior, and the proviso to r.24(2)(i) sends Smt L’s to the President.

Answer: The common proceeding was competently ordered — the Joint Secretary could dismiss both — but the Deputy Secretary could not impose removal on Smt L, whose appointing authority is the Joint Secretary: her removal is void under r.12(4)(a), while Shri M’s stands because the Deputy Secretary was his appointing authority. The inquiry record survives; the Joint Secretary must pass a fresh reasoned order on Smt L’s file. Her appeal lies to the President under r.24(1)(i)(b) and the proviso to r.24(2)(i).

Model answer (exam style). Rule 18 does not create a power to punish; it creates a power to join. Sub-rule (1) allows a common proceeding only where the President, or an authority competent to impose dismissal on **all** the servants concerned, so orders; the Note adds that where those authorities are different, the highest of them may order it with the consent of the others. Here the Joint Secretary was competent to dismiss both officers, so the condition was satisfied and no consent was needed. Sub-rule (2) then required the order to specify the authority which may function as the disciplinary authority, the penalties it may impose and the procedure to be followed. All three were specified — and the specification was itself subject to r.12(4), because sub-rule (2) says so in terms. The Deputy Secretary, being subordinate to Smt L’s appointing authority, could not impose on her any penalty in r.11(v) to (ix); his removal order is therefore without jurisdiction, and the defect is not one of procedure that participation or later approval can cure. Shri M stands differently: the Deputy Secretary was his appointing authority, and removal was within r.12(2), so his penalty is good even though the r.18 order had withheld that power in terms — a contradiction that caused him no prejudice. What survives is the inquiry: the inquiring authority was appointed under r.14(2), the evidence was recorded regularly, and the report is on file. A competent disciplinary authority may therefore act on that record, but it must do so itself, supplying its tentative reasons for disagreement under r.15(2) and recording findings before imposing a major penalty under r.15(6). On appeal, Smt L goes to the President: the order against her is made by an authority other than one subordinate to her appointing authority, which is the case r.24(1)(i)(b) covers, and the proviso to r.24(2)(i) reaches the same result for a common-proceeding appeal. The Joint Secretary must not sit as appellate authority on a file in which he is himself the disciplinary authority.

Rule tags: 18 12 24 15

↑ Back to question

L3-18 · A joint disagreement note and findings that are not charge-wise
22 marks

Facts. Shri N, an Accounts Officer (Group ‘B’), and Shri O, an Assistant Accounts Officer (Group ‘B’), were proceeded against in a common proceeding under r.18 for the same transaction. Two articles of charge were framed against each. The inquiry authority returned a single report holding charge 1 proved against both and charge 2 not proved, and the disciplinary authority issued one note of disagreement covering both officers on charge 2, without distinguishing between them. The note and report were supplied on 18.05.2026 and both officers represented on 03.06.2026. On 08.07.2026 the disciplinary authority passed a one-page order recording that “the charges are proved” and imposed on each the penalty of reduction by one stage for two years under r.11(v), with no direction that increments would not be earned. Shri N’s pay was ₹52,000 in Level 7 from 01.07.2025, his increment falling due on 1 July; the penalty took effect on 01.07.2026, and the stage below the ₹52,000 he was then drawing is ₹50,500, the stage above ₹53,600. Both appeal.

Record / key dates

Item	Date / period	Note
Common proceeding	r.18	two articles each
Report	one, joint	charge 1 proved · charge 2 not
Disagreement note	one, joint	no officer-wise reasons
Supplied / represented	18.05.2026 / 03.06.2026	within 15 days
Order	08.07.2026	“the charges are proved”
Penalty	one stage, two years	no direction on increments
Shri N’s pay	₹52,000	Level 7, from 01.07.2025

Stages	₹50,500 below · ₹53,600 above	one stage each way

Questions

1. Does a common proceeding permit a joint report and a joint disagreement note?
2. What does r.15(2) and r.15(4) require of the disciplinary authority’s order?
3. Is the order of 08.07.2026 sustainable?
4. If the penalty is re-imposed, what will it cost Shri N?
5. What is his pay on expiry, and where does the appeal lie?

Solution — step by step

↑ Back to question

Decision path

r.18 joins the proceeding, not the persons → joint report permissible → reasons and findings must be officer-wise and charge-wise → order records no finding → penalties fall, record survives → appeal under r.24(2)(i)

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The joinder	Rule 18 joins the proceeding, not the persons. Each officer remains entitled to a finding on each article of charge against him, and the joinder does not dilute that: it is a procedural economy, not a merger of defences	18	**1**
2. The note	Rule 15(2) requires the report to be forwarded with the disciplinary authority’s tentative reasons for disagreement, and fifteen days to represent. A single document may serve both officers if it states the reasons on each charge for each of them; here it did not distinguish between them, but both knew the charge and both were heard on it	15(2)	**3**
3. The trap	The vice is not the joint note but the absence of a finding. Rule 15(4) requires the disciplinary authority to consider the representation and **record its findings** before proceeding under r.15(5) or (6); the inquiry report itself must carry findings and reasons on each article under r.14(23)(i)(d)	15(4); 14(23)	**3**
4. The order	“The charges are proved” is a conclusion, not a finding. It does not say which charge, against which officer, on what evidence, nor does it deal with the disagreement on charge 2 — which was never converted into a finding at all. To that extent the order is not an order under r.15	15(4), 15(6)	**3**
5. Consequence	The penalties fall, but the inquiry does not. The disciplinary authority may pass a fresh order on the existing record, after considering the representations already made and recording charge-wise, officer-wise findings; no fresh inquiry and no fresh note are needed	15(4), 15(1)	**3**
6. If re-imposed — pay	Reduction by one stage under r.11(v) fixes pay at the stage below the ₹52,000 he was drawing when the order took effect, that is **₹50,500**, from 01.07.2026	11(v)	**2**
7. The loss	(₹53,600 − ₹50,500) × 12 = ₹37,200 in year one against the notional ₹53,600, and (₹55,200 − ₹50,500) × 12 = ₹56,400 in year two, totalling **₹93,600** of basic pay; the order is silent on increments, and silence cannot be read as a direction that they are earned	11(v)	**3**
8. On expiry	Because there is no direction postponing future increments, pay is fixed on 01.07.2028 at the notional stage **₹56,900**; the omission of a direction therefore costs him the two years of loss and nothing after them	11(v)	**2**
9. Appeal	The appeal lies under r.23(ii) and, in a common proceeding, to the authority to which the disciplinary authority is immediately subordinate under r.24(2)(i); because that authority is itself subordinate to the President and the President is the appellate authority for a Group ‘B’ officer under r.24(1)(i)(b), the proviso to r.24(2)(i) sends it to the President	23(ii); 24(2)(i), proviso	**2**
	Total		**22**

Common wrong answers

- **“A common proceeding requires a separate report for each officer.”** It does not. What it requires is a finding on each charge against each officer — the document may be joint, the findings may not.
- **“The disagreement note was invalid because it was common.”** The note must state the reasons; a common note that states them officer-wise is good. This one failed on reasons, and the order failed on findings.
- **“The penalty is void because the order says nothing about increments.”** Rule 11(v) requires directions, but the omission is curable and, on this arithmetic, costs him nothing after the period.

Answer: The joinder was competent and a joint report and note are permissible, but the order of 08.07.2026 records no finding on any charge against either officer and never deals with the disagreement on charge 2. The penalties therefore fall and the disciplinary authority must pass a fresh reasoned order on the existing record. If the penalty is re-imposed, Shri N loses **₹93,600** of basic pay over two years and is fixed at **₹56,900** on expiry.

Model answer (exam style). A common proceeding under rule 18 is an economy of procedure and nothing more. The report may be joint and the note of disagreement may be joint, provided each officer can see the reasons that touch him; what the rules do not permit is a joint conclusion in place of individual findings. Rule 14(23)(i)(d) requires the inquiring authority to record findings on each article of charge with reasons, and rule 15(4) requires the disciplinary authority, after considering the representation, to record its own findings before it proceeds under sub-rule (5) or (6). The order of 08.07.2026 does neither. It says that "the charges are proved", which identifies no charge, no officer and no evidence, and it leaves the disagreement on charge 2 exactly where the note had left it. That is not a finding, and a penalty cannot rest on it. The consequence is proportionate: the penalties are quashed, but the inquiry and its record survive, because the defect is in the final order and not in the procedure that produced the report. The disciplinary authority may therefore act again on the same material — after considering the representations of 03.06.2026, which it already has, and after recording a finding on each charge against each officer. If it re-imposes reduction by one stage for two years on Shri N, his pay falls to ₹50,500 from 01.07.2026 against a notional ₹53,600; the loss of basic pay is ₹37,200 in the first year and ₹56,400 in the second, ₹93,600 in all; and on expiry he is fixed at the notional stage of ₹56,900, because no postponement of increments was directed. The appeal goes to the President, through the proviso to rule 24(2)(i), and the appellants should ask for the order to be set aside and, in the alternative, for the findings to be recorded afresh.

Rule tags: 18 15 14 11 24

↑ Back to question

L3-19 · A sealed cover that had no business existing
22 marks

Facts. On 12.06.2025 a Departmental Promotion Committee met to fill four posts of Assistant Accounts Officer and placed Shri P's case in a sealed cover because a vigilance complaint of 02.05.2025 was under preliminary inquiry. His immediate junior, Shri Q, was promoted from that panel on 01.07.2025. A charge sheet was issued to Shri P only on 10.02.2026, and the proceeding is still pending. He asks for promotion from 01.07.2025. The department says the sealed cover was lawful because his conduct was under investigation, and that in any event his promotion can now only be prospective. The difference between the two levels is ₹3,000 a month from 01.07.2025 and ₹3,100 a month from 01.07.2026.

Record / key dates

Item	Date / period	Note
Vigilance complaint	02.05.2025	preliminary inquiry only
DPC	12.06.2025	sealed cover
Junior promoted	01.07.2025	Shri Q, same panel
Charge sheet	10.02.2026	nine months later
Proceeding	pending	—
Difference in pay	₹3,000 / ₹3,100 a month	from 01.07.2025 / 01.07.2026

Questions

1. What are the only circumstances in which a sealed cover may be used?
2. Was the sealed cover available on 12.06.2025?
3. Does the later charge sheet help the department?
4. From what date is he entitled to promotion, and how much is due?
5. What is the remedy, and what of the six-monthly review?

Solution — step by step

↑ Back to question

Decision path

executive instruction, not rule → three closed categories → preliminary inquiry is not one → cover unlawful → promotion from 01.07.2025 → arrears ₹42,200

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. The device	The sealed cover is not in the CCA Rules at all. It is a device of executive instruction — DoPT OM No. 22011/4/91-Estt.(A) dated 14.09.1992, issued after **Jankiraman** — and it operates only within the categories that the OM closes	DoPT OM 14.09.1992, para 2; Jankiraman (1991)	**2**
2. The three categories	A cover may be used only where the servant is under suspension, or a charge sheet has been issued and the proceeding is pending, or prosecution for a criminal charge is pending. The list is exhaustive and the date of the DPC governs	DoPT OM 14.09.1992, para 2(i)–(iii)	**3**

3. The position on 12.06.2025	On that date there was a complaint and a preliminary inquiry. There was no suspension, no charge sheet and no prosecution. None of the three categories was met, so the cover had no business existing	DoPT OM 14.09.1992, para 2; Jankiraman (1991)	**3**
4. Investigation is not a category	**Jankiraman** decided exactly this: pendency of an investigation, or the grant of sanction for prosecution, is not enough; the relevant date is the date of the DPC, and the DPC guidelines say that where the matter is at a preliminary stage the officer is assessed and promoted with the others	Jankiraman (1991); DPC guidelines	**2**
5. Para 7 does not help	Para 7 deems a cover where one of the three circumstances arises **after** the DPC's recommendation and before promotion. Nothing arose between 12.06.2025 and 01.07.2025, and a charge sheet of 10.02.2026 cannot reach back over the event	DoPT OM 14.09.1992, para 7	**2**
6. The date	Since the cover was unlawful, his case was not governed by para 3 at all: he was entitled to be promoted with the panel on **01.07.2025**, the date his junior from the same panel was promoted	DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992, para 3	**3**
7. The later charge sheet	It legitimises a future cover, not a past one. From 10.02.2026 the department may put the **next** DPC's finding in a cover, and it may not promote him meanwhile — but that does not disturb the entitlement that had already accrued	DoPT OM 14.09.1992, para 2(ii)	**2**
8. Arrears	Twelve months at ₹3,000 = ₹36,000, and from 01.07.2026 ₹3,100 a month, which for July and August 2026 is ₹6,200 — totalling **₹42,200** of basic pay computed to 31.08.2026, with DA following the pay and the pension contribution to be regularised	DoPT OM 14.09.1992, para 6; FR 22	**3**
9. Remedy and review	A DPC recommendation is not an appealable order: r.22(ii) excludes interlocutory and step-in-aid orders. The appealable order is the one on his pay and promotion, which lies under r.23(iv) to the appellate authority, and the six-monthly review required by para 4 — never held — is the internal remedy that should have prevented this file from arising	22(ii); 23(iv); DoPT OM para 4	**2**
	Total		**22**

Common wrong answers

- **"Conduct under investigation is the third category."** It is not. The categories are suspension, charge sheet with a proceeding pending, and pending prosecution. A preliminary inquiry is none of them.
- **"The later charge sheet validates the earlier cover."** The validity of a cover is tested on the date of the DPC that used it.
- **"Even so, promotion can only be prospective."** Where the cover was unlawful, the entitlement runs from the date the panel took effect — the date his junior was promoted.

Answer: The sealed cover was unlawful: on 12.06.2025 there was a preliminary inquiry and nothing more, and none of the three categories in the 1992 OM was met. He is entitled to promotion from **01.07.2025**, with **₹42,200** of arrears computed to 31.08.2026, and the charge sheet of 10.02.2026 governs only the next DPC. The remedy is an appeal against the pay order under r.23(iv), after a representation.

Model answer (exam style). The sealed cover is the most misunderstood device in this branch of the law, because it is not in the rules. It comes from executive instruction: DoPT OM No. 22011/4/91-Estt.(A) dated 14.09.1992, issued to give effect to **Jankiraman**. The OM allows a cover in three circumstances only — the servant is under suspension; a charge sheet has been issued and the proceeding is pending; or prosecution for a criminal charge is pending — and it tests them on the date of the DPC. On 12.06.2025 Shri P was in none of the three. A complaint had been received and a preliminary inquiry had begun, which is precisely the stage at which the instructions require the officer to be assessed and promoted along with the rest, because the onus of expediting the proceedings is on the department and not on the officer. The cover was therefore without authority, and para 7 cannot save it: that paragraph deems a cover only where one of the three circumstances arises after the recommendation and before promotion, and nothing arose. The consequence is not that his promotion is prospective. It is that he was entitled to be promoted with the panel on 01.07.2025, the date his immediate junior from the same panel was promoted, with the pay of the higher level from that date. The arrears to 31.08.2026 are ₹42,200 of basic pay, and DA follows. The charge sheet of 10.02.2026 is not irrelevant: from that date the department may place the next DPC's finding in a cover and decline to promote him pending the proceeding, and it may not use the past cover to postpone the benefit that had already accrued. The remedy is an appeal against the order on his pay and promotion under rule 23(iv), the recommendation of a DPC being an interlocutory step outside rule 23 and expressly outside rule 22(i) and (ii); and the department should record why the six-monthly review required by para 4 of the OM was never held.

Rule tags: 23 22 27

↑ Back to question

L3-20 · The cover that said “unfit” — and who may read it
20 marks

Facts. A charge sheet was issued to Smt R on 18.03.2025 and the proceeding was pending when the Departmental Promotion Committee met on 20.04.2025; her case was placed in a sealed cover. The proceeding ended on 12.07.2026 with all charges held not proved. On 30.07.2026 the cover was opened: the DPC had graded her “unfit for promotion” for 2025-26. The reason, as the file shows, is a below-benchmark entry for 2023-24 which was never communicated to her. She asks for promotion from 20.04.2025 and for a copy of the DPC’s finding. The department says the cover is confidential and that exoneration carries no entitlement.

Record / key dates

Item	Date / period	Note
Charge sheet	18.03.2025	proceeding pending
DPC	20.04.2025	sealed cover
Outcome	12.07.2026	all charges not proved
Cover opened	30.07.2026	graded “unfit”
Stated reason	APAR 2023-24	never communicated
Six-monthly review	not held	fifteen months

Questions

1. Was the cover available on 20.04.2025?
2. What does exoneration actually do to a cover?
3. Can she be refused promotion on an uncommunicated grading?
4. Must the finding in the cover be shown to her?
5. What is the correct course now?

Solution — step by step

↑ Back to question

Decision path

cover available — charge sheet pending → exoneration opens it → a finding of ‘unfit’ is not a date → uncommunicated APAR cannot found the refusal → disclosure where it is relied on → re-DPC after communication

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Availability	On 20.04.2025 a charge sheet had been issued and the proceeding was pending — the second category. The cover was properly used, and the fact that the charges later failed does not make its use unlawful	DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992, para 2(ii); Jankiraman (1991)	**2**
2. What exoneration does	It opens the cover and it fixes the due date by reference to the position assigned in the panel and the date of the next junior’s promotion. Exoneration therefore gives a date only where the panel gave a position	DoPT OM 14.09.1992, para 3	**3**
3. What this cover says	It says “unfit for promotion” for that year. There is no position in the panel, so there is no date to work back from, and exoneration by itself creates no entitlement. To that extent the department is right — and it is right for the wrong reason	DoPT OM 14.09.1992, para 3; Jankiraman (1991)	**3**
4. The foundation	The refusal rests on the 2023-24 entry. An adverse grading that is used to deny promotion must have been communicated and open to representation; an uncommunicated entry cannot be the foundation of the denial, and the DPC must assess on the record it may lawfully use	DoPT OM No. 21011/1/2005-Estt.(A)(Pt-II), 23.07.2009; natural justice	**3**
5. Disclosure	The finding in the cover is not privileged against the officer whose promotion it decides. Where a denial rests on it, it must be disclosed to the extent necessary to meet it; secrecy is a practice, not a term of the OM, and the Supreme Court has confined it	Gopinath (2014)	**3**
6. What follows	Not promotion now, but a re-assessment: communicate the APAR, dispose of any representation, and place the case before a review DPC. If she is then found fit, promotion runs from 20.04.2025 with consequential seniority and pay	DoPT OM 14.09.1992, para 3	**2**
7. The review	The six-monthly review under para 4 was not held for fifteen months. That does not by itself entitle her to promotion, but the omission must be recorded and answered, and it is evidence of the delay that the OM exists to prevent	DoPT OM 14.09.1992, para 4	**2**

8. Two opposite errors	"Exoneration means promotion" is wrong on a cover that records unfitness; "the cover can never be looked into" is wrong where the finding is relied on to deny a benefit. The correct position is that the finding must be disclosed, its foundation must be lawful, and the assessment must then be made again	Jankiraman (1991); Gopinath (2014)	**2**
	Total		**20**

Common wrong answers

- **"Exoneration entitles her to promotion from the date of the DPC."** Only if the cover records a position in the panel. A finding of "unfit" has no date to work back from.
- **"The sealed cover is confidential and cannot be disclosed."** Where the denial of promotion rests on it, it must be disclosed to the extent needed to meet it.
- **"The failure to hold the six-monthly review entitles her to promotion."** It is a procedural failure that must be explained; it does not create an entitlement.

Answer: The cover was properly used, but exoneration does not here yield a date: the DPC had graded her "unfit", so there is no panel position to work back from. The refusal nevertheless cannot stand as it is, because it rests on an uncommunicated APAR entry and on a finding she has never been shown. The APAR must be communicated, any representation disposed of, and a review DPC held; if she is then found fit, promotion runs from **20.04.2025**.

Model answer (exam style). Three questions are often run together here, and they must be kept apart. The first is whether the cover could be used: it could, because on 20.04.2025 a charge sheet had been issued and the proceeding was pending, which is the second of the three categories in the 1992 OM. The second is what exoneration does: it opens the cover and it lets the due date be worked back from the position in the panel and the date of the next junior's promotion — but only if the panel gave a position. This cover gave none; it recorded that she was unfit for that year, and a finding of unfitness cannot be converted into a date. The third question, which decides the case, is what the finding of unfitness may rest on. The file shows that it rests on a below-benchmark entry for 2023-24 that was never communicated to her. An adverse entry that is used to deny promotion must be communicated and open to representation; until it is, it cannot be the foundation of the denial, and a DPC that proceeds on it has assessed on material the officer has had no chance to meet. The finding must also be shown to her to that extent: the sealed cover is a device for withholding a **recommendation** until a proceeding concludes, not a licence to decide her career on material she may not see, and the Supreme Court has confined the practice accordingly. The correct course is therefore neither promotion nor refusal but re-assessment: communicate the APAR, dispose of the representation, and place the case before a review DPC. If she is found fit on a lawful record, her promotion runs from 20.04.2025 with consequential seniority and pay. Finally, the department must answer for the fifteen months in which the six-monthly review required by para 4 was never held; that omission does not create an entitlement, but it is exactly the delay the OM was written to prevent.

Rule tags: 23 27

↑ Back to question

L3-21 · Retirement, a sealed cover and a pension that is short
21 marks

Facts. A charge sheet was issued to Shri S on 05.08.2025, three months before he retired on 30.06.2026 from Level 7, where he was drawing ₹50,500 fixed on 01.07.2025, his increment falling due on 1 July. The Departmental Promotion Committee had met on 10.09.2025 and placed his case in a sealed cover; from the same panel his immediate junior was promoted to Level 8 with effect from 01.12.2025, his pay on promotion being fixed under FR 22 at the stage next above ₹50,500, that is ₹52,000. The proceeding concluded on 20.09.2026 with all charges held not proved, and the cover was opened on 05.10.2026: he had been placed third in the panel and found fit. The department has sanctioned pension on ₹50,500, saying that a promotion after retirement cannot be given and that no pay can be paid for a period during which he did not hold the post.

Record / key dates

Item	Date / period	Note
Charge sheet	05.08.2025	before retirement
DPC	10.09.2025	sealed cover · third in panel
Junior promoted	01.12.2025	Level 8, fixed at ₹52,000
Retirement	30.06.2026	Level 7, ₹50,500
Exonerated	20.09.2026	cover opened 05.10.2026
Pension sanctioned on	₹50,500	department's basis

Questions

1. Does the proceeding and the cover survive retirement?
2. Should the promotion be given effect, and from what date?

3. Can he claim arrears of pay for the notional period?
4. What does the notional promotion do to his pension?
5. What happens if a penalty had been imposed instead?

Solution — step by step

↑ Back to question

Decision path

proceeding continues for the cover → para 3: work back from panel and junior → notional promotion from 01.12.2025 → no pay — he did not hold the post → average emoluments rise → pension refixed

Solution — step by step (marks as an examiner would award)

Step	Working	Rule	Marks
1. Survival	Retirement does not abort the proceeding or the cover, and it does not take away the remedy: a person who has ceased to be in service may still appeal under r.24(1), and r.23 applies to him by its Explanation (i). The cover must therefore be opened and acted upon	23, Explanation (i); 24(1)	**2**
2. The notional date	On exoneration the due date is fixed by reference to the position in the panel and the date of the next junior's promotion. Third in the panel, with his junior promoted on 01.12.2025, gives **01.12.2025**	DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992, para 3	**3**
3. No arrears of pay	He did not hold the higher post, so there is no pay for it. The OM leaves even notional arrears for the interval to the appointing authority's discretion, and after retirement the notional promotion operates on pension, not on salary	DoPT OM 14.09.1992, para 6	**3**
4. What it does affect	Pension is computed on the average of the emoluments of the last ten months — here 01.09.2025 to 30.06.2026 — and the notional promotion from 01.12.2025 raises the emoluments for seven of those ten months	CCS (Pension) Rules, 2021	**2**
5. The average	Three months at ₹50,500 = ₹1,51,500; seven months at ₹52,000 = ₹3,64,000; total ₹5,15,500 over ten months = **₹51,550** of basic pay, DA following the pay	CCS (Pension) Rules, 2021	**3**
6. The pension	Fifty per cent of ₹51,550 is **₹25,775** a month, against the ₹25,250 sanctioned; the difference is ₹525 a month, with arrears from 01.07.2026	CCS (Pension) Rules, 2021	**3**
7. Gratuity and commutation	Both are emolument-based and must be recalculated on the notional pay, subject to the prescribed ceiling; there is no question of pay arrears, but there is a question of the retirement gratuity and of commuted value	CCS (Pension) Rules, 2021	**2**
8. If a penalty had been imposed	Para 3.1 would have applied: the finding would not be acted upon, the case would go to the next DPC in the normal course, and any pension effect would then be governed by the pension rules' own provisions on withholding — not by the sealed cover	DoPT OM 14.09.1992, para 3.1; CCS (Pension) Rules, 2021	**3**
	Total		**21**

Common wrong answers

- **"A promotion after retirement is impossible, so the cover is spent."** The promotion is notional — it fixes the date and the emoluments, and on those the pension is recalculated.
- **"He is entitled to the pay of Level 8 for seven months."** He never held the post. What he gets is the pension effect of the notional promotion, and notional arrears only if the appointing authority so directs.
- **"The cover lapses on retirement."** It does not; and if a penalty had been imposed instead of exoneration, para 3.1 would have governed, not para 3.

Answer: The proceeding and the cover survived retirement, and exoneration fixes the notional promotion at **01.12.2025** — third in the panel, his junior promoted that day. He gets no arrears of pay, because he never held the post, but his last-ten-months average becomes **₹51,550** and his pension **₹25,775** instead of ₹25,250, with arrears from 01.07.2026 and consequential revision of gratuity and commutation.

Model answer (exam style). Retirement is not an escape from the file. The proceeding continues, the cover is opened on its conclusion, and the retired officer keeps his remedies: rule 24(1) allows an appeal by a person who has ceased to be in Government service, and the Explanation to rule 23 makes the same point for pensionary orders. On exoneration, para 3 of the 1992 OM requires the due date to be fixed by reference to the position assigned in the panel and the date of the next junior's promotion. He was third and his immediate junior was promoted on 01.12.2025, so the notional promotion is from that date. Two things follow, and they must not be confused. The first is pay: he did not hold the higher post, so there is no salary for it, and the OM leaves even notional arrears for the interval to the appointing authority's discretion. The second is pension, and that is where the value lies. Pension is computed on the average emoluments of the last ten months — three at ₹50,500 and seven at ₹52,000, which is ₹5,15,500 and an average of ₹51,550 — so the pension becomes ₹25,775 a month instead of ₹25,250, with arrears from 01.07.2026, and the retirement gratuity and commuted value must be revised on the same basis. The department's statement that a promotion cannot be given after retirement confuses the promotion with the pay of the post; what the OM directs is notional promotion, and its currency is pension. Had the proceeding ended in a penalty rather than in

exoneration, para 3.1 would have applied instead: the finding would not have been acted upon, the case would have gone to the next DPC, and the pension consequence would have been governed by the pension rules and not by the cover.

Rule tags: 23 24 14

↑ Back to question

Rule-to-case index

Every rule in the scope register, with the L1 checks and the cases that turn on it. Links jump to the item.

Rule	Where it is tested (L1 check · L2/L3 case)
2	L1-03, L1-07
3	L1-01, L1-02
4	L1-06
8	L1-05
10	L1-13, L1-14, L1-15, L1-16, L1-17, L1-18, L1-19, L1-20, L1-21, L1-22, L2-23, L2-24, L2-25, L2-26, L2-27, L2-28, L2-29, L3-02, L3-09
11	L1-25, L1-26, L1-27, L1-29, L1-30, L1-31, L1-32, L1-33, L1-34, L1-35, L1-36, L2-11, L2-12, L2-15, L2-18, L2-19, L2-20, L2-21, L2-22, L2-24, L2-30, L2-31, L2-32, L2-33, L2-34, L2-39, L3-03, L3-05, L3-06, L3-10, L3-11, L3-12, L3-14, L3-15, L3-18
12	L1-04, L1-08, L1-10, L1-11, L1-12, L2-13, L2-15, L2-16, L2-17, L3-01, L3-08, L3-17
13	L1-09, L2-17
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19	L2-14, L2-24, L3-05
22	L1-51, L3-19
23	L1-52, L1-53, L2-21, L2-22, L2-37, L2-38, L3-01, L3-07, L3-08, L3-10, L3-13, L3-15, L3-19, L3-20, L3-21
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FR 54	L2-28, L2-37, L3-01, L3-02, L3-09

Rules in scope with no dedicated item (covered by the authority matrix and the L1 trap column): 1, 6, 7, 9, 20, 21, 28, Schedule, Art. 311.

Clock-to-case index

The clocks an officer is expected to know to the day, with the provision and the cases that compute them.

Clock	Limit	Provision	Cases
Charge sheet to defence	15 days, extendable 15 days at a time; overall 45 days from receipt	r.14(4)	L2-01, L3-01
Appearance before the inquiry authority	10 working days from receipt of the charge sheet (+10 days)	r.14(7)	L2-02, L2-07
Adjournment at the Presenting Officer's request	3 clear days	r.14(15)	L2-05
Inspection of listed documents	5 days (+5)	r.14(11)(i)	L2-04
Production of other documents	1 month, or a non-availability certificate	r.14(13)	L2-04
Copies of witness statements	not later than 3 days before that witness is examined	Note to r.14(11)	L2-05
Completion of the inquiry	6 months from appointment of the inquiry authority (+6 months at a time)	r.14(24)	L2-06, L3-13
Representation on the inquiry report	15 days	r.15(2)	L2-08, L3-01, L3-18
Representation on the Commission's advice	15 days	r.15(3)(b), r.16(1)(d)	L2-10
Suspension review	before 90 days; extension ≤ 180 days at a time	r.10(6)–(7)	L2-25, L2-28, L2-29, L3-02, L3-09
Appeal	45 days from delivery of the order	r.25	L2-35, L2-36, L2-44, L3-16
Revision by the appellate authority	6 months from the order; the CAG and the President have no such bar	r.29(1)(v)	L2-41, L2-42, L2-43, L3-16
Review	at any time, President only, on new material	r.29-A	L2-42, L2-43, L3-16
Sealed cover — decision of the DPC	tested on the date the DPC meets, on the three closed categories only	DoPT OM 14.09.1992, para 2	L2-30, L3-07, L3-19, L3-20, L3-21
Sealed cover — review	first review at 6 months from the first DPC; every 6 months after	DoPT OM 14.09.1992, para 4	L3-19, L3-20
Sealed cover — ad hoc promotion	may be considered only after 2 years from the first DPC	DoPT OM 14.09.1992, para 5	L3-20
Sealed cover — opening	on conclusion of the proceeding; exoneration relates the promotion back to the panel date	DoPT OM 14.09.1992, paras 3 and 3.1	L2-30, L3-07, L3-19, L3-20, L3-21

Case-law index

The proposition at the width it is decided, with the limit stated. Nothing in this book quotes a judgment for atmosphere.

Proposition	Authority	Width and limit
Natural justice applies to departmental inquiries; the hearing must be fair, not formally perfect	A.K. Kraipak v. Union of India (1969)	administrative-law foundation; not a code of procedure
The inquiry report must be supplied before the penalty is imposed	Union of India v. Mohd. Ramzan Khan (1991); Managing Director, ECIL v. B. Karunakar (1993)	supply is mandatory; relief depends on prejudice, which the employee must raise
Non-supply of documents or the report vitiates only where prejudice is shown	B. Karunakar (1993)	prejudice is fact-specific; a bare assertion will not do

A copy of the Commission's advice must be supplied and the employee heard on it	S.K. Kapoor v. Union of India (2010), now reflected in the rules	advice only, not the Commission's working notes
Suspension must not be extended mechanically; a charge memo must follow within a reasonable time	Union of India v. Ajay Kumar Choudhary (2015)	read with the r.10(6)–(7) review architecture
Findings are not reappreciated as an appeal; interference lies for perversity or want of evidence	Union of India v. H.C. Goel (1964); Union of India v. P. Gunasekaran (2015)	sufficiency of evidence is for the authority
Penalty must be proportionate; interference with quantum is exceptional	Union of India v. G. Ganayutham (1997); Lucknow Kshetriya Gramin Bank v. Rajendra Singh (2013)	proportionality applied sparingly, not as a re-weighing
The second proviso to Article 311(2) and Rule 19 dispense with the inquiry, not with the reasons	Union of India v. Tulsiram Patel (1985)	reasons are reviewable for relevance, not sufficiency
Sealed cover applies only where a charge sheet has been issued or a prosecution is pending at the date of the DPC; an investigation is not enough	Union of India v. K.V. Jankiraman (1991); Union of India v. B.V. Gopinath (2014)	the date of consideration decides the sealed cover; material relied on to deny promotion must be disclosed
Where any penalty is imposed, the sealed-cover finding is not acted upon and the case goes to the next DPC	A.N. Mohanan v. Union of India (2007)	para 3.1 of the 1992 OM applied; a censure is a blameworthy factor and carries no right to promotion in that year
Unauthorised absence requires a finding that the absence was without authority	Krushnakant B. Parmar v. Union of India (2012)	the finding must match the charge
A termination of a probationer is punitive if misconduct is its foundation, whatever its form	Dipti Prakash Banerjee v. S.N. Bose National Centre (1999); Radhey Shyam Gupta v. U.P. State Agro Industries (1999)	Pavanendra Narayan Verma v. Sanjay Gandhi PGI (2002) supplies the test: form plus foundation

Sources and notes

- CCS (Classification, Control and Appeal) Rules, 1965 — Gazette text with amendments up to 01.11.2026 — https://www.referencer.in/CS_Regulations/CCS(CCA)Rules1965/Default.aspx
- DoPT — Frequently Asked Questions on time-bound disciplinary proceedings, 08.12.2017 (11012/09/2016-Estt.A-III) — https://www.referencer.in/cs_regulations/ccs(cca)rules1965/11012_09_2016-Estt.A-III.aspx
- DoPT — classification of posts under the CCS (CCA) Rules, 08.12.2017 (11012/10/2016-Estt.A-III) — https://www.referencer.in/CS_Regulations/CCS(CCA)Rules1965/11012_10_2016-Estt.A-III.aspx
- DoPT — regulation of pay on imposition of a penalty, 18.06.2019 (11012/15/2016-Estt.A-III) — https://www.referencer.in/CS_Regulations/CCS(CCA)Rules1965/11012_15_2016_Estt.A-III.aspx
- DoPT — instructions on the sealed cover procedure, 19.01.2017 (11012/6/2016-Estt.A-III) — https://www.referencer.in/CS_Regulations/CCS(CCA)Rules1965/11012_6_2016-Estt.A-III.aspx
- DoPT OM No. 22011/4/91-Estt.(A), 14.09.1992 — promotion of Government servants against whom disciplinary or court proceedings are pending: the sealed cover, paras 2 to 7 (full text, PDF) — https://documents.doptcirculars.nic.in/D2/D02est/22011_4_91-Estt.A-14091992.pdf
- DoPT OM No. 22011/4/2007-Estt.(D), 28.04.2014 — effect of penalties on promotion and the role of the DPC (full text, PDF) — https://documents.doptcirculars.nic.in/D2/D02est/22011_4_2007-Estt.D-28042014.pdf
- Indian Kanoon — consolidated text of the Rules (as published) — https://indiankanoon.org/doc/18288843/
- The law date is 01.11.2026. The rules are applied as amended; the 2014 Second Amendment, the 2014 Third Amendment, the 2009 amendment to r.11(vi) and the 2017 statutory timelines are treated as part of the text, not as footnotes.
- Rule 15 is taught only in its post-31.10.2014 form. A case that turns on the absence of a second show-cause on the proposed penalty is a case about an obsolete provision — marked ⊘ wherever it appears.
- Classification follows Group A/B/C. Where the text retains class-based language (for example in r.4 or r.24), the operative Group reading is used and the textual lag is flagged in the L1 traps.
- Every date arithmetic in this book uses the conventions published in the verification harness: statutory day counts run from the day after the trigger unless the rule says "from the date of"; clear days exclude both termini; 45-day and six-month caps are computed from the trigger date and not by adding extensions.
- Pay figures use 7th CPC matrix values and illustrative DA/DR of 60% (01.01.2026) and 63% ⚑ (01.07.2026). The 63% rate rests on the Cabinet decision of 28.10.2026; the formal order was awaited on the law date and is flagged ⚑ wherever it drives a figure.
- Facts, names, file numbers and offices are constructed for teaching. No case describes a real officer, and no case should be read as a finding about any real proceeding.

- The sealed-cover cases apply executive instruction, not rule: DoPT OM No. 22011/4/91-Estt.(A) dated 14.09.1992, issued after Jankiraman. Where a case turns on it, the paragraph is cited, and the book says plainly that the OM cannot enlarge a power given by the rules — which is why r.18(2) is read as subject to r.12(4).
- Communication of adverse entries in the APAR is governed by DoPT OM No. 21011/1/2005-Estt.(A)(Pt-II) dated 23.07.2009, read with the OM of 14.05.2009: an adverse entry must be communicated, the officer may represent against it, and an uncommunicated entry cannot be the foundation of a denial of promotion. That OM is cited by number and date because the Department has moved it between hosts; check the current copy on the DoPT circulars site before relying on it.
- Nothing here replaces the Gazette text or the departmental instructions in force in the office where a case is handled.